

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

Darul Uloom Wal Funoon

Masā'il al-Ḥajj

Hajj & Qurbānī — Class Notes

Compiled class notes · Ḥanafī fiqh of Hajj

TEACHER

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Disclaimer. Content reflects live class instruction in the Ḥanafī madhhab. Consult qualified scholars for legal rulings.

Reference text. The principal Hanafi reference for this series is **Badā'i' al-Ṣanā'i' fī Tartīb al-Sharā'i'** (Volume 3 (al-I'tikāf — al-Nikāḥ)), by Imam 'Alā' al-Dīn Abū Bakr ibn Mas'ūd al-Kāsānī (d. 587 AH).

Ongoing edition. New sessions will be added as classes continue.

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Muqaddimah — Introduction

How to use this volume

These notes form an **ongoing compendium** of the Masā'il al-Ḥajj lessons at **Darul Uloom Wal Funoon**, taught by **Mufti Umar Aejaaz**, compiled by **Arif Shaikh**.

The series explains **when Hajj becomes farḍ** upon a person: conditions of taklīf, then **istiṭā'ah** (capability)—provisions, transport, safety of travel, and rules for women—followed by the **arkān** (pillars) and **wājibāt** (obligatory actions) of Hajj.

How to use this book

1. Read each **session** in order; later lessons build on earlier ones.
2. Arabic terms appear as taught; difficult words are explained in brackets in the session notes.
3. Verify Quranic and hadith references in standard editions.
4. Download the latest PDF from the repository as new classes are added.

Principal reference

بَدَائِعُ الصَّنَائِعِ فِي تَرْتِيبِ الشَّرَائِعِ
Volume 3 (al-I'tikāf — al-Nikāḥ)

الإمام علاء الدين أبو بكر بن مسعود الكاساني
Imam 'Alā' al-Dīn Abū Bakr ibn Mas'ūd al-Kāsānī (d. 587 AH)

Badā'i' al-Ṣanā'i' fī Tartīb al-Sharā'i' (Volume 3 (al-I'tikāf — al-Nikāḥ)) by Imam 'Alā' al-Dīn Abū Bakr ibn Mas'ūd al-Kāsānī (d. 587 AH) is the classical Hanafi reference used alongside oral teaching. This student book **documents the lessons**; it does not reproduce the full text of that work.

Method

- **Madhhab:** Ḥanafī, as taught by Mufti Umar Aejaaz.
- **Format:** Opinions, evidence, cases, and Q&A from class.
- **Preferred view:** Marked when the teacher gives the mashhūr Hanafi position.

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List of Sessions

Editions will grow as classes continue

№	Session	Date
1	Conditions that make Hajj obligatory	11 May 2026
2	Physical capability — the blind person	12 May 2026
3	Zād and Rāhilah — expenses & transport	13 May 2026
4	Amn al-ṭarīq & women — maḥram rules	18 May 2026
5	‘Iddah travel restrictions & Hajj Badal	19 May 2026
6	Wuqūf Arafah — obligation, place, timing & mistaken dates	21 May 2026
7	Wuqūf Arafah — duration, departure, missing & Uḍḥiyah Q&A	22 May 2026
8	Aḥkām e Eid al-Aḍḥā & Qurbānī (Part 1)	23 May 2026
9	Tawaf al-Ziyārah — obligation, rukn & niyyah	1 Jun 2026
10	Masā’il e Qurbānī (Part 2) — defects, method & distribution	24 May 2026
11	Ṭahārah, Satr al-‘Awrah & Wājibāt of Tawaf al-Ziyārah	2 Jun 2026
12	Tawaf al-Ziyārah — Sunan, Timing, Place & Rulings	3 Jun 2026
13	Sa‘ī between Ṣafā & Marwah — Status, Wājibāt & Penalty Framework	8 Jun 2026
14	Sa‘ī — Conditions of Validity, Sunan, Timing & Missed Rulings	9 Jun 2026

15	Wuqūf at Muzdalifah & Ramī al-Jimār Introduction	10 Jun 2026
16	Ramī — Missed Rulings, Tadākhul, Qaḍā' & Tartīb of Jamarāt	12 Jun 2026

Masail e Hajj — Class 1 Summary

DATE May 11, 2026

TOPIC Conditions that make Hajj obligatory

Overview

This is a Fiqh (Islamic law) class discussing the conditions required for Hajj to become obligatory (Farz) upon a person. The teacher explains each condition with Quranic evidence, Hadith, and logical reasoning.

The Four Conditions

1. Bulugh (Reaching Puberty)

- Hajj is not obligatory on a child who has not yet reached puberty.
- If a child performs Hajj, it counts as Nafl (optional) — not as the obligatory Hajj.
- After reaching puberty, they must perform Hajj again as their first obligatory one.
- This is a commonly asked question, and the Hadith confirms it clearly.

2. Aql (Sound Mind)

- Hajj is not obligatory on a Majnun (a person who is mentally ill or has lost their mind).
- Sharia (Islamic law) does not address or obligate such a person.
- If they recover their mind and then perform Hajj with a fresh intention, that would count as the obligatory Hajj.

3. Islam

- Hajj is only obligatory on a Muslim.
- A non-Muslim's Hajj — even if performed many times — does not count.
- After accepting Islam, they must perform Hajj fresh as a Muslim.

Scholarly Debate on This Point

There is a difference of opinion between Hanafi scholars and Imam Shafi'i on whether non-Muslims are accountable (mukallaf) for Islamic acts of worship:

	Hanafi View	Imam Shafi'i's View
In this world	Non-Muslims are not obligated to perform Islamic acts	Same — they cannot perform them
In the Hereafter	They will not be questioned about Salah, Hajj, etc. — they go directly to punishment for disbelief	They will be questioned and punished for not performing these acts

Imam Shafi'i's evidence: The Quranic verse says “upon the people” — general, not “upon Muslims only.”

Hanafi response: The general wording becomes specific when read in context — the next part of the verse addresses non-believers separately, meaning the first part was specifically for Muslims. Also, logically, how can you make something obligatory on someone who cannot perform it?

4. Freedom (Not Being a Slave)

- Hajj is not obligatory on a slave (abd).

- Even if a slave performs Hajj 10 times, none of it counts as the obligatory Hajj.
- After gaining freedom, they must perform Hajj again from scratch.

Why? — The Two Required Capabilities

For Hajj to be obligatory, a person must have both:

1. **Financial capability** — ability to own money, food, and means of travel.
2. **Physical capability** — control over their own body and self.

A slave has neither — their body is controlled by their master, and they cannot own anything. So they are missing both conditions entirely.

Important Comparison: Slave vs. Poor Person (Faqir)

Situation	Slave	Poor Person (Faqir)
Hajj obligatory at start?	No	No
If they somehow perform Hajj, does it count?	No — still does not count	Yes — it counts as obligatory Hajj
Why the difference?	Missing both capabilities (financial + physical) even with master's permission	Only missing financial capability at start. When he arranges his travel and food and begins the journey, he fulfills the financial capability during the Hajj itself

Key point about the poor person: When he starts his journey and actually arranges food and travel — even if others helped him — he has now proven financial capability. So his Hajj turns into the obligatory one, and he does not need to repeat it even if he becomes wealthy later.

Exception: Why Does Salah (Prayer) Work Differently for a Slave?

A slave's Salah (prayer) counts as obligatory even though his Hajj does not. Here is the reasoning:

- A slave's physical services belong to his master — except for the time needed for obligatory prayers. Sharia gave this concession specifically for prayer.
- Prayer is short — it causes no significant harm or financial loss to the master.
- Hajj and Jihad involve long absence and financial expense — significant harm to the master.
- If Sharia counted a slave's Hajj as obligatory, slaves would rush to perform it and pressure their masters for permission — causing harm to masters both physically and financially.
- So Sharia protected the master's rights by not counting Hajj or Jihad as obligatory for a slave.

Also, counting Jumu'ah (Friday prayer) as valid for a slave actually benefits the master — because if it did not count, the slave would still need to pray Zuhr separately, taking even more time. So it is more practical and fair to count it.

Follow-Up Cases: What If a Condition Is Gained Mid-Hajj?

Child Who Reaches Puberty During Hajj

- **Hanafi view:** If he started with intention of Nafl (optional), it stays Nafl — even if he reaches puberty midway. He must start fresh with new intention as an adult for it to count as obligatory.
- **Imam Shafi'i's view:** If he reaches puberty before the key act of Wuquf (standing at Arafah), it can count as obligatory — because in his view, obligatory Hajj can be fulfilled even with a Nafl intention.

For It to Count as Obligatory (Hanafi view)

The person must:

1. Make a new intention (Niyyat) after gaining the condition (puberty, sanity, Islam, or freedom).
2. Recite Talbiyah freshly.
3. Perform the key pillars of Hajj — especially Wuquf at Arafah (standing at Arafah) and Tawaf al-Ziyarah (the obligatory circling of the Kaaba) — **after** gaining the condition.

Same rule applies to:

- A Majnun who regains sanity mid-Hajj.
- A Kafir who accepts Islam mid-Hajj.
- A Slave who is freed mid-Hajj (this case will be covered in the next class).

Q&A at the End: Why Is Ramadan Fasting Different?

Student's question: In Ramadan, even if someone starts fasting with a Nafl intention, it still counts as obligatory. Why doesn't the same apply to Hajj?

Teacher's answer:

- In Ramadan fasting, the person who is ill or traveling is already eligible for the obligation — they just have a temporary concession (choice) given to them by Sharia. They are fully capable of fasting being obligatory on them.
- A child or slave is not in that category at all — they are simply not in a state where anything can be made obligatory upon them.
- So whatever a child performs — it can only ever be Nafl, not obligatory — because the very foundation of eligibility is missing.
- But a sick or traveling adult is still fundamentally eligible — the concession is just a temporary allowance, not a removal of eligibility.

Closing

The teacher wraps up by saying:

- Four conditions covered: Puberty, Sound Mind, Islam, Freedom.
- More conditions are coming in future classes.
- Next class will continue with the case of the slave who is freed mid-Hajj.
- Next session will be at 7:15 inshallah.

Masail e Hajj — Class 2 Summary

DATE May 12, 2026

TOPIC Physical capability (Istita'at) for Hajj — the case of a blind person

Background

The fifth condition for Hajj to be obligatory is **physical capability**. The class examined the specific case of a **blind person** and whether Hajj is obligatory upon them.

Two scholarly opinions

Opinion 1 — Imam Abu Hanifa

Hajj is **not obligatory** upon a blind person to perform himself. His reasoning:

- A blind person cannot independently perform the actions of Hajj — he cannot travel, mount or dismount, or navigate without assistance.
- Any capability he has is **dependent on another person**, and that other person is not under his control.
- In Sharia, capability achieved through someone not in one's control **does not count as true capability**.
- Example given: an elderly person too weak to sit firmly — even if someone helps him, Hajj is still not obligatory on him.
- Obligating Hajj in such a case would create **haraj (undue hardship)**, which Islam does not impose.

Opinion 2 — The Sahibain (Imam Abu Yusuf and Imam Muhammad) — preferred opinion

Hajj is **obligatory** upon a blind person **if he has a guide**. Their reasoning:

- A blind person is physically fit — he can perform all actions of Hajj: Tawaf, Rami (stoning), and all other rites.
- All he lacks is **directional guidance**, not physical ability.
- If a guide is available, he has no valid excuse.
- Therefore, if a guide is present, Hajj is obligatory upon him personally.

The Hadith argument (Zaad and Rahila)

The Sahibain argued that the Prophet ﷺ defined Istita'at (capability) as having **Zaad** (food and provision) and **Rahila** (means of travel) — and a blind person can have both.

Imam Abu Hanifa's response: The Prophet ﷺ mentioned Zaad and Rahila as **examples**, not as an exhaustive definition of capability. Evidence:

- A person blocked by a sea with no ship available is not obligated for Hajj, even if he has Zaad and Rahila.
- A person restricted by a government or enemy is likewise not obligated.
- This proves capability has additional conditions beyond just Zaad and Rahila.

Two cases of blindness — detailed ruling

Case 1: Blind before Hajj became obligatory on him

- **If a guide is available** → Hajj is obligatory; he must perform it himself.
- **If no guide is available** → Hajj is not obligatory; he does not need to send someone on his behalf.

Case 2: Became blind after Hajj was already obligatory on him (i.e. he delayed Hajj while healthy)

- **If capable of traveling with a guide** → He must perform it himself.
- **If not capable of traveling** → He must arrange for someone to perform **Hajj-e-Badal** (proxy Hajj) from his wealth, or make a **wasiyyah** (bequest) that it be done after his death.

Question raised by a student

Q: In Zakat, if a person's wealth is lost before paying, the obligation is lifted. Why doesn't the same apply to Hajj — i.e. why does Hajj remain obligatory even after blindness occurs?

A (brief): According to the Sahibain, blindness is not considered a major disability that makes a person incapable. It is a minor barrier. Therefore, since the obligation was already established while he was healthy, it remains — blindness alone does not remove it.

Next class

Wednesday (tomorrow) at 9:30 PM

Topic: the conditions related to **arranging provisions and means of travel** (Zaad and Rahila) for Hajj.

Ongoing schedule agreed:

- Monday and Wednesday → **9:30 PM**
- Tuesday, Thursday, and Friday → **7:15 PM**

Masail e Hajj — Class 3 Summary

DATE May 13, 2026

TOPIC Conditions of Hajj — Zad & Rahila (Travel Expenses & Transport)

TEACHER Mufti Umar Aejaaz

Introduction

This lesson discusses one of the key conditions (شروط) that make Hajj obligatory (فرض) upon a person — specifically the condition of **Zad** (زاد) and **Rahila** (راحلة).

Important note: This condition applies only to someone who lives away from Makkah. A Makki (person residing in Makkah) can walk to the Haram easily, so the transport condition does not apply to him in the same way — similar to how someone walks to the Masjid for Jumu'ah.

Two Key Terms

- **Zad** (زاد) — Travel provisions, meaning food, stay, and all expenses needed during the journey.
- **Rahila** (راحلة) — The means of transport, whether an animal (in old times), a vehicle, or a flight ticket today.

Central Question: Is Ownership Required?

Before getting into the opinions of the scholars, two concepts must be understood:

- **Milk** (ملك) — Full ownership. You own something completely and can use it, sell it, or give it away however you like.
- **Ibaha** (إباحة) — Permission to use. Someone else owns it but permits you to use it. You have no independent authority over it.

Opinions of the Four Imams

Imam Abu Hanifa and the Hanafi Majority

Both Zad and Rahila must be in your **full ownership (Milk)**. If someone merely gives you permission (Ibaha) to use their food and transport, Hajj does **NOT** become obligatory upon you. The argument is that Ibaha can be withdrawn at any moment — you do not have guaranteed, unconditional access — so full Istita'at (استطاعة — capability) is not achieved through it.

Imam Shafi'i (رحمه الله)

Both Zad and Rahila are required, **BUT** Ibaha (permission to use) is also sufficient. If someone from your close family — like your father — arranges and permits you to use his food and transport as his responsibility, Hajj becomes obligatory upon you. However, if a complete stranger (Ajnabi) does this, Imam Shafi'i has two opinions — one says Hajj becomes obligatory, another says it does not.

He also used the example of **Tayammum** (تيمم — dry ablution using dust when water is unavailable): if someone permits you to use his water, you are NOT eligible for Tayammum because water is accessible to you. Similarly, if someone permits you to use his Zad and Rahila, you are capable — so Hajj is obligatory.

The Hanafi counter-argument: The rule of Tayammum is different. The Quran says you may do Tayammum when you cannot find water — that means you have no access at all, neither by ownership nor by permission. So that example does not apply here. For Hajj, the Quran demands full and unconditional capability (Istita'a), which Ibaha cannot guarantee since permission can be taken back at any time.

Imam Malik (رحمه الله)

Rahila (means of transport) is **NOT** a condition at all. If a person is healthy and physically capable of walking the entire journey, Hajj is obligatory upon him even if he has no vehicle, ticket, or animal.

His argument is from the Quran:

وَلِلّٰهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ اِلَيْهِ سَبِيْلًا

“And upon Allah is the duty of Hajj for the people — for whoever is able to find a way to it.” (Aal Imran: 97)

He says this ayah does not specifically mention a vehicle. A healthy person who can walk has found a way — so Hajj is upon him.

The Hanafi response: The great scholars of tafsir (Quranic interpretation) have explained this very ayah to include two specific requirements — Zad (provisions) and Rahila (transport). Walking the entire journey is not a realistic or easy undertaking, so it cannot be used as the measure of capability for a person living far from Makkah.

What Happens if Someone Gifts You a Hajj Ticket?

If someone gifts (هدية — Hadiya, a gift where ownership transfers) you a flight ticket and arranges your food — ownership is now yours — so Istita'a could be achieved. But is it obligatory upon you to accept this gift?

- **According to the Hanafis:** No. Accepting a gift is not compulsory. You are not sinful for declining.
- **Imam Shafi'i** has two opinions on this as well.

How Much Does One Need? — The Criteria of Zad & Rahila

The financial capability required for Hajj to become obligatory means the following must all be in place simultaneously:

1. **Enough money** to cover your travel to Makkah and back using some means of transport (not on foot if you are far).
2. **A moderate (average, not luxurious) stay and food package** during the journey — no extravagance required, but comfort must be manageable.

3. **All of the above must be over and above your essential needs.** Things already in your use are NOT counted — these include:
- The house you live in
 - Your servant (Khadim — خادم)
 - Your horse or personal vehicle
 - Your weapons (in the classical context)
 - Your clothing and furniture
 - All other daily-use items
4. **You must also arrange the expenses (Nafaqa — نفقة)** of your dependents — family, servants — for the entire period you will be away for Hajj. This includes both food and clothing.
5. **Any debts (Dain — دين) you owe must be subtracted first.** Example given: if you have 10 lakh rupees but owe 8 lakh in debts, only 2 lakh remains — if that is insufficient for Hajj expenses, Hajj is not yet obligatory upon you.
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How Long Must Family Expenses Be Arranged?

Some older scholarly opinions say one month's expenses must remain in your account even after returning from Hajj. Others say one full year.

The teacher clarifies: these older opinions were based on the reality of that era — Hajj journeys sometimes took a full year or more by animal travel. Today the journey takes hours, and a stay of one to four weeks is typical. So the rule is simply: arrange your family's expenses for however long you will be away. If it is 10 days, then 10 days. If one month, then one month.

Special Cases Discussed

Case 1 — Shared Transport

If a Rahila is shared between two people on a rotation — one rides while the other walks, then they switch — this is **NOT** sufficient. The Rahila must be available to you for the entire journey without interruption.

Case 2 — Extra House Not in Use

If a person owns an extra house he does not live in and does not rent out, and its value is enough to fund Hajj, then according to **Ibn Shuja'** (a Hanafi scholar), it **IS** counted. He must sell it and perform Hajj. He also cannot take Zakat in this situation since the value of this property reaches Nisab (نصاب — minimum threshold of wealth).

Case 3 — Expensive House Being Used

If a person lives in a house worth 50 lakh rupees, and a simpler house is available for 30 lakh — could he sell, downgrade, and use the leftover money for Hajj? The answer is **No**. The house he currently lives in is an essential need and is not counted. He is not required to downgrade his home to fund Hajj. However, if he chooses to do so voluntarily, that is a good deed (Nafal — نافلة — voluntary good act) for him.

Case 4 — Person with Savings but No House or Servant

Abu Yusuf (رحمه الله), the student of Imam Abu Hanifa, says: if a person has money in hand sufficient for Hajj but has no house (living on rent) and no servant — and he can arrange family

expenses for the Hajj period — then Hajj is **immediately obligatory**. He should NOT delay it by first buying a house or hiring a servant. He can continue living on rent as he already is. Spending that money on a house first — instead of Hajj — would make him sinful, because Hajj was already obligatory upon him at that point.

Case 5 — Food for the Family

It does not mean the family must be left with a full year's food stored at home. It means enough provision must be arranged to cover the family's needs for the period of absence. Any additional stockpiling beyond that is unnecessary.

Conclusion of This Section

The obligatory nature of Hajj requires:

- Full ownership of Zad and Rahila (Hanafi position)
- Both must be beyond your essential needs and beyond your debts
- Family expenses for the duration of the trip must be covered
- The Rahila must be available throughout the entire journey, not on a rotation

Next lesson: The next condition for Hajj — that the journey must be safe and secure.

Masail e Hajj — Class 4 Summary

DATE May 18, 2026

TOPIC Safety of travel (Amn al-Tariq), women's conditions for Hajj, and mahram rules

TEACHER Mufti Umar Aejaz

Introduction

This class continues the conditions of **Istita'at** (استطاعة) [capability] that make Hajj **Farz** (فرض) [obligatory]. Class 3 covered **Zad** (زاد) [travel provisions] and **Rahila** (راحلة) [means of transport]. Today's focus:

1. **Amn al-Tariq** (أمن الطريق) — safety and security of the journey.
2. **Conditions specific to women** — especially **mahram** (محرم) and related rules.

General conditions (Zad, Rahila, physical capability, etc.) apply to **men and women both**. A few extra conditions apply **only to women**.

Part 1 — Amn al-Tariq (Safety of Travel)

Central question

If a person has money and transport but **travel is not safe** for any reason, is Hajj still obligatory?

Opinion 1 — Not preferred: safety is a condition for *performance*, not for *obligation*

- Hajj becomes Farz on him even without safe travel.
- He is **not obliged to actually go** until the road becomes safe.
- **Practical result:** If he never got safety in his life and is now dying, **Hajj-e-Badal** (حج البدل) [proxy Hajj] and **wasiyyah** (وصية) [bequest] may be required — because Hajj was already obligatory on him, only performance was delayed.

Their evidence — Hadith of Zad and Rahila

When the Prophet ﷺ was asked what capability (*istita'ah*) for Hajj means, he mentioned only **food/provisions** and a **riding animal** — no mention of safety:

عَنْ أَبِي هُرَيْرَةَ رَضِيَ اللَّهُ عَنْهُ قَالَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «مَنْ مَلَكَ زَادًا يُبْلَغُهُ إِلَى كَعْبَةِ اللَّهِ وَسَبِيلًا يَسِيرُ فِيهِ إِلَى بَيْتِ اللَّهِ فَلَيْسَ لَهُ أَنْ يَتْرَكَ حَجَّ بَيْتِ اللَّهِ»

“Whoever possesses provision that reaches him to the Ka’bah of Allah and a path by which he may travel to the House of Allah — he must not leave performing Hajj of the House of Allah.”

Ref: Sahih Muslim, 1331; Sahih al-Bukhari, 1521 (narration of Abu Hurayrah رضى الله عنه).

Their argument: Since the hadith does not mention **amn** (أمن) [safety], safety is **not** a condition for obligation — only for going.

Opinion 2 – Preferred (Hanafi): safety is a condition for *obligation* itself

- **Without safety, Hajj is not Farz at all** – not merely delayed.
- If he dies without ever having safe travel, **Hajj-e-Badal is not Wajib** (واجب) [obligatory] on him before death, because Hajj was never established as Farz on him.

Quranic basis

Allah tied Hajj to true capability:

وَلِلّٰهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ اِلَيْهِ سَبِيْلًا

“Hajj to the House is a duty owed to Allah by people – for whoever is able to find a way to it.”

Ref: Surah Aal Imran, 3:97.

Logic: A person **cannot** be *mustati*’ (مستطيع) [truly capable] if the road is unsafe – just as he cannot be capable without Zad and Rahila. **Istita’at** requires that travel be realistically possible, which includes **security**.

Answer to the hadith (Zad and Rahila only)

The hadith mentions Zad and Rahila as **examples (tamthil / jumla ‘ala al-ghalib)** of what people normally need – not as an **exhaustive list** of every part of capability.

Proof the list is not limited to two things:

Situation	Has Zad + Rahila?	Hajj Farz?
Blocked by sea, no ship	Yes	No
Blocked by enemy / government	Yes	No
Unsafe road	Yes	No (preferred view)

Similarly, the same hadith does **not** mention **physical fitness (quwwah badaniyyah)** – yet everyone agrees a paralysed person without help is not obligated. The hadith describes what is **usually** enough, not every condition.

Key principle: The real **shart** (شرط) [condition] is **full Istita’at**. Whatever is needed to make travel truly possible – Zad, Rahila, **and** Amn – falls under that.

Comparison: Zad, Rahila, and Amn

	Zad	Rahila	Amn al-Tariq
Meaning	Provisions for journey	Transport	Safety of the way
Without it, can he travel?	No	No	No
Listed in the hadith?	Yes (as example)	Yes (as example)	No – but same rule
Role in obligation	Part of Istita'at	Part of Istita'at	Part of Istita'at

Case – Rich, capable, but never had safe travel; now dying

View	Hajj ever Farz on him?	Hajj-e-Badal before death?
Preferred (Hanafi)	No	Not Wajib
Other opinion	Yes (obligation without performance)	Wajib (wasiyyah / Badal)

Part 2 – Conditions Specific to Women

Two extra conditions (Hanafi study); the second will be completed next class:

1. **Mahram** (محرّم) – availability, readiness, and **financial maintenance (nafaqa / zad)** of the mahram.
2. **Not in Hayd / 'Iddah** (حَيْض / عِدَّة) [menstruation or waiting period] – when travel for Hajj is not allowed; **next class insha'Allah**.

Part 2A – Mahram: Hanafi vs Imam Shafi'i

Hanafi position (preferred in this class)

- **Without a mahram (or husband), Hajj is not Farz** on the woman.
- She **cannot** travel for Hajj **alone**, even if she is wealthy.
- Going without mahram is **not valid** as the obligatory Hajj she owes.

Evidence – Hadith specific to Hajj

لَا يَحِلُّ لِمَرْأَةٍ تُؤْمِنُ بِاللَّهِ وَالْيَوْمِ الْآخِرِ أَنْ تَحُجَّ إِلَّا مَعَ مَحْرَمٍ

“It is not lawful for a woman who believes in Allah and the Last Day to perform Hajj except with a mahram.”

Ref: Sunan al-Tirmidhi, 1174 (hasan); Ahmad, 1/393 — as cited in fiqh works; wording as taught in class.

Meaning: If Hajj without mahram is **haram / not permitted**, it cannot be **obligated** upon her in that state — you cannot command what Sharia forbids.

Evidence — General travel hadith

لَا يَحِلُّ لِمَرْأَةٍ تُؤْمِنُ بِاللَّهِ وَالْيَوْمِ الْآخِرِ أَنْ تُسَافِرَ مَسِيرَةَ يَوْمٍ وَلَيْلَةٍ إِلَّا مَعَ ذِي مَحْرَمٍ

“It is not lawful for a woman who believes in Allah and the Last Day to travel a distance of one day and one night except with a mahram.”

Ref: Sahih al-Bukhari, 1088; Sahih Muslim, 1341 (hadith of Ibn ‘Abbas رضي الله عنه).

Distance: In early times this was estimated as about **48 miles (77 km)** — **Safar** (سفر) [long journey] in Sharia terms. Hajj from outside Makkah is always this type of travel.

Two reasons for mahram (as taught)

1. **Protection (hifz / amn)** — from non-mahram men on a long journey; women need a protector.
2. **Physical support** — travel is hard; a mahram helps her during the journey.

Both apply to **young and old** women — an elderly woman may need support **more**, and protection is needed at every age.

‘Aql (عقل) / logic used in class: Women are described in classical discourse as needing protection on long travel like something exposed unless covered — **mahram** is that protection in Sharia.

Imam Shafi’i’s position (mentioned for contrast — not Hanafi fatwa)

- If **trustworthy, reliable Muslim women** are with her in the group, Hajj **can be Farz** even without mahram.
- He uses the general ayah of Hajj on “whoever is capable” — no mention of mahram in the verse.

Hanafi answer to the ayah

(Aal Imran: 97) وَلِلَّهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ إِلَيْهِ سَبِيلًا

The ayah speaks about one who is truly **mustati’**. A woman **without mahram** is **not considered capable in Sharia** for this type of journey — so she does not fall under this general wording. Capability for her **includes** mahram.

Hanafi answer to “other women will protect her”

- Other women are also **not safe alone** on long travel in the same way.
- A larger group of women does **not** remove the need for mahram — harm and **fitnah** (فتنة) [temptation / moral risk] can increase, not decrease.

- **Khalwah** (خلوة) [seclusion] with a non-mahram man is haram **even if other women are present** – so protection by women alone is insufficient.

Part 2B — Mahram Must Be Ready and Financially Covered

Hajj is Farz on the woman only when **all** of the following are already in place:

1. **Mahram (or husband) exists** and is **willing to travel** with her.
2. She has enough wealth for **her own** Zad, Rahila, and journey costs.
3. She has enough wealth for the **mahram's** journey costs as well — **nafaqa** (نفقة) [maintenance] of the mahram for that trip.

Important: It is **her duty** to afford the mahram's expenses for Hajj — **not** the mahram's duty to pay for himself so she can go. If she cannot afford both, Hajj is **not Farz** on her.

Scenarios

Situation	Hajj Farz on her?	Can she go alone?
No mahram at all	No	No
Mahram exists but refuses to travel	No	No — she cannot force him
Mahram ready but she cannot pay his costs	No	No
Mahram ready, she can pay both	Yes	Yes — with mahram
She has money; tries to go alone without mahram	No (not Farz)	No — not allowed

She does not have to:

- **Force** the mahram to travel.
- **Borrow money** or put herself in hardship to arrange the mahram's costs — if money is not there easily, Hajj is not Farz.
- **Get married** just to obtain a mahram for Hajj.

Analogy — poor man: A poor man is not told to borrow and suffer to create Zad and Rahila. Likewise, a woman is not told to borrow to create the mahram's expenses.

Principle: If an 'ibadah is tied to a **condition**, you perform it when the condition exists — you are **not** obliged to **create** the condition by hardship. When the condition is missing, **leave it** — Hajj is not Farz.

Optional: Some women collect money over years for Hajj by choice — that is **Nafl** / **optional** effort, not a Sharia command.

Two opinions — must she arrange mahram's costs if she is rich enough?

Opinion	Ruling
Preferred (Hanafi)	She needs enough for herself + mahram easily. No need to borrow or struggle.
Other opinion	Zad and Rahila are enough for her ; she must try to arrange mahram's costs herself.

Preferred view reasoning: Same as above — Sharia does not command **takalluf** (تكلف) [unnecessary burden] to manufacture a condition.

Part 2C — Husband's Permission

Journey type	Husband's permission (Hanafi)
Normal long travel	Required — she is generally under his permission for travel
Hajj / 'Umrah when Hajj is Farz and all conditions met	Not required — exception for 'ibadah (عبادة)
Nafl travel (e.g. optional 'Umrah for pleasure)	Husband may stop her — not the same as Farz Hajj

Hanafi proof by analogy: She does not need husband's permission for **obligatory Salah** or **Ramadan fast** when due — similarly, **Farz Hajj** when fully due is an exception.

Imam Shafi'i: She **still** needs husband's permission even for obligatory Hajj — because of **marital rights** (huquq al-zawj).

Class conclusion: Hanafi view accepted for **Farz Hajj** — no permission needed when Hajj is truly Wajib and all shurut are met.

Example: Brother is mahram, ready to go, she has money for both — Hajj is Farz; she may go **even if husband refuses** (Hanafi).

Part 2D — What Counts as Mahram?

Mahram = a man with whom **marriage is permanently impossible (haram forever)** — by blood, nursing, or permanent marriage relationship (e.g. father, son, brother, father-in-law, son-in-law).

Not sufficient:

- **Temporary mahram** — e.g. a relationship that only blocks marriage for a limited time; not valid for this travel rule.
- **Immature boy** — mahram by relation but too young to protect anyone.
- **Majnun** (مجنون) [insane person] — cannot handle a hard journey.
- **Majusi** (مجوسي) [fire-worshiper] non-Muslim mahram — in their religion incest may be permitted; not a safe companion in Sharia's view.
- **Kafir** (كافر) non-Muslim mahram who is **not** majusi — **some allowance** in discussion (e.g. Christian brother may travel if he protects honour); **except** the majusi case as taught.

Young girl: A **small girl** not yet at the age where fitnah is feared (class example: **before about nine years**) — **may** travel without mahram for long distance, because the reason for the rule does not apply to her yet. **After** that age, mahram is required for **Safar**.

Distance rule: Mahram is required for **Safar** $\approx$ **48 miles or more**. **Less than that** — e.g. woman living in **Makkah** going to the Haram — **no mahram condition** for that short trip (same idea as going to the masjid).

All schools agree (as taught): Even an **elderly woman** may **not** do long Hajj travel **without mahram** — hadith is ‘amm (عام) [general for all women], not limited by age.

Part 2E — Second Condition (Preview)

Not in Hayd or ‘Iddah — while in menstruation or ‘iddah, she is **not allowed** to travel for Hajj; therefore Hajj is **not Farz** during that time. When it ends, it may become Farz if other conditions exist. **Details: next class.**

Q&A from Class

Q1 — If I get wealth only shortly before Hajj (e.g. one month before Dhul Hijjah), when does Hajj become Farz?

Answer: Unlike **Zakat**, there is **no fixed “one year on wealth”** rule for Hajj. Hajj is tied to **Istita’at**, not a calendar year on money.

- Whenever you have enough to **arrange the journey** (reserve seat, provisions, family expenses, mahram’s costs if applicable, etc.), Hajj becomes **Wajib**.
- **No specific** “one month / one week before Hajj season” in Sharia — only capability matters.
- **Best practice:** Perform Hajj **as early as possible** once it becomes Farz — do not delay without reason.

Q2 — Hajj became Farz; then I lost the money and never got it again. Is Hajj still Farz?

Answer: **Yes** — it remains Farz on the person.

	Zakat	Hajj
Tied to	Wealth (mal)	The person
If wealth gone before paying	Obligation drops	Obligation does not drop
Reason	Zakat is on the money itself	Mal was only the trigger ; once Farz, it stays on him until done

He must perform Hajj when capability returns — **Hajj-e-Badal** rules apply if he dies while still owing it (if Hajj had truly become Farz earlier).

Q3 – Today women travel in groups for ‘Umrah/Hajj; visas are issued without mahram. How do we convey the Hanafi ruling?

Answer (as taught):

- Government visas and group travel **do not change** Allah’s ruling.
- If Sharia requires mahram and she goes without it, the journey is **not** the Shari’ Hajj/‘Umrah Allah wants – even if rituals are done.
- **‘Ibadah** = what Allah commanded, not personal desire.
- **Hanafi and Shafi’i** both have strict rules; Shafi’i allows **some** group-of-women scenarios for obligation – **Hanafi does not** approve that for lifting the mahram requirement.
- Sensitivity of **women’s safety** in Sharia is **severe (shadid)** – do not treat it lightly because of modern custom.

Practical note for students: Teach with wisdom and clarity; rulings are from Sharia, not from visa policy.

Summary Table – When Is Hajj Farz on a Woman? (Hanafi)

Condition	Required?
Bulugh, ‘Aql, Islam, freedom (general shurut)	Yes
Zad + Rahila (own + family + debts cleared)	Yes
Amn al-Tariq	Yes
Mahram or husband available & willing	Yes
Her + mahram’s travel costs affordable	Yes
Not in hayd/‘iddah (for travel)	Yes
Husband’s permission (when Hajj is Farz)	No (Hanafi)

Closing

- Covered: **Amn al-Tariq** (preferred: condition for **obligation**), **mahram**, **costs**, **permission**, **types of mahram**, **distance**, **Q&A**.
- **Next class:** Second women’s condition – **hayd / ‘iddah**; same time as scheduled.

Schedule (as agreed in series):

- Monday & Wednesday → **9:30 PM**
 - Tuesday, Thursday & Friday → **7:15 PM**
-

Key Arabic Terms (Quick Reference)

Arabic	Meaning
استطاعة	Capability for Hajj
أمن الطريق	Safety of the road
محرم	Unmarriageable relative (for travel)
سفر	Long journey (~48+ miles)
نفقة	Maintenance / expenses
حج البديل	Hajj by proxy
وصية	Bequest
فتنة	Trial / moral temptation
تكلف	Burden / forcing hardship

Masail e Hajj — Class 5 Summary

DATE May 19, 2026

TOPIC Iddah Travel Restrictions, Scenarios of Talaq/Wafat During Hajj Journey, and Hajj Badal

TEACHER Mufti Umar Aejaaz

Introduction

This class continued the study of conditions specific to women that affect the obligation of Hajj. After covering the condition of **Mahram** in prior sessions, two further topics were addressed today:

1. The second women-specific condition: she must not be in a state of ‘**Iddah** (عِدَّة) [waiting period after divorce or the death of a husband].
2. Scenarios of what happens when talaq or the husband’s death occurs *during* the Hajj journey.
3. The ruling of **Hajj Badal** (حَجٌّ بَدَل) [Hajj performed on behalf of another] for those physically or otherwise unable to perform Hajj themselves.
4. The condition that financial capability must coincide with the *season* of Hajj for the obligation to become binding.

Second Condition Specific to Women: Absence of ‘Iddah

A woman in her ‘iddah period — whether due to divorce or the death of her husband — is **not permitted to leave her home**. This is based on the Quranic command:

لَا تُخْرِجُوهُنَّ مِنْ بُيُوتِهِنَّ وَلَا يَخْرُجْنَ

“Do not expel them from their homes, and they themselves should not leave.”

Ref: Surah al-Talaq (65:1)

Because she is restricted from traveling during the ‘iddah, Hajj does not become obligatory upon her during this period, even if all other conditions are met.

Evidence from the Companions: ‘Abdullah ibn ‘Umar and ‘Abdullah ibn Mas’ud (رضي الله عنهما) returned women who were in ‘iddah and had set out for Hajj.

Reasoning: The ‘iddah is time-bound and cannot be delayed. Hajj, by contrast, can be performed in any subsequent year. Therefore, the ‘iddah takes priority.

Scenarios: Talaq or Husband’s Death During the Hajj Journey

If a woman had already departed for Hajj and the talaq or death of her husband occurred *mid-journey*, the rulings vary by circumstances.

Talaq al-Raj'i (Revocable Divorce)

The Nikah relationship has not yet ended. The husband may accompany her and continue the journey. It is **preferred (mustahabb)** for the husband to revoke (raj'at) the talaq so she is more comfortable during travel. The journey continues for both.

Talaq al-Ba'in / Death of Husband (Relationship Ended)

The husband is no longer her Mahram and cannot continue traveling with her. She is now in 'iddah — either **'Iddah al-Talaq** or **'Iddah al-Wafat** (عِدَّةُ الْوَفَاةِ) [waiting period after the husband's death]. The following four cases determine what she must do:

Case 1: Her Home is Closer (Less than Mafat al-Safar)

Mafat al-Safar (مَسَافَةُ السَّفَرِ) [the distance that defines travel in Shari'ah] = approximately 48 miles.

If the distance back to her home is less than 48 miles, and Makkah is farther away, she **returns home**. Going back would not constitute a new journey (safar shar'i), so she fulfills her 'iddah there as intended.

Case 2: Makkah is Closer (Less than Mafat al-Safar)

If Makkah is now less than 48 miles away, and her home is farther, she **continues forward** to Makkah. The remaining distance does not constitute safar, so the Mahram requirement no longer applies. She performs Hajj and observes 'iddah there.

Case 3: Both Home and Makkah are Within 48 Miles

Neither direction constitutes a full safar shar'i. In this case, she has a **free choice** — she may go forward to perform Hajj or return home. Both are permissible.

Case 4: Both Home and Makkah are Farther than 48 Miles (The Debated Case)

This is the scenario of a traveler from a distant country (e.g., India) who is stranded in the middle of the journey — both her home and Makkah are more than 48 miles away.

The question: Should she stay, go forward, or go back?

This depends on whether the place where she currently is constitutes a safe and comfortable city (misr).

If she is in a safe, comfortable city (Misr):

Scholar	Ruling
Imam Abu Hanifa	She must remain in that city and complete her full 'iddah there, even if another Mahram joins her. That city is treated as her home for 'iddah purposes.
Sahibayn (Imam Abu Yusuf & Imam Muhammad)	If a Mahram joins her, she may continue traveling. Without a Mahram, she must stay regardless.

If she is in an unsafe or uncomfortable place (e.g., a small village):

She cannot remain there safely. In this case:

Scholar	Ruling
Imam Abu Hanifa	She must travel to the next safe city and remain there for her 'iddah.
Sahibayn	If joined by a Mahram, she may continue all the way and complete her 'iddah while traveling.

Core difference of opinion: Does the city where she finds herself become her legal domicile (home) for the purpose of 'iddah? - **Imam Abu Hanifa:** Yes — she must remain and observe 'iddah there. - **Sahibayn:** No — it is a foreign city; 'iddah continues to count while she travels.

Note on 'Iddah Commencement

The 'iddah begins **automatically** at the moment of talaq or at the moment of the husband's death. It does not need to be formally initiated. The counting continues uninterrupted, regardless of whether she is stationary or traveling.

Hajj Badal (حَجُّ بَدَل) — Proxy Hajj

Definition and Obligation

A person who: - Possesses sufficient wealth (māl) to send someone for Hajj, **and** - Is unable to perform Hajj personally due to a physical disability, chronic illness, extreme old age, or an external barrier such as security conditions

...is **obligated** to send another person to perform Hajj on their behalf. This is called **Hajj Badal**.

This Hajj Badal is counted as their **Fard Hajj (first obligatory Hajj)**.

If the Person Performs Hajj Themselves Despite the Barrier

If such a person crosses their own barrier and personally performs Hajj (e.g., despite illness or disability), their Hajj is **valid and counted as Fard**. Shari'ah did not require them to cross that barrier, but having done so, their Hajj obligation is fulfilled.

Recovery After Hajj Badal

If the Hajj Badal has already been performed on their behalf, and the person later **recovers fully** and regains the physical capability:

- The Hajj Badal performed is now considered **nafl (supererogatory)**, not Fard.
- They are now **obligated to perform Hajj themselves**, provided they still have the financial means and meet all conditions.

Reasoning: Hajj Badal was permitted due to necessity. When the necessity is removed, the original obligation of performing Hajj personally is restored.

Analogy: The Poor Person Who Performs Hajj

A person who is financially incapable of Hajj but nonetheless manages to go and perform it — fulfilling all other conditions (sane, adult, free) — has performed their **Fard Hajj**. They need not repeat it. Although the financial condition was not met, they themselves crossed that barrier, so Shari'ah counts it.

Comparison with a Slave or Minor:

Person	Status	Hajj Counts as Fard?
Poor person who manages to go	Subject of obligation, financial condition absent	✅ Yes — barrier crossed
Slave (abd)	Not a subject of the obligation	❌ No — must repeat after freedom
Minor (child)	Not a subject of the obligation	❌ No — must repeat after maturity

A slave or minor performing Hajj must repeat it once they become legally responsible (mukallaf). This is because they were never the *subject* (mahall) of the obligation in the first place — unlike the poor free adult, who is a subject of the obligation; the barrier was only the financial one.

Analogy with Jumu'ah: If a slave attends and performs Jumu'ah, it is counted as his Jumu'ah prayer and he does not need to make up Zuhr. Similarly, if a slave performs Hajj, the situation differs — because the foundational obligation of Hajj does not rest upon him as it does for a free person.

Financial Capability and the Hajj Season

Two Scenarios

Scenario 1 — Capability Acquired Outside the Hajj Season:

A person acquires sufficient māl, but the Hajj season is not currently open. In this case, he is **free to spend that money** as he wishes. Hajj does not become immediately obligatory. He may save it for Hajj or use it for other purposes.

Scenario 2 — Capability Acquired During the Hajj Season (or Carried Over Into It):

If a person has the māl and the Hajj season arrives — i.e., the time when people are preparing and departing for Hajj — then it becomes **obligatory upon him to use that māl for Hajj**. He is no longer free to spend it elsewhere on non-necessities.

Analogy with Wudu' and Water: - If a person has water and it is not time for Salah, he may use it freely. - If the time of Salah enters and he has water, it becomes obligatory to use it for wudu'. He may not divert it for other non-essential uses.

Immediate (Fawri) vs. Delayed (Tawsi') Obligation

There is a scholarly difference of opinion on whether the obligation of Hajj must be fulfilled **immediately** (in the very first year of capability) or whether it allows **delay (tawsi')**.

View	Position
Immediate (Fawri):	Hajj must be performed the first available year; spending the māl elsewhere is impermissible.
Delayed (Tawsi') — Preferred (Mufta Bihi) Opinion:	Hajj may be deferred; the māl may be spent elsewhere. However, the <i>obligation</i> of Hajj remains binding. If the person loses capability later, the wujub (obligation) is not dropped — it remains due upon him. He will be sinful if he dies without having performed it.

Key principle: The Wujub of Hajj **does not drop** due to subsequent loss of wealth. If Hajj became obligatory in the season of capability, it remains obligatory even if the māl is later spent or lost.

Q&A from Students

Q: Many people — especially in India and Pakistan — delay Hajj because they say they need the money to marry off their daughters or meet other family responsibilities. Is there any Shari'i basis for this delay?

A (Teacher): The expenses of a daughter's marriage are not Shari'i necessities — they are customs and cultural obligations that people make binding upon themselves. Shari'ah has not mandated extravagant marriage expenditures. Therefore, Hajj **cannot be delayed** on this basis. Per the preferred opinion (tawsi'), the person will not be deemed sinful for delaying due to such reasons — but the obligation of Hajj **remains binding** on him. If he dies without performing it, he will be considered sinful in the sight of Allah. The better course is to perform Hajj as early as possible.

Closing / Next Class

Next topic: The **Arkan** (أركان) [pillars/integrals] of Hajj — specifically: 1. The **Fard** (obligatory) components 2. The **Wajib** (necessary) components

These will be covered with full details in the next class, insha'Allah.

Notes compiled from class transcript — Darul Uloom Wal Funoon | Reference text: Badā'ī' al-Ṣanā'ī' (al-Kāsānī), vol. 3 | Compiled by: Arif Shaikh

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Masail e Hajj — Class 6 Summary

DATE May 21, 2026

TOPIC Arkān of Hajj: Wuqūf Arafah — its obligation, place, timing, and related rulings

TEACHER Mufti Umar Aejaaz

Introduction

This class begins the study of the **Arkān** (أَرْكَان) [pillars] of Hajj — the mandatory actions without which Hajj is not performed at all. The two arkān are:

1. **Wuqūf Arafah** (وُقُوفُ عَرَفَةَ) — standing at the plain of Arafah.
2. **Tawāf al-Ziyārah** (طَوَافُ الزِّيَارَةِ) — details to follow in a future class.

This session focuses entirely on Wuqūf Arafah, covering six key points:

1. The **dalīl** (evidence) behind its obligation
2. The **place** where it is performed
3. The **time** in which it is performed
4. The **duration** of the stay
5. Rulings related to the wuqūf
6. What happens if someone **misses** the wuqūf

Point 1 — The Dalīl (Evidence) for the Farḍiyyah of Wuqūf Arafah

Allah obligated Hajj in the Quran in a **mujmal** (مُجْمَل) [general] manner — without specifying its details. The details were provided by the Prophet ﷺ through aḥādīth. He explained what the essence of Hajj is:

Ḥadīth 1

الْحَجُّ عَرَفَةُ

“Hajj is Arafah.”

(hadith as cited in class — confirm in hadith index)

The meaning is: *the Hajj is [essentially] the standing at Arafah*. The Prophet ﷺ based the completion of Hajj upon this single action, indicating that it is the **farḍ** [obligatory pillar] without which Hajj does not exist at all.

The Nature of “Completion” (Tamām) Here

A question arises: when the completion of something depends on an action, that action should be **wājib**, not farḍ — because a wājib is what completes an already-existing thing. The answer is that **completion (tamām)** is of two types:

1. **Completion in the sense of existence (wujūd)**: The thing does not exist at all without the action.
2. **Completion in the sense of perfection (kamāl)**: The thing exists but remains incomplete.

Here, the first meaning is intended. The ḥadīth means: whoever performs the wuqūf at Arafah, his Hajj **comes into existence**. Without it, the Hajj has no existence whatsoever. Since the Quranic āyah obligating Hajj is at the level of **fard**, and this ḥadīth is its tafsīr, the wuqūf too is established as fard — not merely wājib.

Ḥadīth 2 / Āyah of Quran

تُمْ أَفِيضُوا مِنْ حَيْثُ أَفَاضَ النَّاسُ

“Then return from where the people return from.”

Ref: Sūrah al-Baqarah (2:199)

Background

During the Jāhiliyyah period, the people of Makkah (the people of the Ḥaram) would **not go to Arafah** during Hajj. They would say: *“We are the people of Allah’s Ḥaram; we will not leave its boundaries like others.”* Since Arafah is located **outside** the boundary of the Ḥaram, they would remain within it and skip the wuqūf.

This āyah was revealed commanding them to return from where other people return from — i.e., from Arafah. The command to return from Arafah implicitly requires going there in the first place. Thus, indirectly, this is an order to perform the wuqūf.

Dalīl 3 — Ijmā‘ (Consensus)

There is **ijmā‘** (consensus) among all the scholars and schools of thought that Wuqūf Arafah is fard. No difference of opinion exists on this point.

Point 2 — The Place of Wuqūf

The entire plain of Arafah is the place for the wuqūf, as stated by the Prophet ﷺ:

وَقَفْتُ هَاهُنَا وَعَرَفْتُ كُلَّهَا مَوْقِفٌ

“I stood here, and the whole of Arafah is a place of standing.”

(hadith as cited in class — confirm in hadith index)

The Prophet ﷺ mentioned the wuqūf in **absolute terms** without restricting it to any particular spot. Therefore, one may stand anywhere in the field of Arafah.

Exception: Baṭn ‘Uranah (بَطْنُ عُرْنَةَ)

The only exception is the **Valley of ‘Uranah**, a specific strip of land within the area. The Prophet ﷺ prohibited standing there for wuqūf and called it a **“mawqif of Shayṭān”** — because Shayṭān would love for people to stand there, as their wuqūf would not be valid. Apart from this valley, the entire field is permissible.

Point 3 — The Time of Wuqūf

The time for Wuqūf Arafah is fixed as follows:

- **Beginning:** After the **zawāl** (when the sun passes its zenith and *Zuḥr* time begins) on the **9th of Dhul Ḥijjah** (*Yawm al-ʿArafah*).
- **End:** Before the **Fajr time** begins on the **10th of Dhul Ḥijjah** (*Yawm al-Naḥr*).

This gives a window of less than twenty-four hours. Any stay at Arafah outside this window is **not counted** as wuqūf — similar to how a ṣalāh cannot be performed before its prescribed time.

Evidence for the Beginning

خُذُوا عَنِّي مَنَاسِكَكُمْ

“Learn from me your rites of Hajj.”

(hadith as cited in class — confirm in hadith index)

The Prophet ﷺ performed the wuqūf after the *zawāl*, and instructed the Ummah to learn their Hajj from his practice. This establishes the *zawāl* as the starting point.

Evidence for the End

مَنْ أَدْرَكَ عَرَفَةَ بَلِيلٍ فَقَدْ أَدْرَكَ الْحَجَّ ، وَمَنْ فَاتَهُ عَرَفَةُ بَلِيلٍ فَقَدْ فَاتَهُ الْحَجُّ

“Whoever reaches Arafah at night has attained the Hajj; and whoever misses Arafah at night has missed the Hajj.”

(hadith as cited in class — confirm in hadith index)

Difference of Opinion: Day vs. Night

Scholar	Position
Aḥnāf (Ḥanafī school) — Majority view	The time for wuqūf includes both day and night . One may perform it at any point after the <i>zawāl</i> on the 9th until Fajr of the 10th.
Imām Mālik	The actual time for wuqūf is only the night portion . If someone was present only during the daytime and left before night, their wuqūf is not valid .

Imām Mālik’s Dalīl: He relies on the ḥadīth: “Whoever reaches Arafah at night has attained the Hajj.” Since the ḥadīth restricts attainment to the night, Imām Mālik restricts the wuqūf to the night.

Ḥanafī Response:

مَنْ وَقَفَ بِعَرَفَةَ بَلِيلٍ أَوْ نَهَارٍ فَقَدْ تَمَّ حَجُّهُ

“Whoever stood at Arafah — whether by night or by day — his Hajj is complete.”

(hadith as cited in class — confirm in hadith index)

This explicitly includes the **daytime** as a valid period. Both day and night are options; neither is exclusive.

Additional Reasoning: Wuqūf Arafah is one of the actions of Hajj, and other actions of Hajj are not restricted to nighttime alone. By analogy, the wuqūf should likewise not be restricted to the night.

Responding to Imām Mālik’s Ḥadīth: The ḥadīth cited by Imām Mālik says “*whoever reaches Arafah at night has attained the Hajj.*” The Ḥanafī response: this ḥadīth affirms that the night is a valid time, but it is **silent** about the daytime — it neither validates nor rejects it. Silence cannot be used as evidence to negate the validity of the daytime wuqūf.

Point 4 — Case of Mistaken Dates

Case: Wuqūf Performed on the 10th (Thinking it was the 9th)

If the people counted the month of Dhul Qa’dah (the month before Dhul Ḥijjah) as thirty days, performed the wuqūf on what they believed was the 9th, but later witnesses testified that Dhul Qa’dah was only twenty-nine days — meaning the wuqūf was actually performed on the **10th of Dhul Ḥijjah**:

Ruling: The wuqūf is **valid**. What is done is done. It cannot be invalidated because: - It affects a large number of people, not just one individual. - Their money and effort would go to waste. - It happened due to a genuine mistake, which is forgiven.

The dalīl is the ḥadīth:

صَوْمُكُمْ يَوْمَ تَصُومُونَ وَأَضْحَاكُمْ يَوْمَ تَضْحُونَ وَحَجُّكُمْ يَوْمَ تَحُجُّونَ

“Your fasting is the day you fast, your sacrifice is the day you sacrifice, and your Hajj is the day you perform it [according to your counting].”

(ḥadīth as cited in class — confirm in ḥadīth index)

Why the Testimony is Not Accepted to Invalidate

1. The testimony of those witnesses is a **shahādah for nafi** (testimony to negate), which is inherently weaker (badīlī). It seeks to invalidate the Hajj of the masses, and such negating testimony is not given precedence.
 2. Even if the witnesses are trustworthy, accepting such testimony would create **ḥaraj** (حَرَج) [undue hardship] for all the pilgrims. Such a mistake is a normal occurrence that cannot be avoided, so it is forgiven.
-

Case: Wuqūf Performed on the 8th (Thinking it was the 9th)

If the people counted the previous month as twenty-nine days and performed the wuqūf on what they thought was the 9th, but it later turned out to be only the **8th of Dhul Ḥijjah**:

Ruling: The wuqūf is **not valid**. They must repeat it on the actual 9th, because there is still time and opportunity to perform it correctly. The necessity that would justify accepting a premature wuqūf does not exist here — the correct date is still ahead.

Key distinction: - Wuqūf on the 10th (after the time has passed) → valid, because there is no chance to repeat it. - Wuqūf on the 8th (before the time has arrived) → invalid, because the 9th is still to come and the correct wuqūf can still be performed.

Closing / Next Class

The remaining discussion points on Wuqūf Arafah — including the **minimum duration of stay** and **what happens if someone misses the wuqūf entirely** — will be covered in the next class, inshā'Allāh.

Notes compiled from class transcript — Darul Uloom Wal Funoon | Reference text: Badā'i' al-Ṣanā'i' (al-Kāsānī), vol. 3 | Compiled by: Arif Shaikh

Masail e Hajj — Class 7 Summary

DATE May 22, 2026

TOPIC Wuqūf Arafah (continued) — witness testimony cases, duration of stay, departure rulings, missing the wuqūf, and days of Uḍḥiyah

TEACHER Mufti Umar Aejaaz

Introduction

This class continues the discussion of **Wuqūf Arafah** from Class 6, completing the remaining points:

1. Further cases of **mistaken dates** and witness testimony
2. The **duration** of stay at Arafah (farḍ minimum and wājib duration)
3. The classification of **ḥadīth** (Uṣūlī vs. Muḥaddithīn divisions)
4. Rulings on **departing before sunset** (ghurūb)
5. What happens if someone **misses** the wuqūf entirely
6. Bonus Q&A: The number of days of **Uḍḥiyah (Qurbānī)**

Continuation — Mistaken Dates: The Analogy of Qiblah

The case discussed in Class 6 — where the wuqūf was performed on the 10th due to a counting error — is compared to the case of **ṣalāh and qiblah**:

If a person does not know the exact direction of the qiblah, he is ordered to use his best judgement (**ijtihād**) and pray facing the direction he believes to be correct. If it later turns out he faced the wrong direction, his ṣalāh is **still valid** — because he practiced upon the Sharʿī dalīl available to him. Similarly, the people practiced upon the Sharʿī ruling (completing the month at thirty days when the moon was not sighted). Their action remains valid even after the error is discovered.

Witness Testimony — Detailed Scenarios

Scenario 1: Witnesses Appear After the Wuqūf is Complete

If the wuqūf has already been performed and everything is done, and witnesses appear one or two days later testifying that the moon was sighted on the 29th (meaning the wuqūf was actually on the 10th, not the 9th):

Ruling: Their testimony is **not acted upon**. What is done is done. The wuqūf was performed on the basis of the Sharʿī dalīl and cannot be invalidated retroactively.

Scenario 2: Witnesses Appear Before Zawāl on the Day of Wuqūf

If witnesses appear on the morning of what the people believe is the 9th — before the zawāl, before the wuqūf has begun — and testify that it is actually the 10th:

The ruling depends on **whether the Imām (Amīr al-Ḥajj) has enough time** to gather the people in Arafah:

Situation	Ruling
Enough time remains (e.g., testimony comes after Maghrib, leaving 12+ hours until Fajr)	The Imām must accept the testimony, make the announcement, and gather the people for the wuqūf. If they do not perform the wuqūf despite having time, their Hajj is not valid .
Not enough time (testimony comes too late to organize the gathering on short notice)	The Imām does not accept the testimony. The people proceed with their original counting and perform the wuqūf the next day after zawāl.

Note on historical context: In early times, delays in witness testimony were understandable because communication was difficult. In modern times, late testimony raises questions about the witnesses' authenticity, since information travels quickly and moon-sighting announcements are widely accessible.

Scenario 3: What About the Witnesses Themselves?

If the witnesses know the actual date but the Imām has declared differently, and the wuqūf is performed on what the witnesses know to be the 10th:

Ruling: The witnesses **must follow the Imām's declaration**, not their personal knowledge. Their wuqūf alongside everyone else is valid.

Rationale: The declaration of dates is in the authority of the Imām (**Amīr al-Muslimīn**). Everyone must follow one unified determination; individual knowledge does not override the collective ruling.

صَوْمُكُمْ يَوْمَ تَصُومُونَ وَحَجُّكُمْ يَوْمَ تَحُجُّونَ

"Your fasting is the day you fast, and your Hajj is the day you perform it [collectively]."

(hadith as cited in class — confirm in hadith index)

Scenario 4: Imām Rejects Testimony, but Some People Follow It

If two witnesses testify on the 29th of Dhul Qa'dah that they saw the moon, but the Imām rejects their testimony for a valid reason (e.g., the sky was clear and no one else saw it — suggesting something unreliable), and he completes the month at thirty days:

Some people ignore the Imām's ruling and follow the rejected testimony, performing the wuqūf one day early (on what is the 8th according to the Imām's counting, but the 9th according to the rejected testimony).

Ruling: Their wuqūf is **not valid**. Once the Imām has rejected the testimony, it carries no legal weight. The Imām's declaration is the authoritative ruling, not the testimony of individuals whose claim was officially dismissed.

Point 5 — Duration of Stay at Arafah

The duration of stay at Arafah has two levels:

The Farḍ (Minimum) Duration

The farḍ is fulfilled by **any amount of stay** — even a single second. The evidence is that the Prophet ﷺ mentioned the wuqūf in **absolute terms** without specifying a minimum duration:

مَنْ وَقَفَ بِعَرَفَةَ...

“Whoever stood at Arafah...”

Since no time limit is specified, even the briefest presence counts. The following conditions apply to the farḍ:

- The person may be in **any state** — standing, sitting, riding, walking, or even passing through.
- Even if the person is **unconscious** or **asleep**, the stay is counted.
- **Niyyah (intention)** is **not required** for the farḍ wuqūf. This differs from Ṭawāf, where niyyah is required because Ṭawāf takes place inside the Masjid (which one must enter with intention). Arafah is an open field — mere physical presence suffices.

The Wājib Duration

The wājib level requires staying from the **zawāl on the 9th of Dhul Ḥijjah until the ghurūb (sunset)**. This means being present for some portion of the night as well — once Maghrib time begins, one has caught some part of the night.

Why is this wājib and not farḍ?

The obligation of this extended stay is established through **Khabar Wāḥid** (a ḥadīth narrated through a single chain), not through **Dalīl Qaṭʿī** (definitive evidence). In Ḥanafī uṣūl:

- **Farḍ** = obligation proven by dalīl qaṭʿī (definitive evidence: Quran, mutawātir ḥadīth, or mashhūr ḥadīth).
- **Wājib** = obligation proven by dalīl ḡannī (probable evidence: khabar wāḥid or ḡāhir of a text).

Since the extended stay is proven by khabar wāḥid, it is wājib, not farḍ.

Contrast with the Shāfiʿī School

In the Shāfiʿī school, there is **no concept of wājib** as a separate category between farḍ and sunnah. For them, an obligation is either farḍ or sunnah — regardless of whether it is proven by dalīl qaṭʿī or dalīl ḡannī. Since the long stay is not farḍ according to them, it falls to the level of sunnah.

Practical difference: - If someone misses a **farḍ**, the action does not count at all. - If someone misses a **wājib** (Ḥanafī), the action counts but is incomplete, and a penalty (dam) is required. - If someone misses a **sunnah** (Shāfiʿī), there is no penalty.

Excursus: Classification of Ḥadīth (Uṣūlī vs. Muḥaddithīn)

The teacher clarified the distinction between the two systems of ḥadīth classification, since the ruling above depends on it.

Division According to the Muḥaddithīn (Ḥadīth Scholars)

The Muḥaddithīn divide ḥadīth into two main categories:

1. **Mutawātir**: Narrated by such a large number of narrators in every era that it is inconceivable they all agreed on a lie — whether intentionally or unintentionally. This produces certainty (**‘ilm al-yaqīn**).
2. **Āḥād**: Everything that does not reach the level of mutawātir. This is further subdivided into:
 - **Mashhūr**: Narrated by at least three narrators in every era.
 - **‘Azīz**: Narrated by at least two narrators in every era.
 - **Gharīb**: Narrated by a single narrator in some era.

Division According to the Uṣūliyyīn (Ḥanafī Legal Theorists)

The Uṣūliyyīn divide ḥadīth into **three** direct categories:

1. **Mutawātir**: A ḥadīth that became famous and widely narrated in the **first era** — the era of the Ṣaḥābah. A great number of Ṣaḥābah narrated it, producing certainty.
2. **Mashhūr**: A ḥadīth that was not narrated by a large number in the first era (among the Ṣaḥābah), but gained fame and wide narration in the **second era** — the era of the Ṭābi‘īn. The first two eras (Ṣaḥābah and Ṭābi‘īn) are the eras of legislation (**tashrī‘**), so fame achieved in either counts as strong evidence.
3. **Khabar Wāḥid**: A ḥadīth that gained fame only **after** the first two eras. Regardless of which later generation it became famous in, it remains khabar wāḥid because the era of tashrī‘ has passed. Its evidence is **ẓannī** (probable), not qaṭ‘ī (definitive).

Key implication: In Ḥanafī uṣūl, mutawātir and mashhūr ḥadīth produce dalīl qaṭ‘ī and can establish a **farḍ**. Khabar wāḥid produces dalīl ẓannī and can only establish a **wājib**.

Point 6 — Departing Arafah Before Sunset (Ghurūb)

Departing Before Ghurūb but Still Within Arafah

If a person starts leaving before sunset but is still physically within the boundaries of Arafah when ghurūb occurs, there is **no penalty**. He is still in the field.

Departing Before Ghurūb and Leaving Arafah Entirely

If a person crosses the boundary of Arafah before ghurūb:

School	Ruling
Ḥanafī	A dam (penalty — slaughtering a medium-sized animal) is wājib upon him, because he missed the wājib of staying until sunset.
Shāfi‘ī	No dam , because in their view the extended stay is sunnah, not wājib. Missing a sunnah carries no penalty.

How Can the Dam Be Dropped?

The dam can be dropped if the person **returns to Arafah before ghurūb** and is present when sunset occurs.

Opinion	Ruling
Majority opinion (preferred)	If he returns before ghurūb and is present at sunset, the dam is dropped — because he has compensated for what he missed.
Imām Zufar	Once the dam becomes wājib (by leaving), it cannot be dropped even if he returns. The wājib was established the moment he departed.

Note: This is analogous to the case of crossing the miqāt without iḥrām: if a person returns and puts on the iḥrām before crossing again, the dam is dropped according to the majority, but remains according to Imām Zufar.

Returning After Ghurūb

Situation	Ruling
He returns after ghurūb but the Imām (Amīr al-Ḥajj) is still in Arafah	Two narrations exist. The preferred (rājih) opinion: the dam is dropped , because the reason for the penalty was leaving before sunset, and he has now compensated by returning while the Imām is still present.
He returns after ghurūb and the Imām has already departed	The dam is established and cannot be dropped according to anyone. The ghurūb has passed and the opportunity is gone.

Missing the Wuqūf Entirely

If a person does not go to Arafah at all during the entire window (from zawāl on the 9th to Fajr of the 10th) — for example, he stayed in his hotel room or elsewhere:

Ruling: His Hajj is **missed entirely**. There is no remedy for this year. He must make **qadā'** (repeat the Hajj) the following year. The wuqūf is the farḍ pillar without which the Hajj has no existence.

Bonus Q&A: Days of Uḍḥiyah (Qurbānī) — Three or Four Days?

A student asked about the difference of opinion on the number of slaughtering days.

Ḥanafī Position (Majority): Three Days

The days of slaughtering (**Ayyām al-Naḥr**) are the **10th, 11th, and 12th of Dhul Ḥijjah** — three days.

Dalīl 1 — Statement of Ibn ʿUmar (raḍiyallāhu ʿanhu)

Ibn ʿUmar explained the āyah:

وَاذْكُرُوا اللَّهَ فِي أَيَّامٍ مَّعْدُودَاتٍ

“And remember Allah during the counted days.”

Ref: Sūrah al-Baqarah (2:203)

He said: “*Yawm al-Naḥr (the 10th) and two days after it.*” This gives 10, 11, 12 — three days.

Uṣūlī principle: When a Ṣaḥābī does tafsīr of an āyah, and the content is of the kind that **cannot be derived through logic or personal reasoning** (e.g., fixing specific numbers of days), it is treated as though it goes back to the Prophet ﷺ (**marfū‘ ḥukman**). This is because the only source for such information for a Ṣaḥābī would have been the Prophet ﷺ himself.

Dalīl 2 — Ḥadīth of the Prophet ﷺ

“Whoever among you slaughters, let nothing of its meat remain in his house after the morning of the third day.”

(ḥadīth as cited in class — confirm in ḥadīth index)

This prohibition (which was temporary, for a year of hardship) confirms that the Eid days are **three**: if a fourth day of slaughtering existed, there would still be fresh meat in the house, and the prohibition would not have made sense.

Dalīl 3 — Statements of Other Ṣaḥābah

‘Abdullāh ibn ‘Abbās and ‘Abdullāh ibn Mas‘ūd (raḍiyallāhu ‘anhum) also stated the same: the days of sacrifice are **yawm al-naḥr and two days after it** (10th, 11th, 12th).

Shāfi‘ī Position: Four Days

Imām al-Shāfi‘ī holds that the slaughtering days extend to the **13th of Dhul Ḥijjah**, making it four days (10th–13th).

Shāfi‘ī Dalīl

A ḥadīth narrated through Abū Sa‘īd and others:

“All the days of Tashrīq are days of slaughtering.”

(ḥadīth as cited in class — chain has weakness, see below)

The days of Tashrīq are the 11th, 12th, and 13th. Combined with the 10th, this gives four days.

Additionally, aḥādīth stating these are “*days of eating, drinking, and enjoyment*” (which is why fasting on the 13th is not permitted) are used to argue that they must also be days of slaughtering.

Ḥanafī Response

The ḥadīth “*all the days of Tashrīq are days of slaughtering*” has a weakness in its chain — it contains a narrator who is considered **ḍa‘īf (weak)**. Some scholars have even declared the ḥadīth **mawḍū‘ (fabricated)**. This is why the majority of scholars did not use it as evidence.

The aḥādīth about “*days of eating and drinking*” are authentic but do **not directly state** that the 13th is a day of slaughtering. Imām al-Shāfi‘ī derived that point through inference (istidlāl), but the wording is not explicit. By contrast, the Ḥanafī evidences are clear and direct.

Summary:

Ḥanafī (Majority)	Shāfi‘ī
10th, 11th, 12th — three days	10th, 11th, 12th, 13th — four days
Based on clear, authentic narrations from multiple Ṣaḥābah	Based on a ḥadīth with a weak chain, supplemented by indirect inference from authentic aḥādīth

Closing / Next Class

This concludes the discussion on **Wuqūf Arafah**. The next topic — **Ṭawāf al-Ziyārah** (the second rukn of Hajj) — will be covered after a one-week break for the blessed days of Dhul Ḥijjah and Eid al-Aḍḥā. Classes resume on Monday, inshā’Allāh.

Special sessions on Qurbānī masā’il (selection of animal, method of slaughter, and related rulings) will be held over the weekend before Eid, inshā’Allāh.

Notes compiled from class transcript — Darul Uloom Wal Funoon | Reference text: Badā’i‘ al-Ṣanā’i‘ (al-Kāsānī), vol. 3 | Compiled by: Arif Shaikh

Masail e Hajj — Class 8 Summary

DATE May 23, 2026

TOPIC Ahkām e Eid ul Adhā & Qurbānī — Virtues of the first ten days, Eid Sunnah acts, Qurbānī obligation, animals, partnerships, and timing

TEACHER Mufti Umar Aejaaz

Introduction

This special weekend session covers practical rulings of **Eid al-Adhā** and **Qurbānī (Uḍḥiyah)** based on the short kitāb *Ahkām e Eid al-Adhā wa Qurbānī* by the late **Muftī Muḥammad Shafī‘ Uthmānī** (rahimahullāh), former Grand Muftī of Pakistan. The goal is to revise and refresh these masā’il before the blessed days begin.

Faḍā’il: Virtues of the First Ten Days of Dhul Ḥijjah

The first ten days of Dhul Ḥijjah are the **best days of the entire Islamic calendar** (after Ramaḍān). Allah has taken an oath in their name:

وَالْفَجْرِ وَلَيَالٍ عَشْرٍ

“By the dawn, and by the ten nights.”

Ref: Sūrah al-Fajr (89:1–2)

Whenever Allah takes an oath by something, it indicates its immense value.

Key virtues (from aḥādīth as cited in class): - One fast during these ten days equals the reward of **one year** of fasting. - The ‘ibādah of one night among these ten nights equals the reward of **Laylat al-Qadr**. - The **9th of Dhul Ḥijjah** (Yawm al-‘Arafah) is the most special: fasting on it expiates sins of **one year before and one year after**. - The night between the 9th and 10th is the best of these nights.

Recommended: Not Cutting Nails and Hair

A person who intends to slaughter an animal should **not cut their nails or hair** during these ten days — resembling one in the state of **iḥrām**. This is a recommended practice (mustaḥabb), not obligatory.

Practical advice: - Trim nails and settle hair **before** the ten days begin. - If nails or hair become unsightly or cause difficulty (e.g., moustache interfering with eating), they **may be cut** — removing harm takes priority over gaining the benefit of a recommended act.

For those sending Qurbānī abroad: If the Qurbānī is performed in another country where Eid is one day later, the person should wait until the slaughter is done there before cutting nails/hair, to achieve this sunnah fully.

Takbīr al-Tashrīq

It is **wājib** to recite the Takbīr al-Tashrīq after every **farḍ ṣalāh** from the **Fajr of the 9th of Dhul Ḥijjah** to the **‘Aṣr of the 13th of Dhul Ḥijjah** — spanning five days and twenty-three prayers.

- Obligatory on **both men and women**, whether praying with jamā‘ah or alone.
 - **Men** recite it audibly (not excessively loud — just audible).
 - **Women** recite it quietly.
 - It is recited **once** after each farḍ prayer.
-

Sunan of Eid Day

The following acts are **mustahabb/masnūn** on the day of Eid al-Aḍḥā:

1. **Waking up early** in the morning.
 2. **Taking a bath (ghusl)**.
 3. **Using miswāk**.
 4. **Wearing the best available clothing** — not necessarily expensive; just the best one has.
 5. **Applying perfume (‘itr)**.
 6. **Not eating before the Eid prayer** — the first thing to eat should be the **uḍḥiyah meat** (the meat from one’s sacrifice). This is the “hospitality from Allah’s side.” This is recommended, not obligatory.
 7. **Reciting takbīr (Allāhu Akbar)** while walking to the muṣallā — in a moderate voice, not silent and not excessively loud.
-

Eid Prayer — Key Rulings

The Eid prayer is **wājib**. It has a specific methodology with **six additional takbīrāt**:

- **First rak‘ah**: Three extra takbīrāt **before** the qirā’ah.
- **Second rak‘ah**: Three extra takbīrāt **after** the qirā’ah.
- In each takbīr, raise the hands and let them drop — **except** the third takbīr of the first rak‘ah, because qirā’ah follows it (hands remain folded for qirā’ah).

Easy way to remember: 3 before (first rak‘ah), 3 after (second rak‘ah). Raise and drop hands each time, except the one before qirā’ah.

If the Imām misses the takbīrāt: No sajdah sahw is performed. The reason: it is a large gathering, and performing sajdah sahw could create confusion and fitnah among people who lack detailed knowledge of these rulings.

Khuṭbah after Eid prayer: It is **masnūn** to listen to the khuṭbah. One should not leave or get engaged in other activities.

Qurbānī (Uḍḥiyah) — The Slaughtering

Status and Virtues

Qurbānī is one of the greatest acts of ‘ibādah during these days. No deed is more beloved to Allah on these days than the slaughtering.

It is a remembrance of the **Sunnah of Ibrāhīm** (‘alayhi al-salām), who was commanded to sacrifice his son in a dream and proceeded to obey.

Virtues from ḥadīth (as cited in class): - In exchange of every **hair** of the animal, there is one reward. If the animal has wool, every strand of wool carries a reward. - The person is **forgiven** before the first drop of blood falls on the ground — provided the intention is sincere.

Ruling — Wājib or Sunnah?

Scholar	Ruling
Imām Abū Ḥanīfah (preferred Ḥanafī opinion)	Wājib — based on the Prophet ﷺ’s warning: “Whoever has the capability but did not slaughter, let him not come near our muṣallā.” Such a severe warning is only issued for missing a wājib.
Ṣāḥibayn, Imām al-Shāfi‘ī, Imām Mālik, Imām Aḥmad	Sunnah Mu’akkadah — strongly emphasized sunnah, but not wājib.

Upon Whom is Qurbānī Obligatory?

Basic Criteria (for all wājibāt)

The person must be: 1. **Muslim** 2. ‘**Āqil** (sane) 3. **Bāligh** (mature)

Specific Criteria for Qurbānī

In addition to the above: 4. **Muqīm** (resident, not a musāfir/traveler) 5. **Ṣāḥib al-Niṣāb** — owner of the niṣāb amount beyond basic needs (**ḥājāt aṣliyyah**)

The niṣāb is the value of **612+ grams of silver** (the lower of the two niṣāb thresholds of gold and silver).

Two Key Differences from Zakāt Niṣāb

Point	Zakāt	Qurbānī / Ṣadaqat al-Fiṭr
Ḥawl (completion of year)	Required — niṣāb must be held for one full year	Not required — even if one acquires the niṣāb on the last day of Eid before sunset, Qurbānī becomes wājib
Exemptions for personal-use items	Broader — e.g., a backup car (not for trade) is not counted in niṣāb	Narrower — a backup car, extra house not in use, etc. are counted toward niṣāb

Example: If a person has two houses — one in use, one as backup — the value of the backup house is counted in the Qurbānī niṣāb (but not in Zakāt niṣāb).

Women and Qurbānī

Qurbānī is **individually obligatory** upon women who meet the niṣāb, even if their only asset is jewelry.

Niṣāb calculation for women: - If she has **only gold** (no silver, no cash, no other assets): the **niṣāb of gold** must be completed. - If she has a **mixture** (gold + some cash, or gold + silver): the **niṣāb of silver** (the lower threshold) is used — the combined value is assessed against 612g of silver.

Practical advice: Women should plan for Qurbānī throughout the year (e.g., saving a small amount daily), rather than waking up on Eid day wondering how to arrange funds. The husband commonly takes this burden upon himself, which is permissible — but it must be done **with the wife's knowledge**.

One Qurbānī per Person, Not per Family

A common misconception is that one Qurbānī suffices for the entire family. This is **incorrect** in the Ḥanafī school. Every individual who is Muslim, 'āqil, bāligh, muqīm, and ṣāḥib al-niṣāb must have their own Qurbānī performed.

Debt and Niṣāb

If a person is under debt, the debt amount is **deducted** from their total assets. If the remainder still meets the niṣāb, Qurbānī is wājib.

For long-term loans (home loans, etc.): Only the **yearly installment due** is deducted — not the entire loan amount. Otherwise, most wealthy business owners with large commercial loans would fall below the niṣāb, which defeats the purpose.

Example: A person has \$10,000 in assets and a home loan with a \$6,000 annual installment. Only \$6,000 is deducted → \$4,000 remaining → check if this meets the niṣāb.

No Qurbānī on Immature Children or Insane Persons

- There is **no** Qurbānī obligation on an **immature child** (not bāligh), regardless of their wealth.
- There is **no** Qurbānī obligation on a **majnūn** (insane person).
- However, it is **recommended** for a wealthy father to perform Qurbānī on behalf of his immature children.

Poor Person Who Buys an Animal

If a poor person (not ṣāhib al-niṣāb) **purchases an animal with the intention of Qurbānī**, the Qurbānī becomes **wājib** upon him on account of that purchase.

Days and Timing of Qurbānī

Three Days

The days of slaughtering are the **10th, 11th, and 12th of Dhul Ḥijjah** — three days. The first day is the best.

- Slaughtering at **night** is **makrūh** (the Prophet ﷺ did not do it).
- The time technically begins after **Fajr** on the 10th (Shar‘ī daytime begins at Fajr, not sunrise).

In Cities and Large Villages (Where Eid Prayer is Performed)

Slaughtering **must be done after the Eid prayer**. If done before the prayer, the Qurbānī is **not valid** and must be **repeated** (the meat is still ḥalāl, but the wājib is not fulfilled).

If there are multiple masjids: Once the first masjid in the city completes its Eid prayer, slaughtering becomes permissible for the entire city.

In Small Villages (Where No Eid Prayer is Performed)

Slaughtering may be done immediately **after Fajr** — no need to wait for any Eid prayer.

Practical shortcut: A person in the city who wants to eat early can send his animal to a nearby village where no Eid prayer is performed. The animal can be slaughtered after Fajr there, then brought back to the city. The **place of the animal** is what determines the ruling, not the person’s location.

Sending Qurbānī Abroad

When Qurbānī is sent to another country (e.g., from the US to India/Pakistan), it must be performed on a **common Eid day** — a day that is an Eid day in **both** locations:

- The place of the **animal** and the place of the **person** must both be on a valid Eid day.
 - If Eid in the US is Wednesday and Eid in India is Thursday, the Qurbānī in India must be done on **Thursday** (not Wednesday), because Wednesday is not yet Eid in India.
 - It should **not** be done on a day that would be the 13th in the person’s location (as that is beyond the valid days).
-

Charity Cannot Replace Qurbānī

Some people argue that slaughtering is a “waste of money” and that the amount should be given as charity instead. This is **incorrect**. ‘Ibādāt are fixed by Allah’s command, not by human logic. No ṣadaqah can replace Qurbānī.

Additional benefits of Qurbānī (beyond the primary purpose of ‘ibādah and remembering Ibrāhīm ‘alayhi al-salām): - Boosts the local economy where mass slaughtering occurs. - Provides the best source of protein to poor people who otherwise cannot afford meat.

Animals for Qurbānī

Three categories of animals are valid:

Category	Animals	Shares
Small animals	Goat, sheep, ram, lamb	1 share (1 animal = 1 person)
Cattle	Cow, buffalo, ox	Up to 7 shares
Camel	Camel	Up to 7 shares

Note on buffalo: Some groups object that buffalo is not mentioned in ḥadīth regarding Eid slaughtering. The Ḥanafī scholars have addressed this — the teacher will share the relevant pages from Mawlānā Yūsuf Ludhyānwī’s work on this topic.

Wild/pet animals: Only domesticated livestock of the above types are valid. Wild animals — even if kept as pets — are **not valid** for Qurbānī.

Partnerships in Larger Animals — Critical Rulings

When sharing a cow, buffalo, or camel among up to seven partners:

All Partners Must Intend ‘Ibādah

Every partner’s share must be for an act of ‘ibādah performed through slaughtering — whether Qurbānī, Walīmah, ‘Aqīqah, or similar. If even **one partner** has no ‘ibādah intention (just wants meat), the Qurbānī of **all partners** is invalidated.

The Ḥarām Income Problem

This is a very sensitive and critical case:

- If one partner’s income is **majority ḥarām**, and he pays his share from ḥarām earnings, the Qurbānī is **invalid for all partners**.
- If there is **no evidence** against a partner’s income, the default assumption is that his earning is **ḥalāl** — benefit of the doubt applies.
- Assessment is based on **ẓāhir** (apparent situation) — what is observed and known about the person’s lifestyle and sources of income.
- You are **not required** to investigate deeply, but you **must not knowingly** partner with someone whose majority income is ḥarām.

Practical advice: Choose partners who are personally known to you and whose ḥalāl earning you are reasonably confident about. When using Qurbānī services where partners are assigned by the organization, the benefit of doubt applies — as long as you have no specific evidence of a problem.

Mixed income (e.g., gas station selling both ḥalāl items and ḥarām items like alcohol/lottery): The **majority** of their income is assessed. If the majority comes from ḥalāl sources (gas, food, etc.), benefit of doubt is given.

Q&A from Students

Q: In the US, many people do one Qurbānī per family even when multiple family members are ṣāḥib al-niṣāb. Is this valid in any madhhab?

A (Teacher): In the Ḥanafī school, this is clearly not valid — it is per person. The teacher will verify the position of other schools.

Q: Hair trimming — if the moustache grows over the lip during these ten days and interferes with eating, can it be trimmed?

A (Teacher): Yes. The prohibition of cutting hair/nails is only a **recommendation**. If it causes difficulty, removing the harm takes priority. The principle: “*Removing harm is preferred over gaining benefit*” (dar’ al-mafāsīd muqaddam ‘alā jalb al-manāfi’).

Closing / Next Class

The remaining masā’il of Qurbānī (method of slaughter, distribution of meat, skins, and other details) will be covered in **tomorrow’s session** (Sunday), inshā’Allāh. After that, classes will break for **one week** for the blessed days of Eid. Regular Masā’il al-Ḥajj classes resume the following Monday.

The teacher will share two reference books: 1. *Aḥkām e Eid al-Aḍḥā wa Qurbānī* by Muftī Muḥammad Shafī‘ ‘Uthmānī (already shared as PDF) 2. An Urdu reference by Mawlānā Yūsuf Ludhyānwī (to be shared)

Notes compiled from class transcript — Darul Uloom Wal Funoon | Reference text: Aḥkām e Eid al-Aḍḥā wa Qurbānī (Muftī Shafī‘ ‘Uthmānī) | Compiled by: Arif Shaikh

Masail e Hajj — Class 9 Summary

DATE June 1, 2026

TOPIC Tawaf al-Ziyarah — obligation, evidence, rukn (hudur), and niyyah

TEACHER Mufti Umar Aejaaz

Introduction — topics in this series (overview)

This lesson begins a structured study of **Tawaf al-Ziyarah** (طواف الزيارة) [the farewell/obligatory tawaf of Hajj]. The teacher outlined the sequence of topics to be covered:

1. **Dalīl** (دليل) [evidence] behind the **wujūb** (وجوب) [obligation] of Tawaf al-Ziyarah.
2. **Rukn** (ركن) [essential pillar] of Tawaf al-Ziyarah — without it, the tawaf is not valid.
3. **Shurūt** (شروط) [conditions], **wājibāt** (واجبات) [necessary acts], and **sunan** of Tawaf al-Ziyarah (including **ṭahārah** (طهارة) [ritual purity] — detailed next class).
4. **Wuqūf** (وقوف) at the **Maqām** (مقام) [station] of Ibrāhīm during tawaf — method and ruling.
5. **Raml** (رمل) in the first three circuits — method and ruling.
6. **Fixed days** for this tawaf — what if someone cannot perform it within those days?

Today's class: points 1–2 in detail, and **niyyah** as a condition (part of point 3). **Ṭahārah** and **timing of Tawaf al-Ziyarah** — next class inshā'Allāh.

Types of tawaf (brief)

Tawaf	When	Wujūb
Tawaf al-Qudūm / al-Taḥiyyah (طواف القدوم)	On arrival in Makkah	Not wājib — sunnah / mustaḥabb
Tawaf al-Ziyarah (طواف الزيارة)	During the days of Eid (after the main rites)	Wājib on every Ḥajj
Tawaf al-Ifāḍah	Same as ziyārah in timing (discussed as the one wājib tawaf for all)	Wājib
Tawaf al-Wadā' (طواف الوداع)	When leaving Makkah	Wājib on those outside Makkah — not on Makkīs

Among all types, **only the tawaf performed in the days of Eid** (Tawaf al-Ziyarah / Ifāḍah) is **compulsory on everyone** performing Hajj — whether from Makkah, Ḥill, or abroad.

Part 1 — Evidence for the obligation of Tawaf al-Ziyarah

Evidence 1 — Qur'an: command to perform tawaf

وَلْيَطَّوَّفُوا بِالْبَيْتِ الْعَتِيقِ

“And let them circumambulate the Ancient House.”

Ref: Surah al-Ḥajj, 22:29.

- Whenever the Qur’an **commands** an act, it is **farḍ**.
- The command here is for **ṭawāf** around the Ka’bah.
- Among types of ṭawāf, the ayah refers to **Tawaf al-Ziyarah** — the only type **farḍ** for every Ḥajj.

Evidence 2 — Qur’an: obligation of Hajj of the House

وَلِلّٰهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ اِلَيْهِ سَبِيْلًا

“Hajj to the House is a duty owed to Allah upon mankind — for whoever is able to find a way to it.”

Ref: Surah Āl ‘Imrān, 3:97.

Linguistic dalīl: The word **ḥajj** (حج) comes from **qaṣd** (قصد) — to intend / set out for something. Here it means to intend the **visit (ziyārah)** of Baytullāh for the sake of Allah — which, in Sharī‘ah, is fulfilled by **ṭawāf** around it in the prescribed manner.

- The letter **lām** (ل) in Arabic can indicate **obligation (wujūb)**.
- The **visit (ziyārah)** that is wājib on the Ḥajj is this **ṭawāf** — not merely standing near the House.

Supporting poetry (as cited in class): Classical usage shows **ḥajj** meaning **ziyārah** of a sacred place with the **niyyah** of ‘**ibādah** — applied here to Baytullāh through **ṭawāf**.

Evidence 3 — Ijmā’ (إجماع) [consensus]

The **whole ummah** is agreed that this ṭawāf is **wājib** on **everyone** performing Hajj — Makkī, Ḥillī, or outsider — because the Qur’anic proofs are **general** (‘āmm).

Why it is called “Tawaf al-Ziyarah”

Ziyārah (زيارة) = the **inner, essential** part of the visit. This ṭawāf is the **core** of the visit to the House that Hajj requires — hence **Ṭawāf al-Ziyārah**.

Part 2 — Rukn of Tawaf al-Ziyarah: hudur (presence around the Ka’bah)

What is the rukn?

The **rukṇ** (ركن) [essential pillar] is **ḥuḍūr** (حضور) — **being present / going around** the Ka’bah.

- **Not** walking itself.
- **Any means** of presence counts for the **rukṇ**: walking, being carried, wheelchair, crowd pushing you while your body moves with the mass, etc.

If he is around the Ka’bah...	Rukn complete?
Walking himself	Yes
Carried on shoulders / wheelchair while unable to walk	Yes — walking not wājib on him
Carried while able to walk but chose not to	Rukn yes — but missed wājib → dam (دم) [penalty sacrifice]
Riding / carried in crowd without feet on ground, though able	Rukn yes — dam for missing wājib of walking

Farḍ vs wājib – critical distinction

	Rukn (farḍ)	Wājib
If missed	Ṭawāf invalid – no compensation fixes it	Ṭawāf valid – dam (average goat/sheep) compensates
Example	No presence around Ka'bah at all	Capable but did not walk; rode without need

Wājib here: To perform ṭawāf by **oneself on foot** when **able (qādir)**.

Carrier and carried – both complete rukn?

Yes (Hanafi teaching in class). Both the **hāmīl** (حامل) [carrier] and **maḥmūl** (محمول) [carried] complete the **rukṇ** of **ḥuḍūr** for each person.

- **Difference:** One performs presence through **his own action**; the other through **being there** while another moves – but **ḥuḍūr** is fulfilled for **both**.

Objection: One person's walking – one action – how enough for two?

Answer 1: The **rukṇ** is **not walking**; it is **presence**. Two presences = two fulfillments of rukṇ.

Answer 2: Sharī'ah sometimes accepts **one action for two** – e.g. a **father** trading on behalf of his **immature child** and himself with **one transaction**.

Running without niyyah of ṭawāf

If someone circles the Ka'bah **without niyyah of ṭawāf** (e.g. chasing someone, fleeing) – **rukṇ** is **not enough** for valid Tawaf al-Ziyarah (niyyah discussed below).

Part 3 – Shart: Niyyah (intention)

General rule

Niyyah is a **shart** (شرط) [condition] for valid Tawaf al-Ziyarah – unlike **Wuquf Arafah**, where presence without intention still fulfills the **rukṇ**.

	Wuquf Arafah	Tawaf al-Ziyarah
Niyyah	Not required for rukṇ	Required (absolute niyyah)
Without senses / niyyah	Can still count	Does not count

Absolute niyyah is enough

- **Specific** niyyah (“this is Tawaf al-Ziyarah”) is **not required** when Sharī'ah has **already specified** the act – like **Ramadan fast**: general intention to fast suffices in Ramaḍān.
- If he goes to make **ṭawāf** in the **days fixed for Tawaf al-Ziyarah** with **general niyyah of ṭawāf**, it is **valid**.

Why niyyah of ihrām does not substitute

	Ihrām	Tawaf al-Ziyarah
Purpose	Impose restrictions	Lift remaining restrictions (esp. marital relations after slaughter)
Relationship	Opposite aims	Niyyah of one cannot work for the other

Analogy from class: **Salām** ends **ṣalāh** — it must be with intention to end; mere head movement is not enough. Similarly, **ṭawāf al-ziyārah** **undoes** what **iḥrām** established — it needs its **own niyyah**.

- After **nahr** (ذبح) [sacrifice] on Eid, most **iḥrām** restrictions are lifted — **one** remains until this **ṭawāf** is done.
- Niyyah at **iḥrām** was for **restriction**, not for this **tahlīl** (تحليل) [becoming lawful again].

When absolute niyyah counts as the specified tawaf

Situation	Ruling
Ṭawāf in time Shari‘ah fixed for that type	Counts as that type even without specific label
Tawaf al-Qudūm on arrival before Ḥajj days	Absolute niyyah → counts as qudūm , not ziyārah
Qirān / ‘Umrah — first ṭawāf after iḥrām for ‘Umrah	Shari‘ah assigns it → counts as ‘ Umrah ṭawāf even if he only thought “general ṭawāf”
Specific niyyah for nafl ṭawāf in time of wājib	Shari‘ah’s specification overrides → counts as wājib (like nafl fast in Ramaḍān counting as fard)

Historical example (as taught): Early Muslims after slaughter and raml went for **ṭawāf** without naming the type — **absolute niyyah** sufficed because **Eid days** were already fixed for **Tawaf al-Ziyarah**.

Part 4 — Ṭahārah (preview — next class)

- **Hanafi standard (mentioned):** Qur’anic command for ṭawāf is **absolute**; if **khbar** (خبر) [hadith report] adds a **shart**, it is treated as **wājib (maximal)**, not always as **rukṇ** — method of reconciling **Qur’an** and **ḥadīth**.
- **Imam Shāfi‘ī:** **Ṭahārah** is **shart** for ṭawāf in a stricter sense.
- **Details:** next class, same time inshā’Allāh.

Q&A

Q: After Wuqūf, Muzdalifah, Mina — rami on 10th–12th — on which day can I do **Tawaf al-Ziyarah**? Must it be 13th?

A: After completing **nahr**, **ḥalq** (حلق) [shaving], and **rami** (as due), you may perform **Tawaf al-Ziyarah** on **any of the Eid days** (10th, 11th, 12th — and details of **13th** and exact windows come in the **timing** lesson). You do **not** have to wait until the 13th. **Exact time periods** — next class.

Closing

- **Covered:** obligation of Tawaf al-Ziyarah (Qur'an, language, ijmā'); **rukṇ** = ḥuḍūr; **wājib** = walking if able; **dam** if wājib missed; **niyyah** required (absolute suffices); iḥrām niyyah does not substitute.
- **Next class:** Ṭahārah for ṭawāf, and **fixed times** for Tawaf al-Ziyarah — same time inshā'Allāh.

Masail e Hajj — Class 10 Summary

DATE June 2, 2026

TOPIC Ṭahārah, Satr al-ʿAwrah, and Wājibāt of Tawaf al-Ziyarah

TEACHER Mufti Umar Aejaaz

Introduction

This lesson continues from Class 9’s study of **Tawaf al-Ziyarah** (طواف الزيارة). Having established the **obligation**, **rukn** (ḥuḍūr), and **niyyah** requirement, the teacher now examines the **conditions** (**shurūṭ**) and **wājibāt** (واجبات) [necessary acts] of ṭawāf — in particular **ṭahārah** (طهارة) [ritual purity], **satr al-ʿawrah** (ستر العورة) [covering the private area], **najāsah** (نجاسة) [external impurity], **muwālāt** (مواصلة) [continuity], **muḥādhāt** (محاذاة) [proximity of a woman in prayer], and the **wājibāt** of walking, starting from **Ḥajar al-Aswad** (الحجر الأسود), and circling from the **right side**. The class also includes a foundational discussion on the **classification of ḥadīth reports** (khabar) and their implications for fiqh rulings.

Part 1 — Ṭahārah (ritual purity) in Tawaf al-Ziyarah

The core dispute: Farḍ or Wājib?

Position	Ṭahārah status	If ṭawāf done without ṭahārah
Imam al-Shāfiʿī	Farḍ (شرط جواز) — ṭawāf invalid without it	Must be repeated entirely ; no compensation suffices
Ḥanafī school	Wājib — ṭawāf is valid but defective	Compensation possible: repeat if still in Makkah, or dam (دم) [penalty sacrifice] if returned home

Dalīl of Imam al-Shāfiʿī

الطَّوَّافُ بِالْبَيْتِ صَلَاةٌ

“Ṭawāf of the House is (like) ṣalāh.”

Ref: Hadith — as cited in class (narrated from Ibn ʿAbbās رضي الله عنه; reported in al-Tirmidhī, al-Nasāʿī, and others — verify exact numbering).

Imam al-Shāfiʿī’s reasoning: The Prophet ﷺ equated ṭawāf with ṣalāh **absolutely**. Since ṭahārah is a **shart** of ṣalāh (ṣalāh is **invalid** without it), ṭahārah must equally be a **shart** of ṭawāf — making it **farḍ**.

Ḥanafī response — the Tashbīh (resemblance) argument

The Ḥanafī position rests on two pillars:

Pillar 1 — The Qur’anic command is absolute (muṭlaq):

وَلْيَطَّوَّفُوا بِالْبَيْتِ الْعَتِيقِ

“And let them circumambulate the Ancient House.”

Ref: Surah al-Ḥajj, 22:29.

- The Qur’an commands ṭawāf **absolutely** — with **no mention of ṭahārah**.
- Any **addition** (like ṭahārah as a condition) that comes from **ḥadīth** cannot raise the ruling to **farḍ**; it can **maximally** establish **wujūb**.
- This is because the ḥadīth in question is a **ḵabar wāḥid** (خبر واحد) [solitary report], which — in Ḥanafī uṣūl — cannot override or add to the **qaṭ‘ī** (definitive) Qur’anic text at the level of **farḍiyyah**.

Pillar 2 — Tashbīh does not demand complete similarity:

The word “**ṣalāh**” in the ḥadīth is a **tashbīh** (تشبيه) [simile/resemblance], not an equation of identity. When something is compared to another:

- Similarity is required in **some** aspects, **not all**.
- **Example from the Qur’an:** The wives of the Prophet ﷺ are called “mothers of the believers” — but this does not mean they are biological mothers in **every** respect (e.g. inheritance does not apply).
- **Application:** Ṭawāf is **like** ṣalāh in that **some kind of obligation** attaches — but the **degree** of obligation differs:
 - In **ṣalāh**: ṭahārah is a **shart (farḍ)** — ṣalāh is **invalid** without it.
 - In **ṭawāf**: ṭahārah is **wājib** — ṭawāf is valid but defective without it.

Conclusion: The Ḥanafī school practises upon **both** the āyah and the ḥadīth — the Qur’an keeps ṭawāf **absolute** (no farḍ status for ṭahārah), and the ḥadīth raises ṭahārah to the level of **wājib**.

Compensation for missing ṭahārah

Case 1 — Without wuḍū (minor impurity)

Situation	Ruling
Still in Makkah, can repeat	Must repeat the ṭawāf with wuḍū — this is the complete compensation
Repeated within Ayyām al-Naḥr (10th, 11th, 12th Dhū al-Ḥijjah)	No further penalty — he fulfilled it within the fixed time
Repeated after Ayyām al-Naḥr	Preferred opinion: must pay dam (penalty sacrifice) for missing the fixed time
Returned home, cannot repeat	Dam — slaughter of a goat (شاة)

Case 2 — In state of janābah (major impurity)

Situation	Ruling
Still in Makkah	Must repeat with ṭahārah (ghusl)
Returned home	Badanah (بدنة) — slaughter of a large animal (camel, cow, or buffalo)

Why is the compensation greater for janābah?

- The **defect** is **greater** — janābah is a more severe state of impurity than the absence of wuḍū.
- Greater defect → greater compensation.
- Without wuḍū = goat (شاة); without ghusl from janābah = badanah (بدنة).

Does the defective ṭawāf lift iḥrām restrictions?

Yes. According to the Ḥanafī school, because the ṭawāf is **valid** (though defective), it **does lift the remaining iḥrām restrictions** — including the restriction on **physical/marital relations**.

Scenario	Penalty?
Made ṭawāf without wuḍū / in janābah , then had physical relations after this ṭawāf	No additional penalty — the ṭawāf, though defective, lifted the restrictions
Had physical relations before Tawaf al-Ziyarah but after Wuqūf ‘Arafah	Badanah is wājib — the second farḍ (ṭawāf) was not yet performed

Two cases where badanah is wājib in Hajj

1. **Performing Tawaf al-Ziyarah in the state of janābah** — and returning home without repeating it.
2. **Physical relations after Wuqūf ‘Arafah but before Tawaf al-Ziyarah** — because the second farḍ has not yet been completed, and the full iḥrām restriction on relations is still in force.

Contrast: If the person has performed the ṭawāf (even defectively) and has done **ḥalq/qaṣr** and **naḥr**, but only **ḥalq** was missing before the physical act, then the violation is lesser — only a **shāt** (goat) is required, because the remaining obligation (ḥalq) is lighter.

Part 2 — Najāsah (external impurity) on body or clothing

Ruling: Sunnah (to purify), not Farḍ or Wājib

- Purifying the body and clothing from **external najāsah** (e.g. impurity on clothes) is **sunnah** for ṭawāf.
- If someone performs ṭawāf with najāsah on his body or clothing: **no compensation (dam) is required**.

Why no compensation?

- The prohibition of external najāsah relates to the **masjid** (i.e. the Masjid al-Ḥaram), **not** to the **ṭawāf** itself.
- Since the defect is not in the act of ṭawāf but in the context of being in the masjid, **no defect appears in the ṭawāf** — hence no dam.

Part 3 — Satr al-‘Awrah (covering the private area)

The dispute

Position	Status of satr al-‘awrah in ṭawāf
Imam al-Shāfi‘ī	Farḍ (shart jawāz) — ṭawāf invalid without it
Ḥanafī school	Wājib — ṭawāf valid but defective; compensation applies

Dalīl of Imam al-Shāfi‘ī

Same ḥadīth: “Ṭawāf of the House is (like) ṣalāh” — covering the ‘awrah is farḍ in ṣalāh, so it should be farḍ in ṭawāf.

Ḥanafī response

Same framework as ṭahārah:

1. The Qur’anic command for ṭawāf is **absolute** — no mention of satr al-‘awrah.
2. The addition from ḥadīth (khabar wāḥid) can establish **wujūb**, not **farḍiyyah**.
3. The tashbīh does not require similarity in all respects.

Compensation

Situation	Ruling
Still in Makkah	Repeat the ṭawāf with ‘awrah properly covered
Returned home	Dam — slaughter required

Satr al-‘Awrah vs. external Najāsah — the critical difference

	Satr al-‘Awrah	Najāsah on clothing
Relates to	The ṭawāf itself — the Prophet ﷺ specifically prohibited ṭawāf with exposed body	The masjid — general rule about entering the mosque
Defect in ṭawāf?	Yes — the ṭawāf is defective	No — the ṭawāf itself is not affected
Compensation	Dam required if not repeated	No dam — only sunnah was missed

Part 4 — Muḥādhāt (woman standing parallel to a man)

In ṣalāh

Muḥādhāt (محاذاة) — when a **woman** stands **directly parallel/beside** a man, performing the **same ṣalāh** behind the **same imam** — it **breaks the man’s ṣalāh** (not the woman’s).

Key conditions for muḥādhāt to break ṣalāh:

1. They must be performing the **same ṣalāh** — i.e. behind the same imam, joined in the same congregation.
2. The imam must have made **intention** to lead the woman.
3. She stands **completely parallel** to the man (beside him, not behind).

When muḥādhāt does NOT break ṣalāh:

- They are performing **separate ṣalāhs** — even if both are praying Ṣuḥr, if they are not behind the same imam, there is no muḥādhāt issue.
- In **Ṣalāt al-Janāzah** — because it is not ṣalāh in the conventional sense (no rukū‘ and sujūd).
- Whose ṣalāh breaks? **The man’s**, not the woman’s — because it is the man’s duty to be ahead of the women, so the deficiency is attributed to him.

In ṭawāf

Muḥādhāt does NOT invalidate ṭawāf.

Reason: The ruling of muḥādhāt breaking ṣalāh is based on a ḥadīth — it is **against qiyās** (analogy) and therefore **restricted to its specific context** (ṣalāh). It cannot be extended to ṭawāf by analogy, because:

- Rulings that go against qiyās are **restricted to their place**.
 - In ṭawāf, there is **no ishtirāk** (اشتراك) [joining/combining] — every person performs their own ṭawāf individually; no one leads another in ṭawāf.
-

Part 5 — Muwālāt (continuity between rounds)

Ruling: NOT required

Muwālāt (موالاة) — performing all seven rounds of ṭawāf **consecutively** without any break — is **not** a condition or wājib.

- A person **may take breaks** during ṭawāf and **resume from where he left off**.
- There is **no need to start over** from the beginning.

Dalīl

رُويَ أَنَّ النَّبِيَّ ﷺ اسْتَسْقَى فِي الطُّوَافِ فَأُتِيَ بِمَاءٍ فَشَرِبَ

“It is reported that the Prophet ﷺ asked for water during ṭawāf, and water was brought to him, and he drank.”

Ref: Hadith — narrated regarding the Prophet ﷺ at the **Siqāyah** (the water station) (as cited in class — confirm in hadith index).

- The Prophet ﷺ **took a break** to drink water during ṭawāf, demonstrating that muwālāt is **not** required.
 - This confirms that minor or even significant breaks do not invalidate the ṭawāf; the pilgrim simply continues from where he stopped.
-

Part 6 — Wājibāt of Tawaf al-Ziyarah

Summary of what has been covered so far

Requirement	Status
Ḥuḍūr (presence around Ka’bah)	Rukn (farḍ) — ṭawāf invalid without it
Niyyah	Shart (condition) — absolute niyyah suffices
Ṭahārah	Wājib (Ḥanafī) / Farḍ (Shāfi‘ī)
Satr al-‘Awrah	Wājib (Ḥanafī) / Farḍ (Shāfi‘ī)
Najāsah removal	Sunnah only
Muwālāt	Not required
Muḥādhāt	Does not affect ṭawāf

Wājib 1 — Walking on the feet (المشي على الأقدام)

Ruling (Ḥanafī): It is **wājib** to perform ṭawāf **walking on one’s feet** — using a wheelchair, riding an animal, or being carried is **not permissible** unless there is a genuine ‘udhr (عذر) [excuse/disability].

Ruling (Shāfi‘ī): Walking on the feet is **not wājib** — riding or using a wheelchair is permissible without any penalty.

Dalīl (Ḥanafī)

The linguistic meaning of **ṭawāf** (طواف) and specifically the Qur’anic command:

وَلْيَطَّوَّفُوا بِالْبَيْتِ الْعَتِيقِ

Ref: Surah al-Ḥajj, 22:29.

- The Arabic verb for ṭawāf linguistically implies **circling while walking**. A person who rides is not called **ṭā’if** (طائف) in the linguistic sense.
- Therefore, walking on feet is inherent to the meaning of ṭawāf itself.

Dalīl (Shāfi‘ī) — the Prophet’s practice

The Prophet ﷺ performed ṭawāf **while riding** upon his animal during the Farewell Hajj.

Ḥanafī explanation of the Prophet’s riding

Two explanations were given:

1. **He was older and heavier** — as explained by Ibn ‘Abbās رضي الله عنه — so this was a concession due to ‘udhr.
2. **For ta‘līm** (تعليم) [teaching] — he rode so the people could **see him** above the crowd and **learn** the actions and sequence of ṭawāf from him.

Compensation for missing this wājib

Situation	Ruling
Still in Makkah and able	Repeat the ṭawāf walking
Returned home	Dam — slaughter of an average goat

Special case: Crawling (الْحَبْو)

- **Crawling** (like a baby) is **not** considered walking on the feet.
- If a person is **capable** of walking but crawls, he is **missing the wājib** → same ruling as riding.
- If he crawls because of **‘udhr** → concession applies, no penalty.

Nadhr (vow) to perform ṭawāf while crawling

If someone vowed: “*I will perform ṭawāf for Allāh while crawling*”:

- The **ṭawāf** itself becomes **wājib** because of the nadhr.
- The **condition** of crawling is **invalid** — it is an improper condition and is dropped.
- He must perform the ṭawāf **walking normally** on his feet.
- **Preferred opinion (rājiḥ)**: The crawling condition is voided, and the ṭawāf must be performed properly.
- **Other opinion**: Crawling could suffice — based on the analogy that if someone vows ṣalāh on unlawfully seized land, the ṣalāh is still valid despite the improper circumstance. This opinion is **not the preferred one**.

Being carried by another person

If a person is **carried** (on shoulders, wheelchair, etc.) while **capable of walking**: he is **missing the wājib**. Same ruling — repeat if in Makkah; dam (goat) if returned home.

Wājib 2 — Starting from Ḥajar al-Aswad (الابتداء من الحجر الأسود)

Ruling (Ḥanafī preferred opinion): Sunnah — not farḍ or wājib.

- The Prophet ﷺ started his ṭawāf from **Ḥajar al-Aswad** — this is the established sunnah.
- If someone starts from **another point**, his ṭawāf is **valid** but he earns the **karāhah (makrūh)** of not following the sunnah.

Second opinion (within Ḥanafī school, also the Shāfi‘ī position): The round that occurs before reaching Ḥajar al-Aswad is **not counted**. The ṭawāf effectively begins only when the pilgrim reaches Ḥajar al-Aswad, and any circling before that point does not count toward the seven rounds. This is **not the preferred (rājiḥ) Ḥanafī opinion**.

Historical background

When **Ibrāhīm** عليه السلام completed the construction of the Ka’bah, he asked his son **Ismā‘īl** عليه السلام to bring him a stone to **mark** the starting point of ṭawāf. Ismā‘īl brought stones, but eventually **Jibrīl** عليه السلام brought the stone from **Jannah** — the **Ḥajar al-Aswad**. Ibrāhīm said: “*I have no further need — Allāh has fulfilled it.*” Both parties use this narration — one takes it as proof of sunnah, the other as proof of obligation.

Wājib 3 — Circling from the right side (الطواف من جانب اليمين)

Ruling (Ḥanafī): Wājib — the pilgrim must circle the Ka’bah keeping it to his **left** (i.e. moving counter-clockwise, starting to the **right** of Ḥajar al-Aswad).

Ruling (Shāfi‘ī): Farḍ (shart) — ṭawāf is **invalid** if done in the wrong direction.

Position	If ṭawāf done in wrong direction
Ḥanafī	Valid but defective — wājib missed → repeat if in Makkah, dam if returned home
Shāfi‘ī	Invalid — must be repeated entirely

Reason for the difference: The evidence for the direction of ṭawāf comes from ḥadīth — and the classification of that ḥadīth determines the ruling (see Part 7 below).

Part 7 — Excursus: Classification of Khabar (Ḥadīth reports)

The teacher explained the foundational Ḥanafī uṣūl principle behind the recurring difference with the Shāfi‘ī school regarding **farḍ vs wājib**.

Two parameters of ḥadīth authentication

1. **How the ḥadīth reached us** — the number and era of narrators.
2. **What the ḥadīth refers to** — its content and meaning.

Three categories of khabar

Category	Definition	Era of fame	Ruling capacity
Khabar Mutawātir (خبر متواتر)	Narrated by a large number of narrators in every era , starting from the era of the Ṣaḥābah	Ṣaḥābah era (1st generation)	Can prove farḍiyyah (فرضية)
Khabar Mashhūr (خبر مشهور)	Narrated by a large number but the fame reached that level in the era of the Tābi‘īn (2nd generation)	Tābi‘īn era (2nd generation)	Can prove farḍiyyah
Khabar Wāḥid (خبر واحد)	Narrated by one or two individuals in the first two eras; gained fame after the eras of Ṣaḥābah and Tābi‘īn	After 2nd generation	Can prove wujūb only — not farḍiyyah

Why this matters

- **Ṣaḥābah** are **all reliable** in matters of narration — a ḥadīth with mass transmission from them leaves **no room for doubt**.
- **Tābi‘īn** are the **people of khayr** (خير) as the Prophet ﷺ himself testified — mass narration from them also provides strong certainty.
- After these two eras, **most ḥadīths** gained their fame — they are **ṣaḥīḥ** if narrators are reliable, but carry a **degree of doubt** in the transmission chain that prevents them from establishing **farḍ**.

Practical impact

School	Khabar Wāḥid with a command	Result
Shāfi'ī	Can prove farḍ	No separate concept of wājib needed
Ḥanafī	Can prove wujūb only	Farḍ requires Qur'an / Mutawātir / Mashhūr evidence

This is the **root cause** of the recurring Ḥanafī-Shāfi'ī differences on ṭahārah, satr al-ʿawrah, direction of ṭawāf, and other conditions — wherever the evidence is a **khabar wāḥid**, the Ḥanafī school classifies the ruling as **wājib** while the Shāfi'ī school classifies it as **farḍ**.

The Shāfi'ī school has no concept of wājib (as a category between farḍ and sunnah) because they do not differentiate between the three types of khabar in terms of what they can prove.

Practical difference between farḍ and wājib:

- Both must be **practised** — no difference in obligation to act.
- The difference appears when the requirement is **missed**:
 - Missing **farḍ** → the action is **completely invalid**.
 - Missing **wājib** → the action is **valid but defective** — compensation is possible.

Part 8 — Rulings of Nafl Tawaf

All the above conditions and wājibāt apply to **nafl ṭawāf** as well — once a nafl ṭawāf is **started**, it becomes **wājib to complete** it properly.

Key difference in penalty: Because nafl ṭawāf is not wājib **by default** (it becomes wājib only after commencement), the penalty for missing a wājib within it is **lesser**:

Ṭawāf type	Penalty for missing a wājib (when returned home)
Farḍ / wājib ṭawāf (e.g. Tawaf al-Ziyarah)	Dam — slaughter of a goat
Nafl ṭawāf	Ṣadaqah — charity (equivalent to Ṣadaqat al-Fiṭr)

Part 9 — Three Types of Tawaf in Hajj (overview)

Tawaf	When	Status	For whom
Tawaf al-Qudūm (طواف القدوم) / al-Taḥiyyah	On arrival in Makkah, before Hajj rites begin	Sunnah — a “check-in” ṭawāf	All pilgrims
Tawaf al-Ziyarah (طواف الزيارة) / al-Ifāḍah	During the days of Eid , after main rites (naḥr, ḥalq, rami)	Fard — a rukn of Hajj	All pilgrims
Tawaf al-Ṣadr (طواف الصدر) / al-Wadāʿ	When leaving Makkah to return home	Wājib (Ḥanafī) / Sunnah (Shāfiʿī)	Outsiders only — not wājib on residents of Makkah

The teacher noted that the **detailed rulings** for when Tawaf al-Ziyarah or Tawaf al-Ṣadr are **missed** will be covered in **upcoming classes**.

Q&A

Q: People sometimes miss Tawaf al-Ziyarah because their flights are early and they didn’t get a chance. What is the ruling?

A: Tawaf al-Ziyarah is a **rukn (fard)** of Hajj. The detailed ruling of what happens when it is missed — and the **time period** within which it must be performed — will be discussed in a coming lesson. However, the teacher noted:

- **Tawaf al-Ziyarah** is a part of **Hajj itself** — it is the **second fard** (after Wuqūf ‘Arafah).
- **Tawaf al-Ṣadr** is **not a part of Hajj** — it is a separate wājib for outsiders when departing.
- The rulings for **missing each** are different and will be addressed in the next class inshā’Allāh.

Closing

- **Covered:** Ṭahārah (Ḥanafī vs Shāfiʿī — wājib vs fard; tashbih argument; compensation framework); satr al-‘awrah (wājib); external najāsah (sunnah only — no dam); muḥādhāt (does not affect ṭawāf); muwālāt (not required); wājibāt of ṭawāf (walking on feet, starting from Ḥajar al-Aswad, circling from the right); khabar mutawātir / mashhūr / wāḥid framework; nafl ṭawāf rulings; three types of ṭawāf overview.
- **Next class:** Ruling when Tawaf al-Ziyarah and Tawaf al-Ṣadr are **missed**; starting from the right side (continued); same time inshā’Allāh.

Masail e Hajj — Class 11 Summary

DATE June 3, 2026

TOPIC Tawaf al-Ziyarah — Sunan, Timing, Place, Completion, and Rulings for Missed or Defective Tawaf

TEACHER Mufti Umar Aejaaz

Review from Previous Class

The class opened with a brief recap of the last session, which covered the **Nawafil** (نوافل) [supererogatory acts] and **Wajibat** (واجبات) [obligatory elements] of Tawaf, including:

- Walking on foot (when capable) is a **Wajib**; it is waived in cases of illness or incapacity.
- Tawaf begins from **Hajr al-Aswad** (الحجر الأسود) [the Black Stone], starting from its right side.
- Beginning from the right of Hajr al-Aswad is **Wajib** in the Hanafi school and **Sunnah** in the Shafi'i school. The dalil (evidence) for both is the same — that the Prophet ﷺ always began Tawaf from the right of Hajr al-Aswad — but the schools differ on the classification based on usul (principles of jurisprudence).

1. Ramal (رَمَلَ) [Brisk Walking in Tawaf]

Definition: Ramal is a specific brisk, slightly hurried manner of walking performed during the first three rounds of Tawaf.

When is it performed?

- Ramal is performed in the **Tawaf after which a Sa'i is to be performed**.
- Normally, the first Tawaf performed upon arriving in Mecca — **Tawaf al-Qudum** (طواف القدوم) [the Arrival Tawaf] — is followed by Sa'i, so Ramal is done in that Tawaf.
- If a person intends to perform **Sa'i after Tawaf al-Ziyarah** (طواف الزيارة) [the Obligatory Tawaf of Hajj], they should perform Ramal in it as well. Otherwise, it is not done.

Status: Ramal is a **Sunnah**, not a **Wajib**.

2. Sunan (سُنَن) [Sunnahs] of Tawaf

a. Avoiding Unnecessary Talk

- During Tawaf, a person should be engaged in **dhikr** (ذِكْر) [remembrance of Allah], **du'a** (دُعَاء) [supplication], and **istighfar** (استغفار) [seeking forgiveness].
- Tawaf is likened to **Salah** in terms of maintaining reverence — unnecessary speech should be minimized.
- Normal speech is **Makruh** (مَكْرُوه) [disliked] if it distracts from dhikr; it is not outright forbidden.

b. Quran Recitation vs. Dhikr — Which is Better?

A student raised a question: is it better to recite Quran or do tasbeeh/dhikr during Tawaf?

Teacher's response:

- Reciting the Quran is **permissible** and generally considered the best act of worship.
- However, based on a position attributed to **Imam Muhammad (رحمه الله)**, he used the word “**حرج**” (**no objection**) regarding Quran recitation during Tawaf — a phrase he typically reserves for acts that are merely permissible, not those that are optimal.
- Based on this, **the preferred opinion** is that **dhikr and du’a are more appropriate (Aula)** during Tawaf, while Quran recitation is permissible but not the preferred choice in this context.

c. Performing Tawaf While Wearing Sandals

- It is **permissible** to perform Tawaf while wearing sandals, provided they are **pure (tahir)**, meaning free from any impurity (najasat).
- **Evidence:** It is reported that the Prophet ﷺ performed Tawaf while wearing sandals.
- **Context:** After completing the acts of Nahar day (sacrifice, Halq/shaving), most restrictions of Ihram are lifted. The remaining restriction is sexual relations, which is removed by Tawaf al-Ziyarah. Since Tawaf is likened to Salah, and it is permissible to pray in pure sandals, Tawaf in sandals is also permissible — in fact, Tawaf carries more ease (yusur) than Salah.

3. Place of Tawaf — Boundaries

a. Within Masjid al-Haram

- Tawaf must be performed **within the boundaries of Masjid al-Haram**. It does not matter which part of the Masjid one is in — near Zamzam, near the walls, etc. — as long as one is within the Masjid boundaries.
- If someone performs Tawaf **outside the Masjid**, they are effectively making Tawaf of the Masjid, not of the Ka’bah. This is not valid.
- The walls of the Masjid act as a **barrier**, and Tawaf outside it is insufficient.

b. The Hatim (الحطيم) [the Semicircular Wall]

A crucial point: **the Hatim is part of the Ka’bah (Baytullah).**

Historical background:

The Ka’bah was originally constructed by Ibrahim (عليه السلام) to include the Hatim area. However, due to limited resources when the Quraysh later rebuilt it, the Hatim portion was left outside the main structure. The Prophet ﷺ expressed a wish to restore it but refrained — as narrated to Sayyidah Aisha (رضي الله عنها) — out of concern that people who had recently embraced Islam might not accept such a significant change and could revert to disbelief. Later, it was changed by certain rulers, then changed back. Imam Ali (رحمه الله) subsequently issued a fatwa that **no one may change the structure of the Ka’bah** after this — it should remain as it is.

Implication for Tawaf:

- Since the Hatim is part of Baytullah, a person making Tawaf **must go around the outside of the Hatim** — i.e., their path must include the Hatim within the circle of Tawaf.
- If someone walks **through** the Hatim (inside the U-shape), they have not made Tawaf of that side of the Ka’bah and their Tawaf is **invalid**.

Evidence that the Hatim is part of Baytullah:

- A hadith (as cited in class) states that the Hatim is part of Baytullah.
- This is supported by a well-known fatwa that a person who makes a **nadhr** (نذر) [vow] to pray inside the Ka'bah can fulfill it by praying inside the Hatim area, since it is considered part of Baytullah.
- Similarly, the Prophet ﷺ instructed Sayyidah Aisha (رضي الله عنها) and others to pray two rak'ahs inside the Hatim to fulfill this type of nadhr.

c. Why the Hatim Counts for Tawaf but NOT for Qibla Direction

A conceptual question was addressed in class:

Q: If the Hatim is part of Baytullah, why can a person facing only the Hatim (not the main structure) not use it as their Qibla for Salah?

A: The command to face the **Qibla** (قبلة) comes from the Quran:

وَحَيْثُ مَا كُنْتُمْ فَوَلُّوا وُجُوهَكُمْ شَطْرَهُ

“And wherever you are, turn your faces toward it [the Sacred Mosque].”

Ref: Surah al-Baqarah: 144 (as cited in class — verify ayah number).

This is a **Qat'i** (قطعي) [categorical, definitive] textual command. The proof that the Hatim is part of Baytullah comes from a **Zanni** (ظني) [probabilistic, speculative] hadith.

In usul al-fiqh, a **Zanni dalil cannot override a Qat'i command**. Therefore, when it comes to the direction of Salah, one must face the main structure of the Ka'bah — a Qat'i requirement — and cannot rely on the Hatim being part of it based on a Zanni proof.

However, for **Tawaf**, the Quran says:

وَلْيَطَّوَّفُوا بِالْبَيْتِ الْعَتِيقِ

“And let them perform Tawaf around the Ancient House.”

Ref: Surah al-Hajj: 29 (as cited in class).

Making Tawaf outside the Hatim **does not contradict this ayah** — one is still going around the whole Baytullah, including the Hatim as proven by hadith. So in Tawaf, we can act upon **both** the Quranic ayah and the hadith simultaneously. There is no contradiction.

4. Timing of Tawaf al-Ziyarah

Beginning Time

- **Hanafi view (preferred):** Tawaf al-Ziyarah begins with the **Fajr of the 10th of Dhul-Hijjah** (يوم النحر) [the Day of Sacrifice]. It is not valid before this.
- **Imam al-Shafi'i's view:** It begins from the **middle of the night** preceding the 10th of Dhul-Hijjah.

Hanafi response to Shafi'i: The night between the 9th and 10th is the time for **Muzdalifah** (مزدلفة) — specifically for Wuquf al-Muzdalifah and Rami. Two different actions cannot share the same window as their respective times. Therefore, Tawaf cannot begin until Fajr of the 10th.

Ending Time

- **Preferred Hanafi view:** Tawaf al-Ziyarah must be completed **before sunset of the 12th of Dhul-Hijjah**, i.e., within the **Ayyam al-Nahr** (أيام النحر) [Days of Sacrifice: 10th, 11th, and 12th].
- If delayed past this without a valid Shari'i excuse, the **Wajib is missed**, and a **dam** (دم) [penalty – slaughter of an animal] becomes obligatory.
- **Imam al-Shafi'i and the Sahibayn** (صاحبين) [Imam Abu Yusuf and Imam Muhammad – the two companions of Imam Abu Hanifa]: There is **no ending time** for Tawaf al-Ziyarah. Whenever performed, it is valid without penalty.

Hanafi dalil (evidence) against the Sahibayn's position:

The Sahibayn cite ahadith from **Hajjat al-Wada'** in which the Prophet ﷺ responded to people who performed Hajj actions out of order by saying: "*No harm, no harm.*" They argue this implies no time limitation.

Imam Abu Hanifa's response: That leniency was a **Takhfif** (تخفيف) [concession] granted in the early days when the Ummah was just learning the rites of Hajj. Once Shari'ah was established and awareness spread, those fixed timings became binding – just as the times of Salah are fixed and cannot be missed without penalty.

Analogy with Salah: Just as missing a Salah after its time passes does not eliminate the obligation (it remains due as qada) but incurs sin for the missed Wajib, similarly, performing Tawaf al-Ziyarah after the 12th still fulfills the Fard – but the Wajib of timely performance is missed, and dam is due.

Best Day

The **best day to perform Tawaf al-Ziyarah is the 10th of Dhul-Hijjah**, as the Prophet ﷺ performed it on that day. Performing it early: 1. Fulfills the Sunnah of the Prophet ﷺ. 2. Removes the remaining restriction of **physical relations with one's spouse** – the last restriction of Ihram – as early as possible.

5. How Much of Tawaf al-Ziyarah is Fard vs. Wajib?

Category	Amount Required
Fard (فرض) [obligatory minimum]	Majority of the Tawaf = at least 3 complete rounds + more than half of the 4th round
Wajib (واجب) [obligatory completion]	All 7 rounds of Tawaf al-Ziyarah

Key implication: If a person completes the majority of Tawaf (Fard portion) but not all 7 rounds: - The Fard is achieved. - The missing rounds are a Wajib violation. - A **dam** is required, but the Hajj is not invalidated.

Imam al-Shafi'i's view: All 7 rounds are Fard. His dalil: the Prophet ﷺ performed 7 rounds. Additionally, the Quranic ayah "*perform Tawaf around the Ancient House*" – when the order is given without specification of number, acting upon it even once is sufficient. The 7 rounds are proven by the Prophet's practice.

Hanafi response: The practice of the Prophet ﷺ establishes the 7 rounds through **Khabar al-Wahid** (خبر الواحد) [a hadith with a single chain], which can elevate an act to **Wajib** but not to **Fard**. Fard requires **Qat'i** proof. The Fard level (majority) is based on **Ijma'** (إجماع) [scholarly consensus].

Principle cited by the teacher:

In Hajj, the majority of an act is treated like the complete act — especially in acts that lift the restrictions of Ihram.

Examples of this principle: - In **Dhabh** (ذبح) [slaughter], slaughtering the majority of the required veins removes Ihram restrictions. - In **Rami al-Jamarat** (رمي الجمرات) [throwing pebbles], throwing the majority removes most restrictions.

6. Case Scenarios — Violations During or After Tawaf

Case 1: Physical Relations After Majority of Tawaf but Before Completion

- If a person completed the **majority (Fard portion)** of Tawaf al-Ziyarah and then violated the restriction of physical relations:
 - **Fard is complete** → Hajj is not nullified.
 - Violation occurred after Fard → penalty is a **dam** (slaughter of a goat/sheep — a medium-sized animal).

Case 2: Physical Relations Before Majority of Tawaf

- If a person violated physical relations after only 1–3 rounds (before the majority was completed):
 - Violation occurred before the Fard was achieved.
 - Penalty is a **large animal (badanah)** — a camel, cow, or buffalo.
 - According to Imam al-Shafi'i, the penalty is badanah in all cases since all 7 rounds are Fard.
-

7. Rulings for Missing or Defective Tawaf al-Ziyarah

A. Complete Omission (Returning Home Without Performing It)

Since Tawaf al-Ziyarah is the **second and final Fard of Hajj** (after Wuquf al-Arafah), it **cannot be replaced by anything**.

- Hajj remains **incomplete**.
- The person must **return to Mecca** to perform it — no matter how much time passes.
- Until it is performed, **physical relations with one's spouse remain Haram** (حرام) for life.
- Every time the person has relations with their spouse without completing Tawaf al-Ziyarah, a new **dam** becomes obligatory.
- If a person becomes unable to return in their lifetime, they must **arrange for it to be performed on their behalf** (Hajj Badal بدل الحج).

B. Partial Omission — Performed After the 12th of Dhul-Hijjah

- If performed after the time (after sunset on the 12th) **without a valid Shari'i excuse** (illness, menstruation, nifas, emergency):
 - Tawaf is **valid** — Fard is fulfilled.
 - A **dam** is due for missing the Wajib of timely performance.
- If delayed due to a **valid Shari'i excuse** (severe illness, hayd/nifas for women, medical emergency):
 - Dam is **waived**.

Note: Tawaf al-Ziyarah, unlike most Hajj acts, has **no expiry** in terms of the Fard itself. It can be performed **any time of year** — even years later. The person remains under Ihram restrictions until it is performed.

C. Tawaf Performed in a State of Janabah (جنابة) [Major Ritual Impurity]

- If the **entire Tawaf** was performed in a state of Janabah:
 - The **more emphasized** ruling (azimah) is to **return to Mecca and repeat** the Tawaf.
 - The person's Ihram restrictions are still lifted (since the Tawaf was technically performed), and they would enter Mecca without a new Ihram. However, if they cross the Miqat without Ihram for a new purpose, another dam becomes due.
 - A **badanah** (بدنة) [large animal: camel, cow, or buffalo] must be slaughtered in the Haram as well, because Janabah is a major defect.

D. Tawaf Performed Without Wudu (Minor Ritual Impurity Only)

- If all 7 rounds were completed but without wudu:
 - Returning and repeating is the **better** option, but not strictly required.
 - The **defect is lesser** (minor impurity vs. Janabah), so a **dam** in the form of a **goat/sheep (shatt)** slaughtered within the boundaries of the Haram is sufficient if returning is not possible.
 - The animal must be slaughtered **in the Haram** — slaughtering at home is not sufficient. The person sends money to a trustworthy person in Mecca to slaughter on their behalf.
 - In this case, **sending the animal (rather than returning)** is more appropriate since the defect is minor.

E. Missing Rounds — Not Reaching the Majority

- If a person performed only **1, 2, or 3 rounds** of Tawaf al-Ziyarah — i.e., did not complete the majority — the Tawaf is **not counted at all**.
- It is treated as if Tawaf was not performed. The person must return and complete the full Tawaf.

F. Walking Through the Hatim

- If a person walked **inside the Hatim** (passing through the U-shaped area) instead of going around it during Tawaf:
 - Their Tawaf is incomplete — they missed making Tawaf of one side of the Ka'bah.
 - They must **repeat the Tawaf** (the full round, going around the outside of the Hatim).
 - If already back home: this is treated as having missed **one-fourth** of the Tawaf → a **dam** is required.
-

8. Summary — Tawaf al-Ziyarah at a Glance

Element	Ruling
Status	Fard — Hajj is invalid without it
Start time	Fajr of 10th Dhul-Hijjah
End time (Hanafi)	Sunset of 12th Dhul-Hijjah (for Wajib); Fard has no expiry
Best day	10th Dhul-Hijjah
Fard amount	Majority of 7 rounds (3+ rounds + half of 4th)
Wajib amount	All 7 rounds
Completely missed	Return and perform; no substitute; spousal relations Haram until done
Performed late (no excuse)	Valid; dam due
Performed late (valid excuse)	Valid; no dam
With Janabah	Return and repeat; badanah due
Without Wudu	Repeat preferred; shatt (goat) sufficient if not returning
Through the Hatim	Invalid; must repeat; if home: dam

Next Class

In the next session, insha'Allah, the teacher will begin covering the **five Wajibat (واجبات) of Hajj**, going through each one individually, along with their rulings.

Notes compiled from the class of Mufti Umar Aejaz — Masail e Hajj series, Darul Uloom Wal Funoon.

Compiled by: Arif Shaikh

Reference text: Badā'i' al-Ṣanā'i' (al-Kāsānī), vol. 3

Masail e Hajj — Class 12 Summary

DATE June 8, 2026

TOPIC Sa‘ī between Ṣafā and Marwah — Status, Wājibāt of Hajj, and the Penalty (Jazā’)
Framework

TEACHER Mufti Umar Aejaaz

Introduction

This lesson opens with a concise **listing of the five Wājibāt of Hajj**, then devotes the bulk of the class to the **first wājib: Sa‘ī (سعي) between Ṣafā and Marwah**. The teacher examines the status of Sa‘ī (Wājib, Farḍ, or optional?), the evidence and counter-evidence for each position, and the number of required rounds. A major uṣūl discussion follows on the **penalty framework** when a wājib is missed — distinguishing between a wājib missed entirely, its major part, or its minor part. The class also revisits the principle that a **wājib missed due to a genuine excuse (‘udhr)** incurs no penalty, with the example of Ṭawāf al-Wadā‘ for menstruating women.

Part 1 — The Five Wājibāt of Hajj (overview)

The teacher listed the **five Wājibāt (واجبات)** of Hajj at the outset:

#	Wājib	Brief description
1	Sa‘ī between Ṣafā and Marwah (السعي بين الصفا والمروة)	Seven rounds between the two mountains
2	Stay in Muzdalifah (الوقوف بالمزدلفة)	Staying at Muzdalifah on the night of the 10th Dhū al-Ḥijjah
3	Ramī al-Jimār (رمي الجمار)	Stoning the pillars
4	Ḥalq or Qaṣr (الحلق أو التقصير)	Shaving or trimming the hair
5	Ṭawāf al-Wadā‘ / al-Ṣadr (طواف الوداع / الصدر)	Farewell ṭawāf when leaving Makkah

The details of each will be covered in sequence; this class focuses on **Sa‘ī**.

Part 2 — Sa‘ī between Ṣafā and Marwah: Seven Points of Discussion

The teacher outlined seven sub-topics to cover regarding the Sa‘ī:

1. **Status (حكم)** — Is it Farḍ, Wājib, or Sunnah?
2. **Amount (مقدار)** — How many rounds are Wājib?
3. **Compulsory minimum (فرض)** — What is the minimum without which it is not done?

4. **Conditions** (شروط) — For permissibility and validity
 5. **Sunan** (سنن) — Recommended acts related to Sa‘ī
 6. **Time** (وقت) — When should Sa‘ī be performed?
 7. **Delay** (تأخير) — Ruling if Sa‘ī is delayed beyond its time
-

Part 3 — Status of Sa‘ī: Three Opinions

Opinion 1 — Wājib (Ḥanafī position)

According to the Aḥnāf (Ḥanafī school), Sa‘ī is Wājib.

Reasoning: There is no **dalīl qaṭ‘ī** (دليل قطعي) [definitive proof] establishing the farḍiyyah of Sa‘ī. The evidence that exists can, at most, establish **wujūb** (وجوب). Since farḍiyyah requires definitive proof — both in the **chain of transmission (thubūt)** and in the **meaning (dalālah)** — and this is lacking for Sa‘ī, the Ḥanafī school classifies it as Wājib.

Opinion 2 — Farḍ (Shāfi‘ī position)

According to Imam al-Shāfi‘ī, Sa‘ī is Farḍ (فرض).

Dalīl:

إِنَّ اللَّهَ كَتَبَ عَلَيْكُمُ السَّعْيَ فَاسْعَوْا

“Indeed, Allāh has ordained upon you the Sa‘ī, so perform it.”

Ref: Hadith — as cited in class (verify exact source and numbering).

Imam al-Shāfi‘ī interpreted the word **كَتَبَ (kataba)** [ordained/wrote] as equivalent to **فَرَضَ (farada)** [made obligatory], just as it is interpreted in the context of fasting:

كُتِبَ عَلَيْكُمُ الصِّيَامُ

“Fasting has been ordained upon you.”

Ref: Surah al-Baqarah, 2:183.

Ḥanafī response to Imam al-Shāfi‘ī’s dalīl

The Aḥnāf raised **two objections** to this ḥadīth:

1. The chain of narration (sanad) has a weakness:

- The **rāwī (narrator)** of this ḥadīth is **majhūl** (مجهول) [unknown] — specifically, the name of the female narrator’s father is not properly identified; she is not specifically recognizable.
- A ḥadīth with a **majhūl** narrator cannot reach the level of **dalīl qaṭ‘ī**, which is required for establishing farḍiyyah.

2. The meaning of “kataba” is not certain:

- The word **كَتَبَ (kataba)** can mean Allāh’s command — but Allāh’s command sometimes indicates **farḍ** and sometimes indicates **wujūb**.
- Both meanings are possible, creating **uncertainty in the meaning (dalālah)**.

- When there is uncertainty, the ḥadīth is taken in the meaning that **accords with the Qur’anic text** — and the Qur’anic text (see Opinion 3 below) does not establish farḍiyyah for Sa‘ī. Therefore, the meaning of wujūb is preferred.

Observation on Imam al-Shāfi‘ī’s methodology:

The teacher noted an inconsistency in Imam al-Shāfi‘ī’s approach: Imam al-Shāfi‘ī is known for being **very strict** about the authenticity of ḥadīth and normally **rejects mursal ḥadīth** (where the Ṣaḥābī’s name is missing) on the grounds that the missing narrator could be unreliable. Yet here, he accepts a ḥadīth narrated by a **majhūl** person — someone whose identity is not established at all. This is considered a **strange (gharīb)** position from him.

Note on Mursal Ḥadīth

A **mursal ḥadīth** (حديث مرسل) is one where the **Ṣaḥābī’s name is missing** — a Tābi‘ī directly attributes the report to the Prophet ﷺ without naming the Ṣaḥābī in between.

School	Ruling on mursal ḥadīth
Ḥanafī	Accepted — if the one skipping the Ṣaḥābī’s name is a reliable person (e.g. Sa‘īd ibn al-Musayyab)
Shāfi‘ī	Rejected — because the missing person could be a non-Ṣaḥābī whose reliability is unknown

Imam al-Shāfi‘ī lists mursal ḥadīth among the categories of **weak (ḍa‘īf)** ḥadīth. The Aḥnāf find it contradictory that he rejects mursal ḥadīth but accepts a report from a completely unidentified narrator.

Opinion 3 — Neither Farḍ nor Wājib

A **third opinion** holds that Sa‘ī is **neither Farḍ nor Wājib** — it is merely recommended.

Dalīl:

إِنَّ الصَّفَا وَالْمَرْوَةَ مِنْ شَعَائِرِ اللَّهِ فَمَنْ حَجَّ الْبَيْتَ أَوْ اعْتَمَرَ فَلَا جُنَاحَ عَلَيْهِ أَنْ يَطَّوَّفَ بِهِمَا

“Indeed, Ṣafā and Marwah are among the symbols of Allāh. So whoever performs Hajj of the House or ‘Umrah, there is no sin upon him if he walks between them.”

Ref: Surah al-Baqarah, 2:158.

Their reasoning: The phrase “**lā junāḥa ‘alayhi**” (لا جناح عليه) [there is no sin upon him] is typically used in the Qur’an for **optional** matters — meaning: if you do it, fine; if you do not, also fine. This wording does not indicate obligation.

Ḥanafī response — the context of revelation (sabab al-nuzūl)

The Aḥnāf answered this by explaining the **specific context** in which this āyah was revealed:

Context: In the pre-Islamic period (Jāhiliyyah), **idols** were placed on Ṣafā and Marwah — specifically, the idol **Isāf** on one and **Nā’ilah** on the other. When the Ṣaḥābah embraced Islam, they **felt ḥaraj** (حرج) [discomfort/reluctance] about performing Sa‘ī between these mountains **because of the association with the idols**. They asked: “The idols were placed there — should we still perform Sa‘ī?”

The āyah came down to **remove that ḥaraj**: “There is no sin upon you if you perform the Sa‘ī between Ṣafā and Marwah” — meaning, **the presence of the idols does not make your Sa‘ī sinful**. You are not doing it as a respect toward the idols; you are doing it for Allāh.

Key points:

- Ṣafā and Marwah are **from the sha‘ā’ir** (شعائر) [symbols/rites] of Allāh — they are **historical Islamic mountains**, not ordinary places. The Islamic history of Hājar عليها السلام’s running between them belongs to these mountains.
- The āyah is **not** discussing whether Sa‘ī is obligatory or optional. Rather, it is **countering the Ṣaḥābah’s reluctance** about performing it due to the idol-association.
- This is analogous to the Ka’bah itself: despite there being idols around it, Muslims still performed ṭawāf — keeping the Ka’bah in mind, not the idols.

Conclusion: The āyah cannot be used to determine the status (farḍ/wājib/optional) of Sa‘ī because it is addressing a **different question entirely**.

Ḥanafī evidence for the Wujūb of Sa‘ī

The Aḥnāf established their position by the following reasoning:

1. **Only two arkān** (فرائض) of Hajj can be proven by **dalīl qaṭ‘ī**: (a) **Wuqūf ‘Arafah** and (b) **Ṭawāf al-Ziyārah**.

- Wuqūf ‘Arafah is established by the ḥadīth:

الْحَجُّ عَرَفَةُ

“Hajj is ‘Arafah.”

- Ṭawāf al-Ziyārah is established by:

وَلِلَّهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ

“And due to Allāh from the people is the Hajj of the House.”

Ref: Surah Āl ‘Imrān, 3:97.

The “Hajj of the House” refers to the ṭawāf, because no other act of worship is specifically directed **toward the House** except ṭawāf.

2. **All other obligatory acts** of Hajj are established by **dalīl ḡannī** (ظني) [probabilistic evidence] — i.e. **khābar wāḥid** — and therefore they are **wājib**, not farḍ.
3. A ḥadīth indicates:

لَا يَتِمُّ الْحَجُّ إِلَّا بِالسَّعْيِ

“Hajj cannot be completed except with Sa‘ī.”

Ref: Hadith — as cited in class (confirm in hadith index).

The word “**lā yatimmu**” (لا يتم) [cannot be completed] — rather than “**lā yaṣīḥḥu**” (لا يصح) [cannot be valid] — indicates the position of **wujūb**, not farḍiyyah. If Sa‘ī is missed, Hajj is **not**

completed (i.e. defective), but it is not **invalid**. This is precisely the distinction between wājib and farḍ.

Part 4 — The Two Parameters for Dalīl Qaṭʿī (Definitive Proof)

The teacher expanded on the recurring uṣūl framework:

Parameter 1 — Certainty of transmission (qaṭʿī al-thubūt)

How the text reached us:

Type	Status
Entire Qurʿan	Qaṭʿī al-thubūt — transmitted in tawātur
Ḥadīth Mutawātir / Mashhūr	Qaṭʿī al-thubūt
Khabar Wāḥid	Ẓannī al-thubūt — cannot establish farḍ

Parameter 2 — Certainty of meaning (qaṭʿī al-dalālah)

What the text indicates:

Situation	Status
Meaning is clear and singular — no other interpretation possible	Qaṭʿī al-dalālah
Meaning has two or more possible interpretations	Ẓannī al-dalālah — cannot establish farḍ

Both parameters must be qaṭʿī for the ruling to be **farḍ**. If either is ẓannī, the ruling is **wājib** at most.

Important clarification: Even some **Qurʿanic āyāt** can be ẓannī — not in their transmission (the entire Qurʿan is qaṭʿī al-thubūt), but in their **meaning**. If the meaning of an āyah admits multiple interpretations, it becomes ẓannī al-dalālah and cannot, on its own, establish farḍiyyah.

Division of scholarly roles

Discipline	Their task
Muḥaddithūn (محدثون)	Check the authenticity of the ḥadīth on the basis of the chain (sanad) — is it mutawātir, mashhūr, or wāḥid?
Fuqahāʾ (فقهاء)	Check the meaning (dalālah) — does the wording point to its ruling certainly or uncertainly?

Part 5 — Practical Ruling: If Saʿī is missed

Since Saʿī is **wājib** (Ḥanafī):

- If missed **with a genuine excuse (ʿudhr)** — such as severe illness, menstruation (ḥayḍ), or post-natal bleeding (nifās) — **no penalty**.

- If missed **without excuse** — **dam** (دم) is obligatory: slaughter of an average goat in the Ḥaram of Makkah.

The principle: Wājib missed for ‘udhr → no penalty

This principle was extracted from the ruling of Ṭawāf al-Wadā‘ (طواف الوداع):

- Ṭawāf al-Wadā‘ is the **last thing** a pilgrim does when leaving Makkah — it is **wājib**.
- Yet the Prophet ﷺ **permitted menstruating women** to skip it **without issuing any penalty (dam)**.
- This established the general rule that **any wājib missed for a genuine ‘udhr incurs no penalty**.

Contrast with Farḍ:

- If a **farḍ** is missed, it does not matter **why** it is missed — for ‘udhr or without ‘udhr — the action is **invalid** and must be repeated.
- For **wājib**, the action remains valid even when missed, but a penalty applies — **unless** there is a genuine excuse.

Part 6 — Amount of Sa‘ī: Seven Rounds

How to count

- **Ṣafā to Marwah = one round** (شوط)
- **Marwah back to Ṣafā = second round**
- Total = **seven rounds**
- The Sa‘ī **starts at Ṣafā** and **ends at Marwah** (7th round).

Common misconception: Some people think that going from Ṣafā to Marwah and coming back to Ṣafā counts as one round. This is **incorrect**. Each direction is one round.

Climbing on the mountains

Climbing onto Ṣafā or Marwah is **sunnah** — it is **not wājib**. If a person does not climb and simply walks between the two points at ground level:

- He has **missed a sunnah**, not a wājib.
- There is **no penalty** — only the mild **karāhah** of missing a sunnah intentionally.

Ramal (hastening) during Sa‘ī

Ramal (رمل) [hastening/jogging] during the Sa‘ī is also **sunnah**. If missed:

- **No penalty** — it is a sunnah.
- Missing a sunnah intentionally is **makrūh** (مكروه) only.

Part 7 — The Penalty (Jazā’) Framework: Uṣūl for Missing a Wājib

The teacher taught a comprehensive **uṣūl principle** regarding penalties when wājibāt are missed. This is one of the most important principles for applying across all Wājibāt of Hajj.

Principle 1 — Wājib missed for ‘udhr → no penalty

(Covered in Part 5 above.)

Principle 2 — Amount of penalty based on how much is missed

This principle was **extracted (mustanbat)** from the rulings of **Ramī al-Jimār** (رمي الجمار) [stoning the pillars] and is applicable to **all wājibāt** of Hajj:

Situation	Penalty
Entire wājib missed (for no ‘udhr)	Dam (دم) — slaughter of an average goat in the Ḥaram
Major part (akṭar / أكثر) of a wājib missed (for no ‘udhr)	Dam — because the major part is treated like the whole
Minor part (aqall / أقل) of a wājib missed (for no ‘udhr)	Ṣadaqah (صدقة) for each missed part — equivalent to Ṣadaqat al-Fiṭr per unit

Application to Sa‘ī (7 rounds)

Rounds missed (no ‘udhr)	Classification	Penalty
All 7 rounds	Entire wājib missed	Dam (one goat)
4 rounds (out of 7)	Major part missed	Dam — major is treated like whole
3 rounds	Minor part missed	Ṣadaqah — 3 × Ṣadaqat al-Fiṭr (one per round)
2 rounds	Minor part missed	Ṣadaqah — 2 × Ṣadaqat al-Fiṭr
1 round	Minor part missed	Ṣadaqah — 1 × Ṣadaqat al-Fiṭr

The Ṣadaqah amount per round

Each ṣadaqah = approximately **half a ṣā‘ (صاع) of wheat** given to a **miskīn (مسكين)** [needy person].

Cap on ṣadaqah

If the **total ṣadaqah** amount — calculated by the number of missed minor parts — **reaches the value of a dam** (the price of a goat), then the pilgrim **may replace it with a dam** instead. But the default when minor parts are missed is ṣadaqah, not dam.

Part 8 — The Broader Uṣūl: Dam as the Standard Penalty

The teacher articulated the general rule:

Every wājib action for which there is a **dam** when the **entire** action is missed, also carries a **dam** when its **major part (akṭar)** is missed for no ‘udhr. This is extracted from the rulings of Ramī al-Jimār and is applicable across all the Wājibāt of Hajj.

This uṣūl allows scholars to derive penalties for specific scenarios even when no explicit ḥadīth addresses them — because the principle has been established from the known cases.

Part 9 — Sa‘ī for ‘Umrah

A student asked whether the above ruling on Sa‘ī applies to ‘Umrah as well. The teacher noted that Sa‘ī is also performed in ‘Umrah, but said he would **confirm the specific ruling** for ‘Umrah’s Sa‘ī after the class.

Q&A

Q: Is Ṭawāf al-Wadā‘ wājib for ‘Umrah as well?

A: The teacher indicated this needs to be checked and would be confirmed separately.

Q: Can you clarify — does the “kataba” (كتب) in the ḥadīth about Sa‘ī necessarily mean farḍ?

A: No. The word **kataba** means “Allāh commanded” — but Allāh’s commands appear in the form of **farḍ**, **wājib**, and even **sunnah mu’akkadah** at times. Both farḍ and wājib are possible meanings. When there is this ambiguity, the Ḥanafī school takes the meaning that **accords with the Qur’anic text**. Since the Qur’anic āyah does not establish farḍiyyah for Sa‘ī, the meaning of wujūb is preferred. Taking the meaning of farḍiyyah from a khabar wāḥid would amount to preferring the ḥadīth over the āyah — and adding to the Qur’an on the basis of a ḡannī source, which is not suitable.

Closing

- **Covered:** Five Wājibāt of Hajj (overview); status of Sa‘ī (Wājib — Ḥanafī, Farḍ — Shāfi‘ī, third opinion — neither); evidence from Qur’an (al-Baqarah 2:158 — context of revelation) and ḥadīth; objections to the Shāfi‘ī dalīl (majhūl narrator, uncertain meaning); amount of Sa‘ī (7 rounds); climbing and ramal as sunnah; penalty framework (dam for whole/major part, ṣadaqah for minor part); wājib missed for ‘udhr = no penalty; mursāl ḥadīth acceptance (Ḥanafī vs Shāfi‘ī); two parameters of dalīl qaṭ‘ī.
- **Next class:** Continuation of Sa‘ī — conditions for validity, sunan, timing, and ruling on delay; same time inshā’Allāh.

Masail e Hajj – Class 13 Summary

DATE June 9, 2026

TOPIC Sa‘ī between Ṣafā and Marwah – Conditions of Validity, Sunan, Timing, and Rulings When Missed

TEACHER Mufti Umar Aejaaz

Introduction

This lesson continues the detailed study of **Sa‘ī** (سعي) between Ṣafā and Marwah, building on the previous class which established its status as **Wājib** (Ḥanafī) and the penalty framework. Today the teacher covers: the **seven rounds** and the farḍ vs wājib within Sa‘ī itself, the **conditions (shurūṭ)** that make Sa‘ī valid, the **sunan** of Sa‘ī, its **timing**, and what happens when Sa‘ī is **delayed or missed entirely**. A Q&A section addresses Sa‘ī in ‘Umrah, Ḥajj al-Qirān vs Ḥajj al-Ifrād, and the number of Sa‘īs required.

Part 1 – The Seven Rounds: Confirmation and Farḍ vs Wājib

The seven rounds are established by Ijmā‘

The requirement of **seven rounds** (أشواط) is established by:

1. **Ijmā‘** (إجماع) – the consensus of the Ummah.
2. **The practice of the Prophet ﷺ** – he performed seven rounds.

Reminder (from last class): One round = Ṣafā to Marwah; the return from Marwah to Ṣafā is a second round. The Sa‘ī starts at Ṣafā and ends at Marwah (7th round). The non-preferred opinion that counts a round-trip as one round is **not the mu‘tamad (relied-upon) opinion**.

What is Farḍ and what is Wājib within Sa‘ī?

Element	Status	Explanation
Being present (الحضور) between Ṣafā and Marwah	Farḍ	The essential component – presence fulfils the farḍ regardless of <i>how</i> one is present (walking, carried, wheelchair)
Walking on one’s feet (المشي على الأقدام)	Wājib	Must walk unless there is a genuine ‘udhr; utilising a wheelchair, animal, or being carried without excuse = missing the wājib

Practical implication: A person who is **carried** or uses a **wheelchair** without a valid excuse: - Has **not** missed the farḍ (he was present). - Has missed the **wājib** of walking → **dam** (دم) is required if he cannot repeat.

This is **identical** to the ruling in Ṭawāf (covered in Class 10).

Part 2 — Conditions for Validity of Sa‘ī (Shurūt)

Condition 1 — Sa‘ī must be after a valid Ṭawāf

Sa‘ī is a follower (tābi‘ / تابع) of Ṭawāf. A follower must come **after** what it follows — it cannot precede it.

Scenario	Ruling
Sa‘ī performed after a complete Ṭawāf (7 rounds)	Valid
Sa‘ī performed after the major part of Ṭawāf (4+ rounds)	Valid — because the major part is treated as the whole
Sa‘ī performed before any Ṭawāf	Not valid — must be repeated after Ṭawāf

Dalīl: The Prophet ﷺ performed Sa‘ī after Ṭawāf, and he instructed:

خُذُوا عَنِّي مَنَاسِكَكُمْ

“Learn your rites (of Hajj) from me.”

Ref: Hadith — as cited in class (confirm in hadith index).

Condition 2 — Must start from Ṣafā and end at Marwah

The first round **must** begin from Ṣafā. If a person starts from Marwah instead:

- That first round (Marwah → Ṣafā) is **not counted**.
- He must complete seven valid rounds starting from Ṣafā — effectively performing **eight rounds** total, with the first discarded.

Dalīl: When the Prophet ﷺ was asked where to start, he said:

نَبْدَأُ بِمَا بَدَأَ اللَّهُ بِهِ

“We begin with what Allāh began with.”

Ref: Hadith — as cited in class (Sahih Muslim and others — confirm exact numbering).

Allāh mentioned Ṣafā **first** in the Qur’an:

إِنَّ الصَّفَا وَالْمَرْوَةَ مِنْ شَعَائِرِ اللَّهِ

“Indeed, Ṣafā and Marwah are among the symbols of Allāh.”

Ref: Surah al-Baqarah, 2:158.

The Prophet ﷺ himself always started from Ṣafā. This is the **preferred (rājih) opinion** — that starting from Ṣafā is a **condition of validity**.

Non-preferred opinion: Starting from Ṣafā is not compulsory (merely sunnah). This is **not the mu‘tamad**.

Condition 3 — Ṭahārah is NOT required for Sa‘ī itself

Ṭahārah (طهارة) — whether from ḥadath aṣghar (minor impurity) or ḥadath akbar (major impurity / janābah) — is **not a condition** for the validity of Sa‘ī.

Reason: Sa‘ī is performed **outside the Masjid** (al-Mas‘ā / المسعى), not inside it. The requirement of ṭahārah is linked to acts performed **inside the Masjid** (i.e. Ṭawāf). Since Sa‘ī is outside, ṭahārah is not stipulated for it.

However — the critical link to Ṭawāf:

Since Sa‘ī must follow a **valid Ṭawāf**, and Ṭawāf requires ṭahārah, the practical effect is:

Scenario	Ṭawāf valid?	Sa‘ī valid?
Ṭawāf with ṭahārah → Sa‘ī without ṭahārah	Yes	Yes — Sa‘ī itself doesn’t need ṭahārah
Ṭawāf without ṭahārah (e.g. in ḥayḍ or janābah) → Sa‘ī with ṭahārah	No	No — because it follows an invalid Ṭawāf
Ṭawāf without ṭahārah → person obtains ṭahārah → performs Sa‘ī with ṭahārah	No (the Ṭawāf was still invalid)	No — the Sa‘ī is not after a <i>valid</i> Ṭawāf

Key takeaway: Ṭahārah is not a condition of Sa‘ī itself, but it is indirectly required because Sa‘ī must follow a **valid Ṭawāf** — and Ṭawāf **does** require ṭahārah (as wājib in the Ḥanafī school).

Q&A — Is the Mas‘ā (place of Sa‘ī) part of the Masjid?

Q: People pray in the Mas‘ā area during ṣalāh times, and there are prayer markings on the floor. Does this make it part of the Masjid?

A: No. The fact that people pray there during congregation — when the Masjid is full and the overflow extends outside — does not make the Mas‘ā part of the Masjid. People also pray outside the Masjid in the streets when it is full; that does not make the streets part of the Masjid.

Q: What about the expansion (tawsi‘) of the Masjid — doesn’t that change the status?

A: No. The **status declared by Allāh in the Qur’an** does not change through human expansion. The Mas‘ā is declared as the place of Sa‘ī — it will remain as such even if physically enclosed within an expanded building. The **aḥkām of Sharī‘ah** follow the original designation, not architectural changes. Similarly, the Ka’bah’s status does not change based on renovations.

Part 3 — Sunan of Sa‘ī

Ramal (hastening) in the marked area

- In each round, there is a **specific marked section** between two green markers/pillars.
- In this section, **ramal** (رمل) [hastening/jogging] is **masnūn** (مسنون) [sunnah].
- In the **rest** of each round, **normal walking** is masnūn.

Ramal is for men only

- **Women** walk normally throughout the entire Sa‘ī — including in the marked ramal area.
- If ramal is missed (by men), there is **no penalty** — only the **karāhah** of missing a sunnah intentionally.

Part 4 — Timing of Sa‘ī (for Hajj)

Basic time: After Ṭawāf al-Ziyārah, within the days of slaughtering

The Sa‘ī that is a **wājib of Hajj** must come after Ṭawāf al-Ziyārah (طواف الزيارة) — the second fard of Hajj — within the **three days of slaughtering** (Ayyām al-Naḥr).

Why not after Ṭawāf al-Qudūm?

Ṭawāf al-Qudūm (the arrival ṭawāf) is a **sunnah/nafl ṭawāf**. A **wājib Sa‘ī** cannot be a follower of a **nafl Ṭawāf** — the wājib requires a corresponding **fard Ṭawāf** (i.e. Ṭawāf al-Ziyārah) to follow.

The concession (rukḥṣah): Sa‘ī after Ṭawāf al-Qudūm

The Sharī‘ah grants a concession: If a pilgrim anticipates that performing Sa‘ī during the Ayyām al-Naḥr will be **difficult** due to crowds and the many obligations of those days (Ṭawāf, Ramī, Qurbānī, Ḥalq), he may perform the Sa‘ī **in advance** — immediately after Ṭawāf al-Qudūm (upon first arriving in Makkah).

Scenario	Ruling
Performs Sa‘ī after Ṭawāf al-Qudūm (arrival)	Valid — the wājib is fulfilled; no need to repeat during Ayyām al-Naḥr
Does not perform Sa‘ī after arrival; performs it after Ṭawāf al-Ziyārah during Ayyām al-Naḥr	Standard ruling — this is the basic time

This concession is to **ease the burden** on the pilgrim during the busiest days of Hajj.

Part 5 — When Sa‘ī is Missed or Delayed

Case 1 — Still in Makkah

If the pilgrim did not perform Sa‘ī during the Ayyām al-Naḥr but is **still in Makkah**:

- He should **perform the Sa‘ī** whenever he remembers.
- There is **no penalty for the delay** — no dam is required merely for being late.
- Even if he had **physical/marital relations** after Ṭawāf al-Ziyārah, the Sa‘ī is **still valid** when performed later. The iḥrām restrictions were already lifted by the Ṭawāf; the state of iḥrām does not depend on Sa‘ī.

Case 2 — Returned home without performing Sa‘ī

If the pilgrim returned home and **missed the Sa‘ī entirely**, without a genuine excuse:

Option A — Send a dam: - Slaughter of an average goat in the Ḥaram of Makkah. - This is the **preferred option** according to **Imam Muḥammad** رحمه الله, because: - The defect (nuqṣān) is a **lesser one** (missing a wājib, not a fard). - It saves the pilgrim travel expenses. - It is **more beneficial for the people of the Ḥaram** (the meat is distributed there).

Option B — Return to Makkah: - He may return, enter a **new iḥrām** (since the old one is already completed), and perform the Sa‘ī. - Once performed, the **penalty (dam) is dropped** — because he has now done the main action itself.

When to choose which option?

Defect level	Recommendation
Lesser defect (e.g. missing Sa‘ī, Ṭawāf without wuḍū)	Send the dam — better and more practical
Greater defect (e.g. Ṭawāf in state of janābah)	Come back to repeat the action — if travel is feasible

Not knowing the ruling is NOT an excuse

If a person missed Sa‘ī because he **did not know** it was wājib — this is **not considered a valid ‘udhr (excuse)**. The **dam remains obligatory**. Ignorance of Shari‘ah rulings does not drop the penalty.

Part 6 — Sa‘ī in ‘Umrah

Q (from previous class): Is Sa‘ī wājib in ‘Umrah as well?

A: Yes. Sa‘ī is **wājib in both Hajj and ‘Umrah**.

Part 7 — Sa‘ī in Ḥajj al-Qirān: How Many Sa‘īs?

Q: In Ḥajj al-Qirān (where Hajj and ‘Umrah are combined in one iḥrām), how many Sa‘īs must be performed?

A: Two Sa‘īs are required:

Sa‘ī	When	For
First Sa‘ī	After ‘Umrah Ṭawāf	Wājib of ‘Umrah
Second Sa‘ī	After Ṭawāf al-Ziyārah	Wājib of Hajj

Even though the pilgrim is in **one iḥrām**, the Sa‘ī is a **separate wājib** for each — ‘Umrah and Hajj require their own Sa‘ī independently.

Part 8 — Ḥajj al-Ifrād: Discussion Deferred

Q: In Ḥajj al-Ifrād (Hajj only, no ‘Umrah), can the pilgrim exit iḥrām after Ṭawāf al-Qudūm without performing Sa‘ī?

A: The teacher clarified the general principles:

- In Ḥajj al-Ifrād, the pilgrim enters iḥrām with the **intention of Hajj only**.
- He **cannot exit iḥrām** until the Hajj rites are completed (Wuqūf ‘Arafah, Ṭawāf al-Ziyārah, etc.).
- The Sa‘ī is **not a condition** for exiting iḥrām — iḥrām restrictions are lifted by Ṭawāf al-Ziyārah (and Ḥalq/Qaṣr).
- On the occasion of Ṭawāf al-Qudūm, performing Sa‘ī is **optional** — the pilgrim may do it then (using the concession) or defer it to after Ṭawāf al-Ziyārah.

The teacher noted that the **detailed ruling for Ḥajj al-Ifrād** – particularly regarding exiting iḥrām – needs further verification and will be shared with students via the WhatsApp group.

Quick Reference: Three Types of Hajj

Type	Meaning	Iḥrām
Ḥajj al-Ifrād (الإفراد)	Hajj only – no ‘Umrah	One iḥrām for Hajj; remains in iḥrām until Hajj rites are complete
Ḥajj al-Tamattu‘ (التمتع)	‘Umrah first, then Hajj	Two separate iḥrāms – exit after ‘Umrah, re-enter for Hajj
Ḥajj al-Qirān (القران)	‘Umrah and Hajj together	One iḥrām for both; remains in iḥrām until Hajj rites are complete

Closing

- **Covered:** Seven rounds of Sa‘ī (ijmā‘); farḍ (presence) vs wājib (walking) within Sa‘ī; conditions for validity (must follow valid Ṭawāf, must start from Ṣafā, ṭahārah not required for Sa‘ī but indirectly needed via Ṭawāf); the Mas‘ā is not part of the Masjid; sunan (ramal for men in marked area); timing (after Ṭawāf al-Ziyārah, with concession to do it after Ṭawāf al-Qudūm); rulings when missed (still in Makkah = perform with no penalty; returned home = dam or come back); ignorance is not an excuse; Sa‘ī in ‘Umrah (wājib); Ḥajj al-Qirān requires two Sa‘īs.
- **Next class:** Next wājib of Hajj (Muzdalifah); details of Ḥajj al-Ifrād to be shared separately; same time inshā’Allāh.

Masail e Hajj — Class 14 Summary

DATE June 10, 2026

TOPIC Wuqūf at Muzdalifah — Status, Farḍ, Place, Time, and Rulings; Introduction to Ramī al-Jimār and the Uṣūl of the Prophet's Actions

TEACHER Mufti Umar Aejaaz

Introduction

This class covers two of the five **Wājibāt of Hajj**: the **Wuqūf** (وقوف) [standing/staying] at **Muzdalifah** (مزدلفة), and the beginning of the discussion on **Ramī al-Jimār** (رمي الجمار) [stoning the pillars]. For Muzdalifah, the teacher discusses its status (Wājib vs Farḍ), the essential act (farḍ), the place, the time, and the ruling when it is missed. For Ramī, the class covers the dalīl for its obligation and a major **uṣūl discussion** on when the **actions of the Prophet** ﷺ make something obligatory — distinguishing between obligation in **practice** ('amalī) and obligation in **creed** ('aqīdah/i'tiqādī), and the concept of the Prophet's **khuṣūṣiyyāt** (خصوصيات) [specialties].

Part 1 — Status of Wuqūf at Muzdalifah

Ḥanafī position: Wājib

According to the Ḥanafī school, Wuqūf at Muzdalifah is Wājib (واجب).

Reasoning:

1. Its obligation is established from **khābar wāḥid** (خبر واحد), which can maximally prove **wujūb**, not farḍiyyah.
2. The Prophet ﷺ said:

الْحَجُّ عَرَفَةُ

“Hajj is ‘Arafah.”

Ref: Hadith — as cited in class (confirm in hadith index).

If Muzdalifah were also farḍ, the Prophet ﷺ would have included it in this definition. By singling out ‘Arafah, he indicated that **‘Arafah alone** is the farḍ wuqūf.

3. The Prophet ﷺ **sent the women and weaker members of his family ahead** from Muzdalifah before the compulsory time, allowing them to skip the wuqūf. He did **not order any kaffārah (penalty)** for them. This demonstrates that Muzdalifah is **only wājib** — because a **farḍ cannot be skipped** for an ‘udhr without invalidating the action.

Shāfi‘ī position: Farḍ (Rukn)

According to Imam al-Shāfi‘ī, Wuqūf at Muzdalifah is Farḍ.

Dalīl:

فَإِذَا أَقَضْتُمْ مِنْ عَرَفَاتٍ فَادْكُرُوا اللَّهَ عِنْدَ الْمَشْعَرِ الْحَرَامِ

“And when you depart from ‘Arafāt, then remember Allāh at al-Mash‘ar al-Ḥarām.”

Ref: Surah al-Baqarah, 2:198.

Imam al-Shāfi‘ī’s reasoning: The āyah gives a direct **command (amr)** to remember Allāh at al-Mash‘ar al-Ḥarām (Muzdalifah). A command in the Qur’an refers to **farḍiyyah**.

Ḥanafī response

The Ahnāf responded on **two fronts**:

1. The meaning of “dhikr” (ذكر) is uncertain:

The word “fa-dhkurū Allāh” (فادذكروا الله) [remember Allāh] could mean:

- **The wuqūf itself** — standing at Muzdalifah in remembrance of Allāh, OR
- **The ṣalāh** — specifically Ṣalāt al-Maghrib and Ṣalāt al-‘Ishā’ combined at Muzdalifah with **jam‘ ta’khīr** (جمع تأخير) [delayed combining].

Since **ṣalāh is undoubtedly farḍ**, the āyah could simply be commanding the prayers at Muzdalifah — not establishing a separate farḍ of wuqūf. The **uncertainty in meaning** prevents this āyah from being a **dalīl qat‘ī** for the farḍiyyah of wuqūf.

2. The fact of istiḥbāb (اجتهاد) proves there is no qat‘ī dalīl:

The very fact that scholars had to engage in **ijtihād** about whether Muzdalifah is farḍ or wājib shows that there is **no definitive proof (dalīl qat‘ī)**. If there were, there would be no room for ijtihād — the matter would be settled.

Part 2 — The Farḍ (Essential Act) of Wuqūf at Muzdalifah

Just being present is sufficient

The **farḍ** (essential/minimum act) within the wuqūf is simply **being present (الحضور)** in Muzdalifah — in any manner:

Scenario	Farḍ fulfilled?
Stayed properly and made du‘ā’	Yes
Merely passed through without stopping	Yes — farḍ is done
Stayed for one second	Yes
Was present without knowing it was Muzdalifah	Yes — niyyah is not required
Was present but had no intention of wuqūf	Yes — niyyah is not a shart

Key distinction: The person who merely passes through fulfils the **farḍ** but misses the **sunnah** of proper standing with du‘ā’.

Ṭahārah is NOT required

Ṭahārah (طهارة) is not a condition for the wuqūf at Muzdalifah. Ṭahārah is mandatory only for **Ṭawāf**, which is performed inside the Masjid. Other Hajj actions performed outside the Masjid — including Wuqūf at ‘Arafah and Wuqūf at Muzdalifah — do not require ṭahārah.

Part 3 — Place of Wuqūf

Anywhere in Muzdalifah — except Wādī Muḥassar

The wuqūf may be performed **anywhere** within the area of Muzdalifah.

Exception: Wādī Muḥassar (وادي محسر) — this valley is **not** a valid place for the wuqūf. Staying there does not count.

Preferred location

The **preferred (mustaḥabb)** location is near **Jabal Qūzah** (جبل قزح) — the mountain near which the **Imam** and **Amīr of Hajj** stand. This is the same place where the Prophet ﷺ made his wuqūf. Being close to it means being:

- Closer to the **Imam**.
- Closer to the **place of the Prophet** ﷺ.

However, it is **not permissible** to rush, push, or cause harm to others in trying to reach this spot.

Part 4 — Time of Wuqūf at Muzdalifah

The compulsory time: Between Ṣubḥ Ṣādiq and sunrise

Period	Status
Night (after arriving from ‘Arafah, 9th Dhū al-Ḥijjah)	Sunnah — spending the night in Muzdalifah is recommended, not wājib
From Ṭulū‘ al-Fajr (صبيح صادق) to Ṭulū‘ al-Shams (طلوع الشمس)	Wājib — this is the compulsory period for the wuqūf

Practical sequence

1. **After ‘Arafah** (evening of 9th Dhū al-Ḥijjah): pilgrims travel to Muzdalifah.
2. **At Muzdalifah:** Ṣalāt al-Maghrib and Ṣalāt al-‘Ishā’ are performed together (**jam‘ ta’khīr** — Maghrib delayed to ‘Ishā’ time).
3. **Night:** Rest and sleep — this is sunnah, not wājib.
4. **Fajr prayer:** Should be performed **as early as possible** — in the **dark part** of Fajr time (not waiting for brightness as is normally preferred in the Ḥanafī school).
5. **After Fajr:** Stand (**wuqūf**) facing the Qiblah, making du‘ā’ and dhikr, until proper daylight appears.
6. **Before sunrise:** Depart for Minā.

Why pray Fajr early on this day?

Normally in the Ḥanafī school, Fajr is preferred in the **isfār** (إسفار) [bright period]. But on the morning of the 10th Dhū al-Ḥijjah at Muzdalifah, Fajr should be prayed **early in the dark** (**ghalas** / غلس) — so the pilgrim has **more time** for the wuqūf and du‘ā’ before departing.

Ruling for departing early

Scenario	Ruling
Departed after Fajr prayer but before standing for wuqūf (rushed away immediately after ṣalāh)	Farḍ of presence is done (he was there); but missed the sunnah of standing — no penalty , but it is against the sunnah
Departed before Fajr time entirely (left Muzdalifah in the night)	Wājib missed — if without ‘udhr, dam is required

Imam al-Shāfi‘ī’s extended compulsory time

Imam al-Shāfi‘ī held that the compulsory time for the wuqūf begins from the **second half of the night** (after midnight of the 9th/10th Dhū al-Ḥijjah) — not from Fajr. This extends the compulsory window.

Part 5 — Ruling When Wuqūf at Muzdalifah is Missed

Missed with ‘udhr (genuine excuse): No penalty

The Prophet ﷺ sent the **women, elderly, and weaker members** of his family ahead from Muzdalifah during the night — before the compulsory time. He did **not order any penalty** for them. This establishes:

- Weaker pilgrims, women, children, and the elderly may **depart at night** before Fajr.
- The wājib is **missed for ‘udhr** (crowd, physical weakness) → **no dam**.

Missed without ‘udhr: Dam is required

If a healthy, capable person leaves Muzdalifah before the compulsory time (Fajr to sunrise) **without a valid excuse**:

- **Dam** (دم) — slaughter of a goat in the Ḥaram.

Part 6 — Ramī al-Jimār: Introduction and Dalīl

Status: Wājib — by Ijmā‘

Ramī al-Jimār (رمي الجمار) [stoning the pillars] is **wājib** and agreed upon by **all schools of thought** as a compulsory act of Hajj.

Dalīl

1. **Ijmā‘** (إجماع): The entire Ummah agrees on its obligation.
2. **The Prophet’s statement**: He ordered the performance of Ramī.
3. **The Prophet’s practice** (fi‘l / فعل): He performed Ramī in his Hajj.
4. **His general instruction**:

خُذُوا عَنِّي مَنَاسِكَكُمْ

“Learn your rites (of Hajj) from me.”

Ref: Hadith — as cited in class (confirm in hadith index).

This means his actions during Hajj are themselves evidence for obligation.

Part 7 — Major Uṣūl: When Does the Prophet's Action (Fi'l) Establish Wujūb?

The teacher explained a critical **uṣūl principle** regarding when the actions of the Prophet ﷺ create obligation for the Ummah.

Three conditions for the Prophet's action to establish wujūb

For an action of the Prophet ﷺ to obligate the Ummah to follow it, **three conditions** must be met:

#	Condition	Explanation
1	Done with consistency (مواظبة)	He performed it regularly, not just once or occasionally
2	Done as 'ibādah (عبادة), not personal need	It was performed as worship, not to fulfil a personal or natural need (e.g. eating, answering the call of nature)
3	Not his khuṣūṣiyyah (خصوصية) [specialty]	It was not something exclusive to him — it must be applicable to the Ummah generally

The distinction: 'Amalī (practice-wise) vs I'tiqādī (creed-wise) wujūb

This is a **crucial distinction**:

Type	Meaning
Wājib 'Amalī (واجب عملي) [practice-wise]	The Ummah must perform the action — it is obligatory to practise upon it
Wājib I'tiqādī (واجب اعتقادي) [creed-wise]	It is declared wājib in one's belief — one must hold it to be wājib as a matter of conviction

When the Prophet's action (with the three conditions) is the sole evidence:

- It establishes **wājib 'amalī** — we must follow it in practice.
- It does **NOT** establish **wājib i'tiqādī** — we cannot declare it wājib as a matter of creed/belief.

Why? Because there is always a **possibility** that the action was the Prophet's **khuṣūṣiyyah** (specialty) — something exclusive to him. We cannot be certain that it applies to the Ummah. Therefore:

- **Practice:** We must follow it (out of caution — if it is wājib and we do it, we fulfil the obligation; if it turns out to be optional and we do it, there is no harm).
- **Creed:** We cannot declare it definitively wājib (because of the possibility of khuṣūṣiyyah).

In the case of Ramī al-Jimār

For Ramī, the matter is **beyond just the Prophet's action** — there is also: - His **explicit verbal order** to perform it. - **Ijmā'** of the Ummah.

Therefore, Ramī is established as wājib both **'amalī and i'tiqādī**.

Examples of Khuṣūṣiyyāt (the Prophet's specialties)

Action	Status	Why it is khuṣūṣiyyah
Tahajjud (تهجد)	Was farḍ upon the Prophet ﷺ only	He performed it with consistency as 'ibādah, but it was his specialty — not farḍ on the Ummah
Marrying more than four wives	His exclusive permission	Marriage is mubāḥ (permissible); but having nine wives at once was his khuṣūṣiyyah — the general limit for the Ummah is four (Qur'anic ruling). No one may follow him in this, not even as sunnah

Key point on khuṣūṣiyyah: When an action is declared the Prophet's khuṣūṣiyyah, it means **no one else may perform it** — not as wājib, not as sunnah, not even as mubāḥ. Otherwise, the designation of "khuṣūṣiyyah" would lose its meaning.

Part 8 — Preview: Points on Ramī to be Covered

The teacher listed the topics for the next class on Ramī al-Jimār:

1. **Definition** of Ramī — what qualifies as "throwing"?
2. **Time** — when is it performed on each day?
3. **Place** — where are the Jamarāt?
4. **Number of pebbles** — how many per throwing?
5. **Size of pebbles** — what is the correct size?
6. **Material** — what kind of stones are acceptable?
7. **Collection** — where should pebbles be gathered from?
8. **How many times per day** — number of Jamarāt stoned each day
9. **Method** — the correct technique of throwing
10. **Sunan** of Ramī
11. **Makrūhāt** — what is disliked during Ramī
12. **Ruling for delay or missing** — penalties

Closing

- **Covered:** Wuqūf at Muzdalifah (Wājib — Ḥanafī vs Farḍ — Shāfi'ī; dalīl from al-Baqarah 2:198 and Ḥanafī response — uncertainty of "dhikr"; farḍ = mere presence; place = anywhere except Wādī Muḥassar; time = Fajr to sunrise, night is sunnah; pray Fajr early; ruling when missed); Ramī al-Jimār introduction (wājib by ijma', Prophet's order and practice); uṣūl on when the Prophet's action establishes wujūb (three conditions; 'amalī vs i'tiqādī distinction; khuṣūṣiyyāt examples).
- **Next class:** Detailed rulings of Ramī al-Jimār — definition, time, place, pebbles, method, sunan, makrūhāt, and missed rulings; same time inshā'Allāh.

Masail e Hajj — Class 15 Summary

DATE June 12, 2026

TOPIC Ramī al-Jimār — Rulings for Missed/Delayed Ramī, Tadākhul (Combining Violations), Qaḍā' Concept, and Tartīb (Sequence) of Jamarāt

TEACHER Mufti Umar Aejaaz

Introduction

This lesson completes the study of **Ramī al-Jimār** (رمي الجمار) [stoning the pillars] by covering what happens when it is **missed or delayed**, the principle of **Tadākhul** (تداخل) [combining violations into a single penalty], a foundational discussion on the **concept of Qaḍā'** (قضاء) [making up missed acts] — when it applies and when it does not — and the **Tartīb** (ترتيب) [sequence] of stoning the three Jamarāt. Several practical cases are worked through applying these uṣūl principles.

Part 1 — Rulings When Ramī is Missed or Delayed

The four days of Ramī

Ramī is performed over **four days**: the 10th, 11th, 12th, and 13th of Dhū al-Ḥijjah. On the **10th** (Yawm al-Nahr), only **Jamarat al-ʿAqabah** is stoned (7 pebbles). On the **11th, 12th, and 13th**, all **three Jamarāt** are stoned (7 pebbles each = 21 per day).

Complete missing: All four days missed

If a person **completely missed** the Ramī in all four days — did not throw any pebbles at all:

- **Dam** (دم) is wājib — agreed upon in the Ḥanafī school.

Partial missing on a specific day

The **preferred opinion (muftā bihī)** of **Imam Abū Ḥanīfah** is that the Ramī of each day is **restricted to that day** — the Ramī of the 10th must be done on the 10th, the 11th on the 11th, and so on.

According to the Ṣāḥibayn (Imam Abū Yūsuf and Imam Muḥammad): The Ramī is restricted to the four days **collectively**, not day by day. So a person may do all the Ramī on any of the four days.

Penalty framework (applying the established uṣūl)

On the 10th (one Jamarah — 7 pebbles):

Pebbles missed	Classification	Penalty
All 7	Whole wājib missed	Dam
4 out of 7	Major part missed	Dam (major = whole)
3 out of 7	Minor part missed	Ṣadaqah — one per pebble (like Ṣadaqat al-Fiṭr each)
2 out of 7	Minor part missed	Ṣadaqah — one per pebble
1 out of 7	Minor part missed	Ṣadaqah — one pebble

On the 11th/12th/13th (three Jamarāt — 21 pebbles per day):

On these days, the unit of measurement is **Jamarāt** (not individual pebbles):

Jamarāt missed	Classification	Penalty
All 3 Jamarāt	Whole wājib of that day missed	Dam
2 out of 3	Major part missed	Dam
1 out of 3	Minor part missed	Ṣadaqah — for the missed pebbles of that Jamarah

Concession when ṣadaqah total reaches dam value

If the total ṣadaqah for missed pebbles **equals the value of one dam** (the price of a goat), the Sharī'ah grants a concession: **reduce the amount slightly** so the minor penalty does not equal the major penalty.

Example: If one dam = 90 dirham and one ṣadaqah = 30 dirham, then missing 3 pebbles = $3 \times 30 = 90$ (equal to dam). In this case, he may pay **89 dirham** — slightly less than the dam value — because the minor penalty should remain lesser than the major penalty.

Part 2 — Delayed Ramī: Performing Another Day's Ramī Later

According to Imam Abū Ḥanīfah (preferred opinion)

If a person delayed the Ramī of a specific day — e.g. did not do the Ramī of the 10th on the 10th but performed it on the 13th:

- The Ramī **itself is performed** (it counts), but
- A **penalty is due for the delay** (not for missing — he did perform it, just late).

According to the Ṣāḥibayn

Since the Ramī is collectively restricted to the four days (not day-by-day), performing any day's Ramī on another day within the four days incurs **no penalty**.

Complete missing across all four days

Opinion	Number of dams
Ṣāhibayn	One dam — because the entire Ramī is one collective wājib, and he missed it
Imam Abū Ḥanīfah	Also one dam — although he violated on three separate days (which should be three dams), the violations are combined (tadākhul) into one penalty

Part 3 — Tadākhul (Combining Violations into One Penalty)

The principle

When multiple **violations** occur and they meet **all three conditions**, they are combined into a **single penalty**:

#	Condition
1	The violations are of the same category (jins wāḥid / جنس واحد)
2	They occur within one iḥrām
3	They do not relate to a valuable asset (māl mutaqaawwam / مال متقوم)

Examples of Tadākhul (violations combined → one penalty)

Violation	Repetitions	Penalty
Shaving parts of the head during iḥrām	Shaved $\frac{1}{4}$, then another $\frac{1}{4}$, then another $\frac{1}{4}$, then the last $\frac{1}{4}$	One dam — not four; same category, one iḥrām, not about a valuable asset
Applying perfume to different body parts	Applied on 5 different parts	One dam — all combined
Wearing stitched clothing	Wore multiple garments	One dam — all combined
Missing Ramī of multiple days	Missed 1st, 2nd, and 3rd day Ramī	One dam — violations combined (Imam Abū Ḥanīfah)

Exception: Violations relating to valuable assets

Hunting wild animals in the Ḥaram during iḥrām:

- If a person hunted **3 wild animals** in the Ḥaram during one iḥrām → **3 separate penalties** (one per animal).
- The violations are **not combined** because the violation relates to a **valuable asset** (the animal has monetary value).
- Each animal is an independent valuable entity, so each requires its own compensation.

Part 4 — The Concept of Qaḍā' (Making Up Missed Acts)

When does Qaḍā' apply?

The teacher explained a fundamental uṣūl regarding **when a missed 'ibādah can be made up by performing the same action later**:

Principle: After the time of the 'ibādah has passed, if there exists **another 'ibādah of the same category** — whether wājib or nafl — that can still be performed, then **Qaḍā' is possible**. The person must turn his intention to the missed wājib and perform it.

If there is **no other 'ibādah of the same category** remaining in the year, then **Qaḍā' is not possible** — only the penalty (dam/ṣadaqah) remains.

Application

'Ibādah	After its time passes, is there another of the same kind?	Qaḍā' possible?
Ṣalāh (e.g. Zuhr)	Yes — there are other ṣalāhs ('Aṣr, Maghrib, etc.) and nafl ṣalāhs throughout the year	Yes — perform the missed ṣalāh as Qaḍā'
Qurbānī	No — after the days of Eid pass, there is no other Qurbānī in the entire year	No — pay the value as charity instead
Ramī	No — after the four days of Ramī pass, there is no other Ramī in the year	No — dam is the penalty; no Qaḍā' by Ramī

Qaḍā' within the four days of Ramī

However, **within** the four days:

- If he missed the Ramī of the **1st day**, he may perform the **Qaḍā'** of it on the 2nd, 3rd, or 4th day (because Ramī still exists as an 'ibādah on those days).
- If he missed the 1st, 2nd, and 3rd day, he may perform **all their Qaḍā'** on the 4th day.
- But once all four days have passed — no Qaḍā' by Ramī; only dam.

Note (per Imam Abū Ḥanīfah): Even though Qaḍā' is performed within the four days, the **penalty for delay** still applies because each day's Ramī was restricted to that day.

Takbīr al-Tashrīq example

During the days of Tashrīq (9th–13th Dhū al-Ḥijjah), **Takbīr al-Tashrīq** is wājib after each farḍ ṣalāh. If a person misses a ṣalāh during those days and performs its Qaḍā' **after** the days of Tashrīq (e.g. a month later):

- He performs the **ṣalāh** as Qaḍā' — because ṣalāh exists as an 'ibādah throughout the year.
- He does **NOT** recite Takbīr al-Tashrīq after the Qaḍā' ṣalāh — because there is no Takbīr al-Tashrīq outside those specific days. The “option” of Takbīr is gone.

Dalīl for Qaḍā'

Two types of evidence support the concept:

1. **From the nuṣūṣ (texts):** In the case of ṣalāh, there are explicit aḥādīth showing the Prophet ﷺ making up missed prayers — establishing the concept of Qaḍā'.

2. **From the uṣūl principle:** The existence of another ‘ibādah of the same category after the time has passed indicates that the Sharī‘ah recognises the continued validity of performing that type of act — so Qaḍā’ is directed there.

Part 5 — Tartīb (Sequence) of the Three Jamarāt

The sunnah sequence

On the 11th, 12th, and 13th Dhū al-Ḥijjah, the three Jamarāt must be stoned. The **sunnah sequence** is:

1. **Jamarat al-Ūlā** (الجمرة الأولى) — the first, closest to Masjid al-Khayf in Minā
2. **Jamarat al-Wuṣṭā** (الجمرة الوسطى) — the middle one
3. **Jamarat al-‘Aqabah** (الجمرة العقبية) — the last one

Tartīb is Sunnah, not Wājib

Ruling: The sequence (tartīb) of stoning the three Jamarāt is **sunnah** (مسنون), not wājib. If someone stones them out of order, the Ramī is **still valid** — but he has missed the sunnah.

The uṣūl behind this ruling

Principle: In acts that are **normally performed together** but **can exist independently/separately**, the tartīb is **sunnah** (not wājib).

Acts	Can they be separated?	Tartīb status
The three Jamarāt	Yes — on the 10th, only one Jamarah is stoned (they can exist separately)	Sunnah
Wuḍū actions (washing hands, rinsing mouth, etc.)	Yes — on some occasions, individual parts are done separately	Sunnah
Ṭawāf and Sa‘ī	No — Sa‘ī cannot exist without Ṭawāf; they are interdependent	Wājib
Rukū‘ and Sujūd in Ṣalāh	No — they cannot be performed independently	Wājib

Achieving tartīb when stoned out of order

If someone stoned the Jamarāt in the wrong order (e.g. ‘Aqabah → Wuṣṭā → Ūlā):

- He ended with Ūlā — which should be first.
- **Recommended:** Repeat the Ramī of **Wuṣṭā** and **‘Aqabah** (so they come after Ūlā), thereby restoring the sequence.
- He does **not** need to repeat Ūlā (since it was the last one he did, and it should be first).
- If he does not repeat, it is valid — he only missed a sunnah.

Part 6 — Practical Cases

Case 1: Threw 3 pebbles at each Jamarah (missed 4 per Jamarah)

He threw 3 pebbles at each of the three Jamarāt on the second day. Since 4 out of 7 is the **major part**, he has missed the major part of each Jamarah.

If he remembers on the same day: - He can repeat, and the **penalty is dropped** (still within the time). - **To achieve tartīb:** Start by throwing the remaining 4 pebbles at Ūlā → this completes Ūlā. - Then **redo Wusṭā completely** (all 7 pebbles, newly) — so that the entire Wusṭā comes after the completion of Ūlā. - Then **redo ‘Aqabah completely** (all 7 pebbles, newly) — so the full ‘Aqabah comes after Wusṭā. - Why redo? The original 3 pebbles at Wusṭā and ‘Aqabah were thrown **before** Ūlā was completed — so to maintain tartīb, they should be redone after Ūlā is complete.

Case 2: Threw 4 pebbles at each Jamarah (missed 3 per Jamarah)

He threw 4 pebbles at each Jamarah. Since 4 out of 7 is the **major part**, the Ramī is essentially **done** for each Jamarah. The tartīb was maintained (since the major part of each was done in order).

- Simply throw the **remaining 3 pebbles** at each Jamarah in sequence (Ūlā, Wusṭā, ‘Aqabah).
- **No need to redo** any Jamarah — but redoing all three newly is a lesser recommendation for perfecting the tartīb across all seven pebbles.

Case 3: Forgot which Jamarah had the missed pebble

He missed **one pebble** but **forgot** at which Jamarah (Ūlā, Wusṭā, or ‘Aqabah) he missed it.

Ruling: Throw **one pebble at each** of the three Jamarāt. This way, he is **certain** to have covered the missed one — whichever it was.

Analogy: This is like a person who missed one of the five daily ṣalāhs but forgot which one. He performs **Qaḍā’ of all five** (one Fajr, one Ṣuḥr, one ‘Aṣr, one Maghrib, one ‘Ishā’) — thereby certainly covering the one he missed.

Closing

- **Covered:** Complete and partial missing of Ramī (penalty framework applied day-by-day vs collectively); Imam Abū Ḥanīfah vs Ṣāhibayn on day-specific restriction; Tadākhul principle (combining violations — same category, one iḥrām, not about valuable assets; exception for hunting); Qaḍā’ concept (when another ‘ibādah of the same kind exists vs when it does not); Takbīr al-Tashrīq in Qaḍā’ ṣalāh; tartīb of the three Jamarāt (sunnah, not wājib — uṣūl of separability); practical cases for achieving tartīb and completing missed pebbles.
- **Next class:** Ḥalq and Qaṣr (shaving/trimming the hair) — the fifth wājib of Hajj; same time inshā’Allāh.

Masail e Hajj — Class 16 Summary

DATE June 16, 2026

TOPIC Completing Ḥalq/Qaṣr (Order on Yawm al-Naḥr, What Becomes Ḥalāl, Time & Place); Beginning Ṭawāf al-Ṣadr (Farewell Ṭawāf) — Its Obligation and Conditions of Wujūb

TEACHER Mufti Umar Aejaaz

Introduction

This lesson finishes the chapter on **Ḥalq/Qaṣr** (حلق / قصر) [shaving or trimming the hair] — the obligatory sequence of the three acts done on **Yawm al-Naḥr** (يوم النحر) [the Day of Sacrifice], what restrictions are lifted once Ḥalq is performed, and the time/place restrictions on Ḥalq itself. It then opens a new chapter: **Ṭawāf al-Ṣadr** (طواف الصدر) / **Ṭawāf al-Wadāʿ** (طواف الوداع) [the farewell ṭawāf], establishing that it is **wājib** in the Ḥanafī school and detailing the **two conditions of obligation** (shurūṭ al-wujūb).

Part 1 — Completing Ḥalq / Qaṣr

The obligatory order on Yawm al-Naḥr

The **preferred opinion** (muftā bihī) in the Ḥanafī school is that **tartīb** (ترتيب) [sequence] between the three acts of the 10th of Dhū al-Ḥijjah is **compulsory** (wājib):

1. **Ramī** — stoning Jamarat al-ʿAqabah is done **first**.
2. **Dhabḥ** (ذبح) [slaughter] — done **second**, *if it is due* (it is due on the **Mutamattiʿ** and **Qārin** — those combining Hajj and ʿUmrah, for whom there is an additional wājib of dam; otherwise not due on the Mufrid).
3. **Ḥalq / Qaṣr** — done **third**.

What becomes ḥalāl after Ḥalq

Once Ḥalq is done, **everything becomes ḥalāl for him except (intimacy with) women**.

“Everything has become lawful for you except women.”

(hadith as cited in class — confirm in hadith index)

- The exception is **only women** — so the restriction on **perfume**, **hunting**, and the other iḥrām restrictions are all **lifted**.
- The restriction concerning **women remains in full** (not partially).

The other madhāhib (not preferred here)

Imam	Position	Why the Ḥanafis do not prefer it
Imam al-Shāfi‘ī	The women-restriction is only partially lifted	Goes against the clear hadith excepting <i>only</i> women
Imam Mālik	Mentions two exceptions — women and perfume	The Prophet’s ﷺ practice goes against it

‘Ā’ishah’s (رضي الله عنها) **report** is the decisive evidence: a narrator was insisting the perfume-restriction still remained after Ḥalq. She said “*may Allah forgive this man*” — and explained: *I myself applied perfume to Allah’s Messenger ﷺ after Ḥalq was done*. Had the perfume-restriction still applied, she could not have applied it — proving it was already lifted.

Time and place of Ḥalq (preferred Ḥanafī view)

According to **Imam Abū Ḥanīfah** (the preferred opinion), Ḥalq is restricted by **both time and place**:

- **Time**: within **Ayyām al-Naḥr** (أيام النحر) — the 10th, 11th, and 12th of Dhū al-Ḥijjah, **before sunset of the 12th**.
- **Place**: within the **Ḥaram**.

If missed (done after the time, or outside the Ḥaram):

- Since Ḥalq is **wājib**, missing it incurs a **dam** (دم) — slaughtering an average animal (a goat) within the Ḥaram.
- If it was delayed/missed for a **genuine excuse** (‘udhr), the penalty framework of a missed wājib applies as discussed.

The differing views on Ḥalq’s restriction

Imam	Restricted by time?	Restricted by place?
Imam Abū Ḥanīfah (<i>preferred</i>)	Yes	Yes
Imam Muḥammad & Imam Abū Yūsuf	No	Yes (place only)
Imam Zufar	Yes (time only)	No

The preferred opinion is that of **Imam Abū Ḥanīfah** — restricted by both. This closes the chapter of Ḥalq.

Part 2 — Ṭawāf al-Ṣadr (The Farewell Ṭawāf): New Chapter

What it is

When a person is **leaving Makkah** — returning home or travelling onward (e.g. to Madīnah) — the **last thing he should do is a ṭawāf of the Baytullāh**. This is called:

- **Ṭawāf al-Ṣadr** (طواف الصدر) — *ṣadr* meaning to **return / go back**; and
- **Ṭawāf al-Wadā‘** (طواف الوداع) — the **farewell ṭawāf** (bidding farewell to the Baytullāh).

Its ruling: Wājib (Ḥanafī)

- According to the Ḥanafīs: it is **wājib**.
- According to Imam al-Shāfi‘ī: it is only **sunnah**. (In the Shāfi‘ī school there is **no separate “wājib” category** — anything that is not **farḍ** falls directly into **sunnah**. Since this ṭawāf is not farḍ, he classifies it as sunnah.)
- The Ḥanafīs hold **three categories** — farḍ, wājib, sunnah — and place this ṭawāf in the middle category: **not farḍ, but wājib**.

Penalty framework (same as the obligatory ṭawāf)

The detailed rulings already studied for ṭawāf apply here too:

Amount missed	Penalty
Major part missed	Dam (major penalty)
Minor part missed (e.g. 3 of the 7 rounds)	Ṣadaqah for each missed round

Part 3 — Evidence for Its Obligation

The Ḥanafī evidence (it is wājib)

1. **Consistent practice of the Prophet ﷺ** — he performed Hajj once, and when departing he performed this ṭawāf.
2. **The command in the hadith:**

“Whoever performs Hajj of this House, let the last of his acts be (ṭawāf at) the House.”

(hadith as cited in class — confirm in hadith index)

This is an **amr** (أمر) [command]. A command, in normal cases, indicates **wujūb (obligation)**. To reduce it from wujūb to mere sunnah, an **extra dalīl** would be required — and there is none here.

Imam al-Shāfi‘ī’s argument (and the Ḥanafī reply)

Argument: Ṭawāf al-Ṣadr is **dropped for Ḥā’id and Nufasā’** (menstruating / post-natal woman). If it were truly wājib, it would be obligatory on **everyone** — even her — just like **Ṭawāf al-Ziyārah**, which is compulsory on all, including the menstruating woman (who is even permitted to enter Masjid al-Ḥarām to perform it when she cannot wait, e.g. her flight is leaving, and then a penalty is due). Since Ṭawāf al-Ṣadr simply **drops** for her, it cannot be wājib.

Ḥanafī reply: - The **command** establishes **wujūb** by default; no extra dalīl reduces it. - The case of **Ḥā’id / Nufasā’** is **excluded by a separate dalīl**: the Prophet ﷺ **permitted** the menstruating woman to **leave without it** and did **not** order her to compensate with a penalty — proving that for her it simply **drops**.

Key Ḥanafī principle (specific to Hajj)

For **Ṭawāf al-Ṣadr**, if it is missed due to a genuine ‘**udhr** (excuse) — such as Ḥayḍ, Nifās, or a **severe illness** — **the penalty is dropped entirely**.

This concession is **specific to Hajj**. (Contrast with **ṣalāh**: however it is missed, qada’/compensation remains due. But here the penalty itself drops with a valid excuse.)

Part 4 — The Two Conditions of Obligation (Shurūṭ al-Wujūb)

Some conditions are conditions for the **obligation** of Ṭawāf al-Ṣadr; others (coming next class) are conditions for its **validity** (ṣiḥḥah).

Condition 1 — Being an Āfāqī (from outside the Mīqāt)

The person must belong to the area **outside the Mīqāt** — an Āfāqī (أفريقي).

- It is **not obligatory** on:
 - someone **living in Makkah**, or
 - someone living **between the Mīqāt and Makkah** (they are in the **ḥukm of Ahl Makkah**).
- **Reason:** this is a **farewell** ṭawāf — obligatory only on those who are **departing**. Residents are not going anywhere, so they have no farewell to make.
- **Imam Abū Yūsuf:** it is **recommended (mustaḥabb)** even for the Makkī — because it **completes the actions of Hajj** — but this is not the preferred ruling (it is not wājib on him).

Case: An Āfāqī who makes niyyah to settle in Makkah permanently

An Āfāqī performs Hajj, then makes the intention to **reside in Makkah permanently** (makes it his **waṭan**, performs hijrah there). Does Ṭawāf al-Ṣadr remain wājib on him, or drop? **It depends on when he formed that intention**, relative to when the **time of Ṭawāf al-Ṣadr begins**.

When does the time of Ṭawāf al-Ṣadr begin? - It begins once a person is **done with Ṭawāf al-Ziyārah** and the **obligatory Ramī** is complete. - The **12th of Dhū al-Ḥijjah** is the **last day of obligatory Ramī** (10th, 11th, 12th — the 13th being optional). After the **first departure** from Minā (permitted on the 12th once Ramī is done, **after Zawāl**), the time of Ṭawāf al-Ṣadr has **started**.

When he made niyyah of permanent residence	Ruling	Basis
Before the time of Ṭawāf al-Ṣadr began	Dropped — like any Makkī	He became Makkī before it became obligatory on him
After it became obligatory (after Zawāl of the 12th)	Not dropped — remains wājib	Once a wājib is established, it cannot drop

The differing view (not preferred): Imam Abū Yūsuf held that even after the time began, if he made the niyyah **before actually starting** the ṭawāf, it **drops** — because he is now like the Makkī people, for whom it is not wājib until they begin it. So for Abū Yūsuf it only firmly attaches once he has **started the rounds**.

The preferred opinion (Imam Abū Ḥanīfah): once the **time has entered** (Zawāl of the 12th, after the first departure and completion of Ramī), it has become **wājib** — even if he has **not yet started** it — so it does **not** drop. (And by all accounts, if he has already **started the rounds** and then forms the intention, it certainly does not drop.)

Analogy (ṣalāh): When Zuḥr time enters and a person is resident, **all four rak‘ahs** become wājib. If he then forms the intention to travel *after* the time entered, shortening does **not** help him — the full four remain wājib, because they were **established** at the entry of the time.

Note: time begins, but performance must still wait for Ṭawāf al-Ziyārah

Although the **time** of Ṭawāf al-Ṣadr begins by the Zawāl of the 12th, it **cannot be performed immediately**. He must **first perform Ṭawāf al-Ziyārah** (the obligatory/first ṭawāf), then this one.

Analogy: like **Witr** — its time begins with the ‘**Ishā**’ time, yet Witr cannot be performed **before** ‘Ishā’.

So there are **two duties** on him in order: (1) Ṭawāf al-Ziyārah, then (2) Ṭawāf al-Ṣadr.

Condition 2 — Being free from Ḥayḍ and Nifās

The person must be **pure from Ḥayḍ** (حيض) [menstruation] **and Nifās** (نفاس) [post-natal bleeding].

- These **drop** the obligation. Other **ma‘dhūrīn** (معدورين) with severe, chronic conditions are attached to the ḥukm of Ḥayḍ/Nifās (they share the common factor of being excused).
- **Ḥadath** (حدث) [minor impurity] and **Janābah** (جنابة) [major impurity] — which are removed easily by **wuḍū’** or **ghusl** — do **NOT** drop the obligation. The ṭawāf **remains wājib** on a person in such a state; he should purify himself and perform it.

So the **two conditions of obligation** are: (1) being an **Āfāqī**, and (2) being **free from Ḥayḍ/Nifās**. The conditions of **validity** will be covered next class.

Closing

- **Covered:** the obligatory order on Yawm al-Naḥr (Ramī → Dhabḥ if due → Ḥalq); everything becomes ḥalāl after Ḥalq except women (vs. Shāfi‘ī/Mālikī views; ‘Ā’ishah’s perfume report); Ḥalq restricted by time *and* place (Abū Ḥanīfah, preferred) vs. the views of the Ṣāhibayn and Zufar. Then: **Ṭawāf al-Ṣadr** — its names, its **wājib** status (vs. Shāfi‘ī “sunnah”), evidence (the Prophet’s ﷺ practice + the command), Shāfi‘ī’s Ḥā’id argument and the Ḥanafī reply, the **penalty drops for ‘udhr** principle (specific to Hajj), and the **two conditions of obligation** (being Āfāqī; being free from Ḥayḍ/Nifās), with the permanent-residence case and its timing.
- **Recall:** Hajj has **two farḍ** (Wuqūf ‘Arafah, Ṭawāf al-Ziyārah) and **five wājib** (Wuqūf Muzdalifah, Ramī, Ḥalq/Qaṣr, Sa‘ī, Ṭawāf al-Ṣadr) — **seven** compulsory actions in total. After these, the **Sunan of Hajj** begin.
- **Next class:** the **conditions of validity (ṣiḥḥah)** of Ṭawāf al-Ṣadr and remaining points; same time inshā’Allāh.

Masail e Hajj — Class 17 Summary

DATE June 17, 2026

TOPIC Ṭawāf al-Ṣadr — Timing, Place, Performing it in Advance, and the Ruling on Leaving Without it; then the

TEACHER Mufti Umar Aejaaz

Introduction

This lesson completes **Ṭawāf al-Ṣadr** (طواف الصدر) [the farewell ṭawāf] — its **timing** (no fixed ending point; performed before departure), its **place** (fixed at the Baytullāh), the case of performing it **in advance**, and the ruling on someone who **leaves Makkah without it**. With this, the **wājibāt of Hajj** are complete, and the **Sunan of Hajj** (سنن الحج) begin — starting with the **Sunan of Ihṛām**: the **ghusl**, the **two cloths (Izār & Ridāʾ)**, and the detailed discussion of **applying perfume before ihṛām**.

Part 1 — Timing of Ṭawāf al-Ṣadr

No fixed ending point — tied to departure

- The **time to perform it** depends on **when you leave Makkah** — it should be made **before departure**, regardless of the date.
- Whenever it is performed, it is **valid** — it is **never counted as “late”** and **no penalty** attaches for the timing.
- It is the **last act** one should do (the last ‘ibādah / ‘amal with the Baytullāh before leaving).
- **Permissible time**: begins with **Yawm al-Naḥr** and continues — there is **no upper limit** on the ending point, **by all (Ijmāʿ)**.

Q&A — Performing it in advance, then staying on

Q: A person performs Ṭawāf al-Ṣadr **in advance** (early). He then stays in Makkah for one, two, or three years — but **without** intending **permanent** residence (he is staying **temporarily**). He departs after, say, one year. Is the early ṭawāf still valid?

Answer: Yes, it is **valid**. (Note: someone who intends to settle **permanently** becomes a **Makkī / Mutawattin**, and Ṭawāf al-Ṣadr is **not** upon him — but this man is only temporary.)

- Making it the **last act before departure** is only **recommended (mustahabb)**, **not obligatory**. It is **permissible to perform it earlier**, though performing it at the time of departure is **better**.
- **No penalty** is due if it is delayed; it is usually done **after Ṭawāf al-Ziyārah**, and there is **no restriction** on its ending point — according to all.

Cannot be performed before Ṭawāf al-Ziyārah

Although the **time** of Ṭawāf al-Ṣadr begins with **Yawm al-Naḥr**, it **cannot be performed before Ṭawāf al-Ziyārah** (the first/obligatory ṭawāf). It **must** come after it.

Analogy (given by the Muṣannif): ‘Ishā’ and Witr — both times begin at the **same point**. Yet **Witr cannot be performed before ‘Ishā’**, because the **tartīb** (ترتيب) [sequence] must be maintained. If Witr is performed before ‘Ishā’, it is **not valid** — the obligatory tartīb is missed. Likewise, Ṭawāf al-Ṣadr cannot be performed before Ṭawāf al-Ziyārah.

Worked example: He performs Ṭawāf al-Ziyārah (say, after Ramī, Dhabḥ if due, and Ḥalq on the Day). Once Ṭawāf al-Ziyārah is done, he may perform Ṭawāf al-Ṣadr **any time** thereafter — but it is **recommended to keep it as the last act** before departure.

Part 2 — Place of Ṭawāf al-Ṣadr

- It is performed **around the Ka‘bah in Masjid al-Ḥarām** — exactly like Ṭawāf al-Ziyārah. There is **no difference** between the obligatory ṭawāf and this wājib ṭawāf in terms of **place**.
 - The one who performs Hajj of this House — the **last** of his acts with the Baytullāh should be the **ṭawāf**. So the place is **fixed with the Baytullāh**: it is a *ṭawāf bi’l-bayt* (around the House itself), not merely *ṭawāf ḥawlahu* (somewhere nearby).
-

Part 3 — Leaving Makkah Without Performing the Ṭawāf

Still within the Mīqāt

If a person leaves Makkah without performing the ṭawāf but is **still within the Mīqāt** (has **not crossed it**):

- It is **obligatory (wājib)** on him to **return and perform it**, because it is **wājib**.
- He can do so **without a new iḥrām** — he is **still in iḥrām** (he has not crossed the Mīqāt).

Having crossed the Mīqāt (or gone home / to Madīnah)

If he has **crossed the Mīqāt**, or returned **home**, or travelled to **Madīnah** without performing it:

- **Returning is no longer obligatory**. Forcing him back would require assuming a **new iḥrām** (at least for ‘Umrah) — an extra burden. So the Sharī‘ah does **not** force him back.
- Instead, the **penalty option** is selected: a **dam** (دم) — slaughtered within the Ḥaram.

If he chooses to return anyway

Suppose he says, “*I can easily go back, so let me perform it instead of paying the penalty.*” Since he has **crossed the Mīqāt**, returning means crossing it again, which **requires iḥrām** — and that iḥrām is for ‘Umrah:

1. First, ‘Umrah becomes **obligatory** on him (by crossing the Mīqāt to return), so he performs its **ṭawāf** (and sa‘ī).
2. Then he performs the **Ṭawāf al-Ṣadr**.
3. The **penalty is then dropped** from him.

The recommended choice

If he is **financially able** to pay the penalty, the **recommended** option is to **not return** and to **pay the dam** — because:

- it **benefits the poor of the Ḥaram**, and

- it is the **easier** path (returning means re-entering the restrictions and difficulties of iḥrām, plus assuming a fresh iḥrām).

It ultimately depends on him — returning is permissible, but it requires the ‘Umrah first, then the ṭawāf.

This completes the wājibāt of Hajj. Hajj has **two fard** (Wuqūf ‘Arafah, Ṭawāf al-Ziyārah) and **five wājib** — Wuqūf Muzdalifah, Ramī, Ḥalq/Qaṣr, Ṭawāf al-Ṣadr, and Sa‘ī — **seven** compulsory actions in total.

Part 4 — The Sunan of Hajj Begin (Method & Tartīb)

The teacher now turns to the **complete method of Hajj** from beginning to end and the **tartīb** to be followed.

- **Outline of the sequence:** Iḥrām → **Ramī** (10th Dhū al-Ḥijjah) → **Dhabḥ** (sometimes wājib, sometimes not) → **Ḥalq/Qaṣr** → **Ṭawāf al-Ziyārah** → **Ṭawāf al-Ṣadr** at the end.
- **Dhabḥ** is **obligatory in Tamattu’ and Qirān** (where both Hajj and ‘Umrah are performed, there is an additional wājib — the **dam of shukr**); it is **not** due on the Mufrid.
- **Ḥanafī principle on tartīb:** the obligatory sequence applies specifically to the **three actions of the 10th** — **first Ramī, then Dhabḥ (if due), then Ḥalq.**

The **seven** acts already studied are **fard/wājib**; the remaining acts now discussed are **sunan**.

Part 5 — Sunan of Iḥrām

Sunnah 1 — Ghusl (or at least Wuḍū’) before assuming Iḥrām

When intending to assume iḥrām, one should make **ghusl** (or, as the lesser option, **wuḍū’** — but ghusl is **better**).

- **Practice of the Prophet ﷺ:** he made ghusl at his Mīqāt (**Dhū al-Ḥulayfah**) when assuming iḥrām.
- **Recommended for both men and women.**
- **It does not matter what state the woman is in** — whether she is in Ḥayḍ/Nifās or not — because this ghusl is **not for Ṭahārah (purification)** but for **Naẓāfah (نظافة)** [cleanliness], which she still needs.

Evidence: the Prophet ﷺ ordered **Asmā’ bint ‘Umays (رضي الله عنها)**, who had just **given birth to Muḥammad ibn Abī Bakr** (at Dhū al-Ḥulayfah). Abū Bakr (رضي الله عنه) asked the Prophet ﷺ what she should do; he ﷺ instructed her to **make ghusl and assume iḥrām for Hajj** — showing the ghusl is for **naẓāfah**, not **ṭahārah**, hence recommended even in the state of Nifās.

- **Why it is only recommended (not wājib):** in the case of Ḥayḍ/Nifās it cannot achieve **purification** anyway, so it cannot be obligatory on the basis of ṭahārah — it is purely for **cleanliness**.
- **Ghusl is preferred over wuḍū’** because the Prophet ﷺ chose it (indicating its being a sunnah), he ﷺ ordered it, and ghusl gives **complete cleanliness** compared with wuḍū’.

- **Modern application:** since we now cross the Miqāt **by air**, do this **in advance** — make ghusl at home before the flight, and **assume iḥrām before crossing the Miqāt** (before or during the flight).

Sunnah 2 — Wearing the two cloths: Izār and Ridā'

- **Izār** (إزار) — the **lower** garment, wrapped around the lower body.
- **Ridā'** (رداء) — the **upper** sheet, wrapped around the upper body.

Rulings on the cloths:

- They should be **clean** and **not silk**.
- It is **prohibited to wear stitched/sewn clothing (mukhīṭ / مخيط)** — following the Sunnah of the Prophet ﷺ.
- **Covering the satr** (private parts) is **compulsory in all cases**, as is covering enough of the body to protect oneself from the effect of **heat and cold**.
- One may wrap the sheets around the whole body **except the head** (the head must remain uncovered for men).
- The cloths may be **new or old/washed** — no problem; **new is better** (cleaner), but properly cleaned old ones may be used.

Children — two types:

Type of child	Ruling
Mumayyiz (discerning) — e.g. 5, 7, 9 years old	Better for the guardian to dress them in iḥrām like adults, so they are trained to follow these acts (recommended, though not obligatory on them)
Small / non-discerning	The restrictions do not apply to them (they need diapers, etc.); iḥrām does not effectively operate over them

Applying oil and perfume before iḥrām

Before assuming iḥrām, a person may **apply oil and perfume** and take full care of the body's cleanliness — because **after** iḥrām, restrictions apply and he can no longer groom freely (he must even be careful when bathing, since **dropping hair** incurs a penalty proportionate to the amount dropped).

Two components of a perfume: 1. **Rīḥ** (ريح) — its **scent**. 2. **‘Ayn / Jirm** (عين / جرم) — its **physical substance / body** (e.g. its **colour**, as in a coloured perfume).

The disagreement on coloured / substance-leaving perfume

Imam	Ruling on applying (before iḥrām) a perfume whose substance remains after iḥrām
Imam Abū Ḥanīfah & Imam Abū Yūsuf (preferred / muftā bihī)	Permissible — any perfume may be applied, even one whose substance/colour remains
Imam Muḥammad (after his rujūʿ)	Not to apply a perfume whose substance remains after iḥrām
Imam Mālik	Similar to Imam Muḥammad — not to apply such a perfume

- **Imam Muḥammad’s rujūʿ (retraction):** he originally agreed with the permissibility, but later retracted, saying: *“I saw people coming with a great deal of perfume and applying it over the body and clothes — that is why I disliked it.”* So he restricted it to perfume whose substance does **not** remain after iḥrām.
- **Modern note:** today’s perfumes are typically **colourless** with **no remaining substance**, so they **may be applied** by all.

Imam Muḥammad’s evidence and the Ḥanafī replies

His ḥadīth: the Prophet ﷺ told a **villager (Aʿrābī)** to **remove and wash off** a coloured perfume — **Khalūq (خلوق)** — which is **saffron-coloured**.

- **Ḥanafī reading of it:** Khalūq’s problem is that its **saffron colour is unsuitable for men** (it suits women). Men are not permitted to wear clothing dyed saffron — and this is **more strongly prohibited** in iḥrām. So the prohibition is about the **colour**, not about substance-that-remains.

His logical argument: if a perfume with physical substance is applied, then after iḥrām is assumed the substance **spreads to other parts of the body** — which would be like **applying perfume anew** (not permissible in iḥrām).

- **Ḥanafī counter:** if the spreading were a genuinely *new* application, it would incur a **penalty** (since newly applying perfume in iḥrām incurs a penalty). But the spreading **incurs no penalty** — by **Ijmāʿ**. Therefore it **cannot** be deemed a new application, and the argument fails.

The Ḥanafī evidence (preferred view)

ʿĀʾishah (رضي الله عنها) said:

“I applied perfume to Allah’s Messenger ﷺ when he assumed iḥrām, and when he came out of iḥrām — before he performed Ṭawāf al-Ziyārah.”

(hadith as cited in class — confirm in hadith index)

“...and I could see the **whiteness** of the perfume in the **mafriq** (parting of the hair) of Allah’s Messenger ﷺ.”

- The **whiteness** is the **physical substance** of the perfume — visible **while he was in iḥrām** — proving that a substance-leaving perfume applied **before** iḥrām is fine.
- ‘Ā’ishah is a **Companion** who did this **herself** with the Prophet ﷺ. (The mention of applying it as he **came out** of iḥrām — before Ṭawāf al-Ziyārah — shows that by then the other restrictions, except intimacy with women, were already lifted.)

The decisive logic: what is prohibited in iḥrām is applying perfume **anew**. Here he applied it **before** iḥrām, not during it; the **remainder** belongs to the earlier (permissible) application and is not prohibited.

Supporting example: before completing the acts on the 10th you may not do Ḥalq; but if a person **shaved his head just before entering iḥrām**, that shaving “remains” with him in iḥrām yet causes **no violation**. Likewise, perfume applied before iḥrām remains without violation.

On the reports of ‘Umar and ‘Uthmān (who **disliked** applying perfume before iḥrām): against them stand reports of **other Companions** (e.g. **Ibn ‘Abbās / Ibn ‘Umar**) who **permitted** it. A statement of one Companion against another leaves them **equal**, so either may be adopted — and the Ḥanafis adopt the permitting view, supported by the Prophet’s ﷺ practice.

Part 6 — Debatable Case: Penalty for the *Remaining* of a Perfume Applied During Iḥrām

Setup: A person applies perfume **newly, after** assuming iḥrām (a clear violation). A **penalty** is due, and he **pays** it. But the perfume’s **physical substance remains** afterward. Does that **remaining substance** generate a **new penalty**, repeatedly?

Two situations distinguished:

1. **Applied before iḥrām, remains after** → **no penalty** (established above).
2. **Applied during iḥrām (newly), penalty paid, substance still remaining** → **debatable**; both opinions exist in the Ḥanafī school.

Opinion	Ruling	Reasoning
A	The remaining is considered a new application → another penalty is due	The original application was new (in iḥrām), so its remainder is treated as new too — unlike the before-iḥrām case, where the remainder belongs to an old, permissible application
B (<i>appears to be preferred</i>)	No additional penalty for the remaining	Once the penalty for the new application is paid, it is done and dusted — the remaining (like the first case) does not generate a fresh penalty

Note on method: the Muṣannif's habit is to place the **preferred opinion last** — so the **second opinion (B — no additional penalty)** appears to be the preferred one.

Part 7 — Sunnah 3 (Preview): The Two Rak'ahs of Iḥrām

After (1) achieving cleanliness via **ghusl** and (2) applying **perfume/oil** and grooming the body — **both done before iḥrām** — the **third** act is performing the **two rak'ahs of iḥrām**. This will be taken up next.

Closing

- **Covered:** Ṭawāf al-Ṣadr — no fixed ending point (tied to departure; performing it early is valid, only being last is mustaḥabb); cannot precede Ṭawāf al-Ziyārah ('Ishā'/Witr tartīb analogy); place fixed at the Baytullāh; the rulings on leaving without it (return if within the Mīqāt; otherwise **dam**, or return via a fresh 'Umrah). Then the **Sunan of Hajj** opened: the method and tartīb; **Sunan of Iḥrām** — **ghusl** (for naẓāfah, even in Ḥayḍ/Nifās; Asmā' bint 'Umayy); the **two cloths** (Izār & Ridā', no mukhīṭ, children's rulings); **perfume before iḥrām** (Abū Ḥanīfah & Abū Yūsuf permit substance-leaving perfume — preferred — vs. Imam Muḥammad's rujū' and Mālik; 'Ā'ishah's evidence and the logic of “no new application”); and the **debatable case** of the remaining substance of an in-iḥrām application.
- **Next class:** the **complete method of Hajj** with its **tartīb** (including the **two rak'ahs of iḥrām** and the talbiyah), continuing the Sunan; same time inshā'Allāh.

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End of edition · Further sessions forthcoming
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